COMPLETE DAY-WISE CLASS NOTES · JULY – OCTOBER 2026

Constitutional Law

Twenty-one classroom sessions — from the Rule of Law and the Basic Structure Doctrine to Articles 14, 15, 16 and 19 — consolidated day-wise, with flowcharts, case boxes, comparison tables and the professor's classroom asides set in italics. Includes the solved twenty-one-problem Article 14 workshop.

Twenty-One Sessions · 15 July – 7 October 2026

Rule of Law · Basic Structure · Equality Code · Reservation · Free Speech

COMPILED FROM CLASSROOM LECTURE TRANSCRIPTS · OCTOBER 2026

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How to Use These Notes

These notes consolidate **every document in the four classnotes files** — raw lecture transcripts, structured lecture notes, the verbatim class record, worksheet problems and the two study companions — into one day-wise, exam-ready compendium. The course ran from **15 July 2026 to 7 October 2026** across twenty-one recorded sessions. Where a document carries no printed date, its position in the sequence has been reconstructed from the teaching flow and is marked with a *c.* (circa) before the date; nothing else has been re-ordered.

Three reading aids run through the document. **Case boxes** (gold-edged) carry facts, holdings and the single principle each case settles. **Professor's Aside boxes** reproduce, *in italics*, the informal, niche and anecdotal things the professor said in class — the stories, jokes, warnings and political commentary that never appear in textbooks but which he repeatedly said would be examined. **Q&A; blocks** answer the questions actually asked in the lectures, including the full twenty-one-problem Article 14 workshop. Flowcharts summarise the doctrines that decide examination answers.

Box / tool	What it contains
Day band (olive)	Session number, date, title and the day's topic trail
Case box	Facts · Held · Principle for every case discussed in class
Professor's Aside (italic)	Verbatim classroom anecdotes, warnings and commentary
Q & A	Questions posed in the lecture, answered from the lecture's own context
Flowchart / diagram	Visual summary of a doctrine or a line of cases
Table	Comparisons the professor drew on the board or in handouts

Legend — the building blocks of these notes

THE COURSE AT A GLANCE

21 classroom sessions · 15 July – 7 October 2026 · five movements of the syllabus

I · FOUNDATIONS (15–16 & 22 Jul)
- Art 13 & personal laws
- Shankari Prasad → Kesavanand
- Kesavananda (13-judge)
- Eclipse · Severability · Waiver

II · THE EQUALITY CODE (23–31 Jul)
- Art 14 introduced (Salma–Prapti)
- Reasonable classification
- Equality before law vs equal protection
- Positive discrimination
- Non-arbitrariness · Golden Triangle

III · RULE OF LAW (3–5 Aug)
- Dicey & Glorious Revolution
- Ancient India & ADM Jabalpur
- Magna Carta · WJP · Swamy

IV · RESERVATION (9–14 Aug)
- Art 14 workshop (21 problems)
- Art 15 in reverse · prisons case
- Arts 15 & 16 equality code
- Constituent Assembly debates
- Mandal · Indra Sawhney · 4 advocates

V · FREE SPEECH (5–7 Oct)
- Art 19(1)(a) study guide
- 10 landmark cases
- Must-read case briefs

Sessions marked with approximate dates (c.) are undated in the source notes; their position follows the teaching sequence.

The full course at a glance — five movements across twenty-one sessions

Source map — which file fed which day

Source file	Days drawn from it
Classnotes 1.pdf (149 pp.)	c.15 Jul (verbatim session), 16 Jul, 3–5 Aug (Rule of Law), 11–14 Aug (Arts 15–16 & reservation) + the Indra Sawhney expansion
Classnotes 2.pdf (101 pp.)	22 Jul (Kesavananda + Art 13 doctrines), c.23–31 Jul (the six Article 14 lecture documents)
Classnotes 3.pdf (14 pp.)	9–10 Aug (Article 14 workshop + the Article 15 lecture)
Classnotes 4.pdf (73 pp.)	5 Oct (Article 19(1)(a) study guide) + 7 Oct (must-read case briefs)

Every page of every uploaded file is represented in these notes

DAY 1
c. 15 July 2026

Article 13, Personal Laws & the Road to the First Amendment

Personal law vs fundamental rights · Shah Bano · Shayara Bano · Goolrokh · Talaq-e-biddat vs talaq-e-ahsan · Kameshwar Singh & the Ninth Schedule · Shankari Prasad homework

This session (recorded verbatim, without a printed date) sits immediately before the 16 July lecture on Shankari Prasad: it closes by assigning precisely that case. The professor uses Article 13(2) to open the deepest question of the early course — **can personal laws be declared void when they violate fundamental rights?**

Personal Laws versus Fundamental Rights

The professor frames the problem through marriage. Islamic law does not permit a Hindu to marry a Muslim girl unless she converts — and conversion, he asks, why should she want to convert? Article 21, read broadly, says a person may marry anybody. The personal law therefore violates a citizen's fundamental right, and the violation is doubly suspect because it is **gender-based**: a Muslim boy may marry anybody, including a Hindu girl, but a Muslim girl cannot marry outside her religion without converting. The question for inquiry: *can such a Koranic practice, violating Article 21, be declared void under Article 13(2)?*

A parallel problem comes from constitutional history: by constitutional amendment some fundamental rights **have** been taken away — above all the right to property. Whether those amendments are valid is studied under Article 13(3).

The Reform Record of Parliament — and the POCSO Digression

Parliament, the professor argues, has been discriminatory in its reform energy. Starting from the very first Parliament, every manner of reform was introduced among Hindus. In Hindu tradition marriage was a *Kanya Daan* given before puberty; in Muslim law too the age of puberty was the age of marriage. The age of marriage was later raised to eighteen while the age of consent stood at sixteen — and the professor recounts joining a mild protest against the resulting incoherence: *"What is this? Do you want to keep our daughters in adulterous relationships? They cannot marry, but they can have sex? Raise the age of consent to eighteen as well."* Under POCSO the age of consent became eighteen (following the Justice Verma Committee — Verma being originally from Satna, near Indore), and the Supreme Court had remarked only days earlier that such strict laws on the sexuality of girls aged sixteen to eighteen have sent thousands of boys — and girls, the law being gender-neutral — to jail.

PROFESSOR'S ASIDE

A chachi fell in love with her sixteen-or-seventeen-year-old nephew, conceived from him, and now compels the nephew to marry her. The family pleaded: abort the child, leave the relationship. She refused — "Now I shall marry only him" — an FIR followed, and the chachi is in jail, delivering a child. POCSO is a very strict law; Google it if you do not believe me. Why are you so worried? Worry about the chacha if you must — the chacha falls outside POCSO; it is the chachi who falls within our field of study.

How the Court Approaches Personal Law

A Hindu cannot marry more than once; a Hindu cannot marry a Muslim girl; and among Muslims too personal law frequently violates their own members' fundamental rights. The professor poses the classification question: **shall we treat personal law as "custom" — and is there not a significant difference between custom and personal law?** For Hindus considerable reform was enacted; for Muslims it was not. Jawaharlal Nehru's stated reason was that they were "not yet sufficiently educated to accept reforms" — and, the professor notes, seventy-five or eighty years later exactly the same thing is still said.

The Supreme Court's technique is studied through three assigned cases. In **Shah Bano**, the question was maintenance beyond the *iddat* period, which Islamic law does not extend; the Court, "with a certain cleverness," granted relief from the side without commenting upon the personal law itself. Even when it declared instant triple talaq unconstitutional it did so in a roundabout manner, avoiding a direct attack. In **Shayara Bano** the same pattern appears. And a Parsi lady — educated at an NLU — who married a Hindu (a Gupta) was barred by Parsi personal law from performing her father's funeral rites; the Supreme Court granted her permission, again without ruling on the personal law. A student supplies the citation: *Goolrokh M. Gupta v. Valsad Parsi Anjuman* (2017); the professor directs the class to read both that and the connected Pardiwala rulings. A Christian case is added: Christian mothers lacked guardianship over their own children — the father's name was necessary even to open a bank account — and again the Court granted relief while sidestepping the personal law. For Hindus, the starting case is **Narsu Appa Mali**.

PROFESSOR'S ASIDE

A court remains a court only so long as society obeys its orders. Have you observed what happened in Pakistan — how the people burned down the Supreme Court? Read the case of Asia Bibi.

On codification of Muslim law, the professor is blunt: it is about **vote bank**. Many Muslims do not adhere strictly to the faith's practices; the government lacks the courage to reform. Around sixty Islamic countries exist, and in nearly all of them — including Pakistan — polygamy is prohibited; but the All India Muslim Personal Law Board resists, and in politics everyone wants votes. *"Modi also wants votes."*

Talaq Clarified — the Classroom Exchange

A hypothetical is put: a prominent Nagpur advocate's Muslim friend wishes to give talaq to his wife — will the petition lie in the High Court or the District Court? The professor makes the class work through it, then corrects the vocabulary: **talaq-e-biddat** (instant triple talaq) has been declared unconstitutional; **talaq-e-ahsan** is the only permissible method — one pronouncement in the first month, the second in the second month, the third in the third month, pronounced especially when the wife is not menstruating. Proceedings now lie before the **District Court**, not by writ petition in the High Court — a distinction the professor says he now tests even in faculty selection interviews.

PROFESSOR'S ASIDE

Until you say "instant" triple talaq, triple talaq has not been declared unconstitutional — the word "instant" must be added. And are you educated or uneducated? Then why do you not speak in legal language? She is explaining as though she has gone to some village for a legal aid camp. Buy a newspaper sometimes. Why are newspapers printed? To be read — not to eat peanuts with.

PROFESSOR'S ASIDE

Do not study from Chat G-P-T. It gives wrong answers. Today, coming here, I asked it what arguments had been advanced in the case I am about to teach — it gave me entirely wrong answers. I said, "Have you not yet come down from your intoxication?" I asked it what Dr. Ambedkar said at Sholapur, and it fetched his Delhi speech. We professors know the context, so we are rarely cheated — you all will be cheated. Depend on original sources.

The First Amendment — Kameshwar Singh and Article 31B

Asked why the First Constitutional Amendment came about, a student (Kanishk) answers correctly: *Champakam Dorairajan*. The professor confirms it was one reason — but the most important was **property**. He recalls Dr. Ambedkar's final Constituent Assembly speech (assigned as compulsory reading): *"Today we are going to start a life of contradictions."* After working the class through the answer, the doctrine emerges: political equality has arrived — one person, one vote; one vote, one value — but a huge gulf persists in the economic and social dimensions of society, and that disparity must be dismantled by the fastest path if the country is to remain united.

PROFESSOR'S ASIDE

There is a character in our Ramayana — Bali. Whoever fought him, half their power came to him. When even the foolish students of NLU stand up in moot court, the students of traditional colleges think, "Oh dear, this person is from NLU, he will certainly speak well" — half of them fall into depression and their performance deteriorates. That is what economic disparity does to confidence. I have lived outside the village for forty years, and still, sometimes, confidence fails me.

Land being a State subject, every State enacted **zamindari abolition laws**, taking the landlords' land and giving it to the tenants who worked it. The rajas and maharajas — whose rights the professor illustrates with the full style of the complainant in the leading case: **"Maharajadhiraj Sir Kameshwar Singh of Darbhanga"** — challenged the Bihar Act, and the Patna High Court declared it unconstitutional under Article 13(2): property was a fundamental right, and the Act took it away. Nehru, greatly distressed, brought the First Amendment, inserting **Article 31A** and **Article 31B** and creating the **Ninth Schedule**.

A student (Sanika) reads Article 31B aloud. Its effect: any Act placed in the Ninth Schedule is deemed never to have become void for violating Part III, notwithstanding any judgment of any court. The original Constitution had eight schedules (which the class was told to memorise on day one); the Ninth was added by the First Amendment. With it, the Kameshwar Singh judgment was reduced to zero — the Bihar Act sailed through.

PROFESSOR'S ASIDE

If any act is placed in the Ninth Schedule, that act will become like Duryodhan after Gandhari opened her eyes — his body became like a thunderbolt; he could not be killed. The act gains judicial immunity: the judiciary will not be able to review it, even if it violates fundamental rights, and even if the Kameshwar judgment were to apply.

Homework — Shankari Prasad

KEY POINT

Three small things to read in **Shankari Prasad v. Union of India**: (1) the petitioners' arguments — one will certainly be that Parliament is a “State” under Article 12, so an amendment violating fundamental rights is void under Article 13(2); find the other grounds, and the name of the top-class advocate who filed the petition — in today's era, as Hanuman ji holds value in the Ramayana, that advocate holds value in the Constitution of India; (2) the respondents' (Attorney General's) grounds; (3) the name of the judge who delivered the judgment, and on what grounds. Two further tasks: the three or four personal-law cases from every religion, and the meanings of order, rule, by-law and ordinance.

PROFESSOR'S ASIDE

There was a girl in the fourth or fifth year whose boyfriend was from this section. She would come and stand five minutes before the break, chat for a minute, and then walk with me — “Sir, I have come to receive you; you are my dearest teacher.” A simple man, I believed she had come to receive me. Many days later I discovered she came for someone else. She is seen running every day.

DAY 2
16 July 2026

Amendment Jurisprudence — Shankari Prasad to Kesavananda

Ninth Schedule mechanism · Shankari Prasad (1951) · Sajjan Singh's seeds of doubt · Golaknath & prospective overruling · 24th Amendment · The middle path

EVOLUTION OF THE BASIC STRUCTURE DOCTRINE

Shankari Prasad (1951) → Minerva Mills (1980): Parliament vs. the Court over Article 368

1951 — Foundation
Shankari Prasad v. Union of India
Amendment = constituent power, not 'law' under Art 13(2). Amending power **unlimited**. 5:0.

1965 — Seeds of doubt
Sajjan Singh v. State of Rajasthan
Majority reaffirms, but **Hidayatullah & Mudholkar JJ.** express doubt; 'basic structure' first whispered.

1967 — Reversal
Golak Nath v. State of Punjab
11 judges, 6:5 — Parliament **cannot amend** Fundamental Rights. Prospective overruling introduced.

1971 — Parliament responds
24th Amendment
Parliament strikes back: 'Power' added to Art 368; Art 13(4) inserted; Golak Nath overturned.

1973 — The middle path
Kesavananda Bharati
13 judges, 7:6 — Parliament may amend **any provision**, but cannot destroy the **Basic Structure**.

1976 — Executive retort
42nd Amendment
Art 368(4)–(5): no judicial review, no limits on amending power — the 'Mini-Constitution'.

1980 — Restoration
Minerva Mills v. Union of India
368(4)–(5) struck down. Limited amending power and judicial review are themselves basic structure.

The arc of the Basic Structure Doctrine — every step of this day's lecture

The Constitutional Framework

Schedule	Added by	Purpose
1st–8th	Original Constitution	The original eight schedules
9th Schedule	First Amendment Act, 1951	Judicial immunity basket under Article 31B
10th Schedule	52nd Amendment	Anti-defection law
11th Schedule	73rd Amendment	Panchayati Raj
12th Schedule	74th Amendment	Municipalities

Schedules of the Indian Constitution

The Ninth Schedule mechanism: (i) Parliament places specific Acts in the Schedule; (ii) such Acts become immune from judicial review for violation of Fundamental Rights; (iii) Article 13(2) ceases to apply to them; (iv) even if

they violate Articles 14, 19 and 31, they remain valid. **The Schedule itself is not immune from review — the Acts placed within it are.** The professor's image: *"The Constituent Assembly made an umbrella where rainwater would not go. Call that umbrella the 9th Schedule."*

Article 368 requires passage by both Houses — under Article 79, the **Council of States (Rajya Sabha)** and the **House of the People (Lok Sabha)**. The Provisional Parliament problem of 1951: elections were held only in 1951–52, so the Rajya Sabha did not yet exist when the First Amendment was passed. Article 379 (now repealed) gave the provisional Parliament all the powers of a regular Parliament; the President could make rules to remove difficulties. *"If Rajya Sabha was not there, should the country have been locked up? Or should there be some mechanism for improvement?"*

Ambedkar's Three Contradictions

In his final speech Dr. Ambedkar identified: (1) **political equality** — "one man, one vote, one vote, one value"; (2) **social inequality** — hierarchies of caste and class persisting; (3) **economic inequality** — disparities in wealth and land. The First Amendment's purpose was to remove the economic contradiction by enabling land reform; the constitutional goal is an egalitarian society — justice, social, economic and political.

Shankari Prasad Singh Deo v. Union of India (1951)

Shankari Prasad Singh Deo v. Union of India

5-judge bench · unanimous (5:0) · judgment by M. Patanjali Sastri J. · P.R. Das for petitioners · M.C. Setalvad (first Attorney General of India — a general-knowledge point) for the Union

Facts · Zamindars of Bihar, Uttar Pradesh and Madhya Pradesh challenged land reform laws as violating Part III. Parliament responded with the First Amendment (Articles 31A, 31B, Ninth Schedule). Blocked from attacking the Acts directly, the zamindars challenged the Amendment itself — strategic logic: if the tree falls, the branch falls anyway.

Held · The First Constitutional Amendment is valid. (1) Article 368 confers **constituent power**, distinct from ordinary legislative power under Articles 245–246; Article 13(2) applies only to the latter. (2) The definition of "law" in Article 13(3) deliberately omits "constitutional amendment." (3) Article 368 contains no exception for Part III — the framers could have written "except Part III" and did not.

Principle · Parliament may amend any part of the Constitution, including Fundamental Rights; an amendment is not "law" under Article 13(2).

The six petitioner arguments — and the lesson in over-pleading

#	Petitioners' argument	Court's response
1	Only a proper two-House Parliament can amend; the one-house provisional Parliament lacked competence	Article 379 empowered the provisional Parliament
2	The President wrongly modified Article 368 to permit single-House amendment	Considered weak — over-pleading weakens a case: when one ground is found false, the judge may view the entire petition with suspicion
3	An amendment is "law" under Article 13(2) — Parliament is "State" under Article 12	Rejected — see ratio
4	State ratification was necessary (Arts 31A/31B affected court powers)	Only direct, not indirect, effects on courts trigger ratification

#	Petitioners' argument	Court's response
5	The Bill was changed after introduction	Parliament is master of its own procedure — "slave only to the Constitution"
6	Parliament cannot legislate on land (State subject)	Conflates legislative power with constituent power

The petitioners' case, argument by argument

The respondents' two textual pillars: Article 13(3) enumerates ordinances, orders, bye-laws, rules, regulations, notifications, customs and usages — *not* constitutional amendments; and Article 368 speaks of amending "any provision of this Constitution" without carving out Part III. Both omissions are deliberate. Under constituent power, *"Parliament becomes as powerful as the Constituent Assembly itself was. Just as there were no restrictions on the Constituent Assembly, similarly no restrictions will remain with Parliament either, because restrictions are not written anywhere."*

Ordinary legislative power	Constituent power
Derived from Articles 245–246	Derived from Article 368
Subject to Article 13(2)	Not subject to Article 13(2)
Limited by the Seventh Schedule	As powerful as the Constituent Assembly itself
Makes ordinary laws	Makes and amends the Constitution

The two powers of Parliament distinguished

Doctrine of harmonious construction

Two apparently conflicting provisions are interpreted so that both survive: Article 13 governs legislative power; Article 368 governs constituent power; each operates in its own sphere. Reading Article 13 broadly would render Article 368 "dead" for Part III — an interpretation courts must avoid. *"Harmony means making a balance between both, keeping both alive. Lest one dies. Both survive."*

Sajjan Singh (1965) — the Seeds of Doubt

The Seventeenth Amendment (1964), expanding the Ninth Schedule and amending Article 31A, was challenged. The majority (Gajendragadkar C.J., Wanchoo and Raghubar Dayal JJ.) reaffirmed Shankari Prasad. But two judges — both with Nagpur connections, the professor notes — wrote separate opinions that planted the Basic Structure seed.

- **Justice Hidayatullah:** Fundamental Rights are "primordial sacrosanct" rights; Article 13(2) does not expressly exclude amendments; rights of such significance cannot be abrogated in the same manner as ordinary provisions; certain rights are inalienable — recognised by the Constitution, not created by it.
- **Justice Mudholkar:** the comparative argument. At a Banaras Hindu University conference a German professor had described the Basic Law's **eternity clause** — Article 79(3) entrenches the federal structure, the democratic and social state and the inviolability of human dignity against all amendment. A Pakistan Supreme Court judgment (likely *Fazlul Quader Chowdhury*, 1963) had similarly limited amending power. And the U.S. Constitution's **Article V** contains two unamendable matters: the slave-trade clause (temporarily, until 1808) and equal suffrage in the Senate (permanently — no State, without its consent, may be deprived of its equal suffrage). If other constitutions entrench cores, the Indian Constitution too must have essential features beyond

the amending power's reach; a constitution has a soul and an identity that cannot be destroyed while claiming the same constitution survives.

PROFESSOR'S ASIDE

Think of the scholarship of that era: no internet; Supreme Court Reports not easily available; no interns — the very concept of an intern was unknown in India until the Clinton–Lewinsky scandal brought it into headlines; judgments typed on manual typewriters, where an error on the 21st line of a page meant retyping the whole page. Justice Mudholkar was not in line to become Chief Justice. He had nothing personal to gain. He could simply have signed the majority opinion — yet he undertook the research, because he believed the Constitution and the people of India deserved it.

Golak Nath v. State of Punjab (1967)

Golak Nath v. State of Punjab

11-judge bench · 6:5 · majority led by K. Subba Rao C.J.

Facts · The validity of the Seventeenth Amendment's protection of land reform laws was again in issue; the Court reconsidered Shankari Prasad and Sajjan Singh.

Held · Parliament cannot amend Fundamental Rights. Article 368 (its marginal heading then reading "Procedure for amendment") supplies only procedure, not power; the power flows from the residuary legislative power — Entry 97, List I read with Article 248 — making an amendment an exercise of legislative power, hence "law" under Article 13(2), hence void insofar as it abridges Part III.

Principle · Fundamental Rights placed beyond the amending power; the doctrine of prospective overruling introduced — the ruling operates only from the judgment date, so all earlier amendments survived.

PROFESSOR'S ASIDE

That poor guy won the case, but he didn't get any relief — the property already taken remained taken.

The 24th Amendment (1971) — Parliament Responds

Golaknath holding	24th Amendment's answer
Article 368 is merely procedural; power comes from Entry 97 + Art 248	Marginal heading changed to "Power of Parliament to amend the Constitution and procedure therefor"; "Power" written into the text
An amendment is "law" within Article 13(2)	Article 13(4) inserted: "Nothing in this article shall apply to any amendment made under article 368"
Article 13(2) voids rights-abridging amendments	A non-obstante clause — "Notwithstanding anything in this Constitution" — prefixed to Article 368(1); a mirror clause 368(3) added for abundant caution
—	Presidential assent made mandatory: the President "shall" assent and the Constitution "shall stand amended" — the President becomes a rubber stamp

How the 24th Amendment dismantled Golaknath pillar by pillar

Kesavananda Bharati (1973) — the Middle Path

Thirteen judges — the largest bench in Indian history — tested the 24th Amendment. Between Shankari Prasad's **unlimited power** and Golaknath's **no power over Part III**, the Court took the middle path: Parliament can amend any provision, including Fundamental Rights, but cannot destroy or abrogate the Constitution's **basic structure** or essential identity. The 24th Amendment was upheld, but the amending power it confirmed is a limited power. (The case is taught in full detail on 22 July — Day 3.)

Issue	Shankari Prasad	Golaknath	Kesavananda
Nature of amending power	Constituent (distinct)	Legislative (same)	Constituent but limited
Amendment of FRs	Permitted	Not permitted	Permitted, subject to basic structure
Art 13 applies to amendments?	No	Yes	No — Golaknath overruled on this point
Art 368 provides	Power + procedure	Procedure only	Power + procedure
Ultimate limit	None	Absolute bar	Basic Structure

Comparative analysis of the three watershed decisions

Comparative and Historical References

U.S. Article V offers a four-way amendment process (Congress proposes with State legislatures ratifying — the common route; Congress proposes with State conventions ratifying — used once, for the 21st Amendment repealing Prohibition; two-thirds of State legislatures demand a convention — never used; and convention-plus-convention). In the United States amendment is treated as a political question: no judicially enforced basic structure exists there. **The German Basic Law** (1949), Article 79(3), expressly entrenches the division into Länder, the Länder's participation in legislation, and the principles of human dignity (Article 1) and the democratic, social federal state (Article 20).

Dred Scott v. Sandford (1857)

U.S. Supreme Court · 7:2

Facts · Dred Scott, enslaved, sued for freedom having lived with his owner in a free State and territory.

Held · African Americans, enslaved or free, were not citizens and could not sue; the Missouri Compromise was unconstitutional. “Once a slave, always a slave — you can never become a free citizen.”

Principle · Widely regarded as the worst U.S. Supreme Court decision; it inflamed public opinion and catalysed the Civil War (1861–65).

The Civil War connection to **Article 356**: Lincoln — a self-educated man of humble origins, early a shoemaker, who had lost almost every election before winning the presidency — sent the military to prevent secession at the cost of roughly 800,000 casualties in a country of 31 million, and was assassinated shortly after. The Indian framers, aware of that bloodshed, designed President's Rule as a constitutional safety valve — a Centre may take over a State's administration when constitutional machinery fails, without armed conflict. (The Second Amendment's right to bear arms, the lecture noted, itself grew from the States' desire to maintain militias against federal overreach.)

HOMEWORK

Assigned reading (three days): Shankari Prasad in full (harmonious construction); Sajjan Singh — only Hidayatullah and Mudholkar JJ., identifying the difference in their reasoning; Golaknath — Subba Rao C.J.'s majority; Kesavananda — Sikri C.J. and Mathew J., and the difference between them. Memorise 4–6 significant sentences from each leading judgment (descriptions of Fundamental Rights as "sacrosanct"; the limits of parliamentary power; definitions of the basic structure). Presentation assignments: the doctrine of prospective overruling with every case applying it, and K.S. Puttaswamy (9 judges) on privacy.

PROFESSOR'S ASIDE

Look beyond grades and CGPA. Amitabh Bachchan, despite his stature, reaches the set first — often before the sweepers — and never performs without rehearsal. True achievement lies not in transient accolades but in the lasting impact of one's work and the integrity with which one performs it.

DAY 3
22 July 2026
Session A

Kesavananda Bharati — The 13-Judge Bench

Classroom conduct & BCI · The original Constitution as art · Sarva Dharma Sambhava · The case: facts, bench, arguments · The six majority ratios · Justice Khanna's pivotal opinion

Preliminary Remarks — Conduct and the BCI

- **Collective responsibility:** if classroom property is damaged and no student is identified, the replacement cost (e.g. Rs. 60,000 for a device) is recovered equally from the whole class — a written rule in the university manual.
- **Proxy attendance:** calling "Present" for absent peers' roll numbers leads to deduction; fraudulent claims undermine trust.
- **Medical leave abuse:** a student broke his leg playing football and demanded leave on the ground that the university "gave permission to play." Rejected: *"Who asked you to play? Is it compulsory from our side?"* — personal responsibility is not to be shifted onto the institution.
- **Bar Council of India directions:** faculty must be addressed as Sir/Ma'am; posting on social media about protests (or anything attracting legal action) is prohibited; the Internship Committee is to conduct an orientation on the BCI letter; violations are reportable to the BCI for disciplinary action.

The Original Constitution — Art and Symbolism

Students are directed to examine the original hand-written Constitution, illuminated by artists: calligraphy by **Prem Behari Narain Raizada**; depictions of Lord Ram; Lord Krishna imparting the Bhagavad Gita on a chariot — placed in the Directive Principles section to symbolise **Raj Dharma**; and figures from Islamic history, including Akbar, in Part 8. The artwork is a deliberate choice of the framers to represent India's diverse cultural and religious heritage, directly connected to the constitutional value of secularism.

Western secularism	Indian secularism (Sarva Dharma Sambhava)
Strict separation — "distance" — between State and religion; born of the Church–Ruler conflict	Equal respect for all religions; the State engages with every faith equally
Often excludes religious expression from the public sphere	Actively acknowledges the positive teachings of all religions

Western secularism	Indian secularism (Sarva Dharma Sambhava)
—	"Destroy India's ancient culture" appears nowhere in the Constitution — those who wrote it wrote it down themselves

Two models of secularism

Universal Teachings — the Gita and the Quran

> *Uddhared atmanatmanam natmanam avasadayet · Atmaiva hy atmano bandhur atmaiva ripur atmanah*
>
> — Bhagavad Gita — recited and expounded in class

Three lessons drawn: (1) **self-elevation** — a human being must elevate themselves through intellect, willpower and good deeds; nobody else can do it for you; external privileges are irrelevant without personal effort; (2) **avoiding despair** — one must not sink into laziness and bad thoughts (the anecdote: a colleague who would feign illness moments before class out of lack of confidence); (3) **mastery of the mind** — the mind is one's greatest friend or, uncontrolled, one's greatest enemy (the cautionary tale: a woman in Meerut who conspired with her driver to murder her husband).

PROFESSOR'S ASIDE

Now tell me, where in the Gita is it written that only Hindus have to control the mind? How did this become "non-secular"? This is for every human being! Do people who follow Islam never go into depression? If they are going into depression, to elevate them, we can tell them from the Quran as well. No, no — tell them from the Gita too!

From the Quran: a Pakistan case in which the court praised the Quran for identifying the two pillars of Islam as **tolerance and forgiveness**. *"If Islam says Tolerance and Forgiveness, why shouldn't this be taught to all Hindu children as well? ... See, our religions are one and the same in these aspects! They also say tolerance, we also say tolerance. They also say forgiveness, we also say forgiveness. This is what the Constitution wanted!"* The professor also criticised figures like Ramdev for commercialising spirituality — the scriptures teach that everything must be left behind, so true adherence precludes becoming a wealthy businessman.

The Case

His Holiness Kesavananda Bharati Sripadagalvaru v. State of Kerala

AIR 1973 SC 1461 · 13 judges — the largest Constitution Bench in Supreme Court history · decided 24 April 1973 · a deeply fragmented 7:6 verdict — "a 6.5 to 6.5 judgment" pulled to a majority by the Chief Justice · 66 days of hearing (the longest until the Ayodhya hearings, at about 63)

Facts · Kesavananda Bharati, chief of a Kerala religious sect (matha) which owned significant land, petitioned under Article 32 to enforce rights under Articles 25, 26, 14, 19(1)(f) and 31 against the Kerala Land Reforms Act, 1963 and its 1969 Amendment. While the petition was pending, the Indira Gandhi government passed the 24th, 25th and 29th Amendments (partly to overcome Golaknath), and the Kerala Land Reforms Amendment Act, 1971 was placed in the Ninth Schedule. The petition was amended to challenge the amendments themselves.

Held · By 7:6 — Parliament may amend any provision of the Constitution, including Fundamental Rights, but cannot abrogate or destroy the Constitution's basic structure or identity.

Principle · The Basic Structure Doctrine. Key advocates: for the petitioners, Nani A. Palkhivala (leader) with Daphtary, Chagla, Soli Sorabjee, Deewan and Harindranath; for the State, H.M. Seervai, Advocate General of Maharashtra — "the world's greatest constitutional jurist," not to be "limited" to a state role.

The central issue and the Preamble

What is the extent of the amending power under Article 368? Is it absolute, or subject to inherent or implied limitations? Can Fundamental Rights be abrogated by amendment — was Golaknath correctly decided, and what does "amendment" mean? On the Preamble: it was debated, discussed and passed by the Constituent Assembly in the same manner as all other provisions; adopted, enacted and given to ourselves with the rest; expressly declared by the framers to be part of the Constitution. It is not a mere guiding philosophy external to the document — it is an integral part of it.

Petitioners (Palkhivala)	Respondents (the State)
The power to amend is limited and restricted — it is not a power to destroy	The amending power is absolute, unlimited and unfettered
The Constitution was granted to secure freedom from tyranny; an unlimited amending power can be used to become tyrannical and take away all rights	Unfettered parliamentary supremacy is a basic principle of the Indian legal system
The features of freedom are at risk if not constitutionally protected from the whims of a transient majority	Socio-economic obligations may require amending property rights and other FRs
A restrictive competence was already voiced by Hidayatullah and Mudholkar JJ. in Sajjan Singh — continuation, not innovation	Even a democracy can be turned into one-party rule if power is not checked (noted in class with irony: an argument made by a State itself trending toward one-party rule)

The competing arguments

> **PROFESSOR'S ASIDE**
> *The biggest servants of Indira Gandhi were these two: Dwivedi and Beg. Dwivedi's case is understandable; he was related to a Cabinet Minister who was Indira Gandhi's right hand... What about Beg? Beg tried to be even more loyal than Dwivedi to Indira Gandhi, and later became Chief Justice too, because Indira Gandhi made him one!*

"With the Constitution" (majority)	Non-committed / pivotal	"With the Government" (minority)
C.J. S.M. Sikri; Justices Shelat, Grover, Hegde, Mukherjea, Reddy — the amending power cannot destroy the basic structure; their loyalty was to constitutional identity	Justice H.R. Khanna — the decisive, non-aligned vote	Justices S.N. Dwivedi and M.H. Beg (the "servants" of the government); A.N. Ray relatively more neutral among the six

Judicial alignments on the 13-judge bench (as described in the lecture)

The Majority — Ratio by Ratio

The students were made to read the ratios aloud in class. Each majority judge emphasised a different formulation:

Judge(s)	Core ratio	Essential features identified
C.J. S.M. Sikri	"Amendment of this Constitution" does not enable Parliament to abrogate Fundamental Rights or completely change the fundamental features so as to destroy its **identity**	Supremacy of the Constitution; republican and democratic form; secular character; separation of powers; federal character

Judge(s)	Core ratio	Essential features identified
Shelat & Grover JJ.	The power extends to all articles but is not unlimited so as to abrogate or change the **identity of the Constitution and its basic features**	Adds: sovereignty of India; dignity of the individual; unity and integrity of the country
Hegde & Mukherjea JJ.	The power is very wide but does not include the power to **destroy or emasculate** the basic elements or fundamental features	Basic elements / fundamental features
P.J. Reddy J.	Power is wide, but not wide enough to totally **abrogate or emasculate** Fundamental Rights or essential elements of the basic structure or destroy the identity	Abrogate / emasculate; identity; essential elements

The "identity" judges — four formulations of one idea

The decisive opinion — Justice H.R. Khanna

Khanna J. began by **rejecting implied limitations**: Parliament's power is wide, with no inherent restriction — which initially delighted the government. The turn came from the word "amendment" itself: *"The question has been posed ... whether the power to amend under the above article includes the power to completely abrogate the Constitution and replace it by an entirely new Constitution. The answer ... should be in the negative ... The word 'amendment' postulates that the old Constitution survives without loss of identity despite the change and continues even though it has been subjected to alterations."* A mere retention of trivial provisions while the basic structure is destroyed is no amendment: it is not permissible to touch the foundation or alter the basic institutional pattern. The power is not inherently limited, but **"amendment" necessarily excludes "destruction"** — change everything, but you cannot destroy the Basic Structure. His vote created the 7:6.

Philosophy, Tyranny and the Emergency

The professor connected the doctrine to social contract theory: government was formed for convenience, given limited power; by giving up freedom we took guaranteed rights; if rulers misbehave, we remove them — *"Locke was proved wrong by Indira Gandhi!"* The Indian design rejected both absolute parliamentary sovereignty (the British model) and absolute unrestricted rights (the early American model): rights are guaranteed but subject to reasonable restrictions (Articles 19(2)–(6)); Parliament is supreme but not sovereign to the point of destroying constitutional identity.

> **PROFESSOR'S ASIDE**
> *What did Indira Gandhi say? "I am absolute! I have unlimited power, unfettered power!" ... If such a restriction of Basic Structure hadn't been put on Parliament's power, who knows — today Indira Gandhi might have brought another amendment stating, "Even after I die, my descendants shall be Prime Ministers!" ... Today we can say with assurance: there are certain basic things that no matter what majority you get, you cannot change. (The professor attributes the force of this point to a debate with Professor Faizan Mustafa.)*

The Emergency (1975–77) illustrated unchecked power. Inder Kumar Gujral, then I&B; Minister, was dismissed for refusing to censor news and submit it for prior approval to Sanjay Gandhi — *"Do you want to stay a minister or not?"* The electricity of the Indian Express was cut off to prevent printing, generating the line of Indian Express cases vital to Article 19 jurisprudence. The principle of **Romesh Thappar** was invoked: circulation of a newspaper and dissemination of information are included within the right to speech and expression — the State cannot circumvent free speech by allowing printing but banning distribution.

KEY POINT

Self-reliance reiterated at close: all political parties — BJP, Congress, Owaisi — act in their own interest, not for students. *"That is why Lord Krishna said what I told you: You will have to elevate yourself! Nobody is going to elevate you."* And on federalism: C.J. Sikri declared the federal character a basic feature in 1973, yet academics still persist in calling the Constitution "quasi-federal" — a label the professor dismisses as incorrect and outdated.

Judge(s)	Core ratio	Key terminology
C.J. S.M. Sikri	Power to amend does not include power to completely change fundamental features so as to destroy identity	Identity; supremacy; republican/democratic form; secularism; separation of powers; federal character
Shelat & Grover JJ.	Power not unlimited; cannot abrogate or change identity and basic features	Identity & basic features; sovereignty; dignity of individual; unity & integrity
Hegde & Mukherjea JJ.	Power very wide but does not include power to destroy or emasculate basic elements	Destroy / emasculate basic elements
P.J. Reddy J.	Not wide enough to totally abrogate or emasculate FRs or essential elements of basic structure	Abrogate / emasculate; identity; essential elements
H.R. Khanna J.	No implied limitation, but "amendment" itself excludes destruction; the old Constitution must survive in substance	Basic structure; institutional pattern; survival of the old Constitution; amendment ≠ abrogation

Consolidated ratios of the seven judges on the winning side

DAY 4
22 July 2026
Session B

Article 13 Doctrines — Eclipse, Severability, Waiver

Two facets of Article 13 · Doctrine of Eclipse + decision map · Severability — the RMDC eight rules · Waiver — Basheshar Nath · Waiver vs estoppel

The Text and Its Two Facets

Article 13(1) addresses laws in force before 26 January 1950: inconsistent pre-constitutional laws are void "to the extent of such inconsistency." Article 13(2) is a prospective prohibition: "The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void." Article 13(3) defines "law" expansively — ordinances, orders, bye-laws, rules, regulations, notifications, customs and usages having the force of law; Article 13(4) (added by the 24th Amendment, 1971) exempts amendments under Article 368.

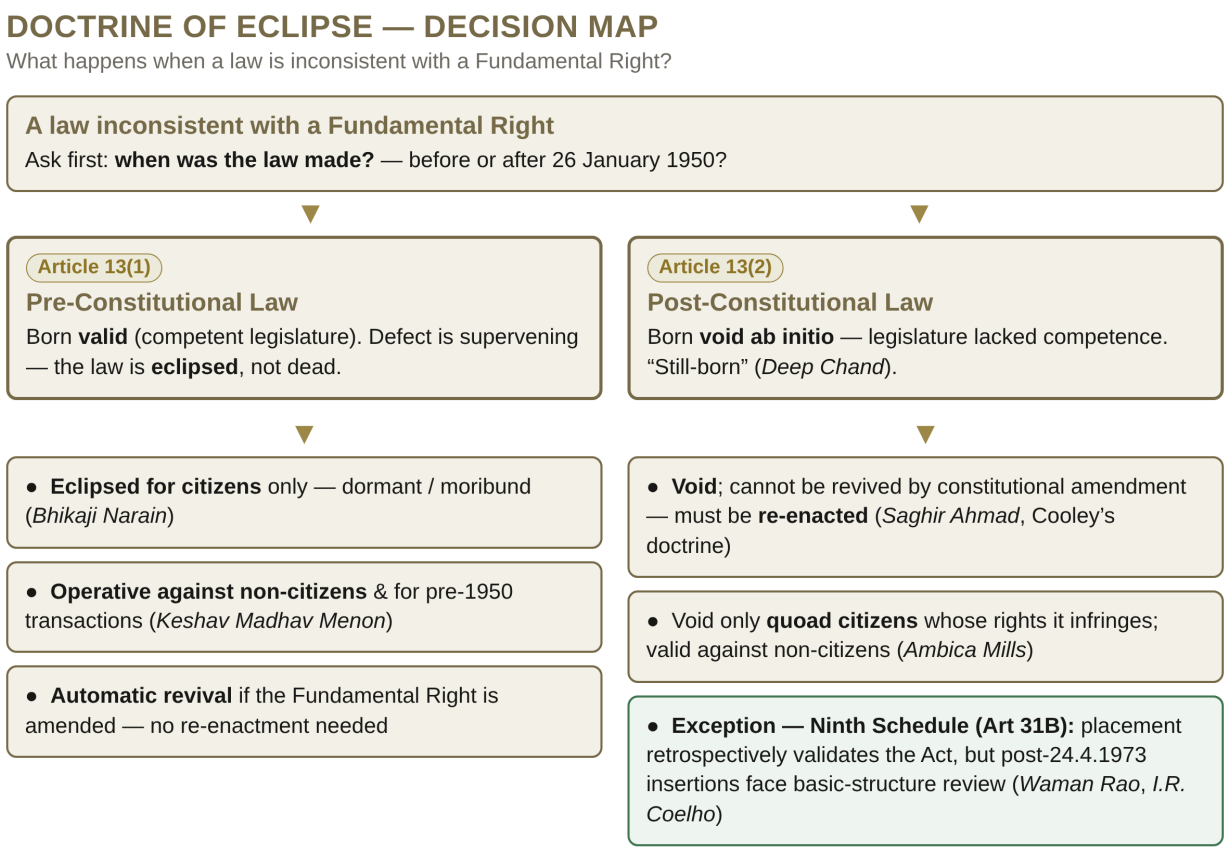
Aspect	Article 13(1) — pre-Constitution laws	Article 13(2) — post-Constitution laws
Competence at inception	Plenary — the enacting legislature was sovereign or fully competent; the law was born valid	Limited — the Constitution is the source of power; a Part III-violating law is made without jurisdiction, born void
The defect	Supervening inconsistency — an external event (the Constitution) creates inconsistency with an otherwise valid law	Inherent nullity — breach of a constitutional prohibition; a jurisdictional vice

Aspect	Article 13(1) — pre-Constitution laws	Article 13(2) — post-Constitution laws
Status on 26-01-1950	Eclipsed / dormant for citizens; enforceable for non-citizens and pre-Constitution matters; voidable, not void ab initio	"Still-born," void ab initio — a nullity from inception for all purposes
Effect of FR amendment	Automatic revival — the shadow lifts; no re-enactment needed	No revival — a dead law cannot be vitalised by amendment; it must be re-enacted
Jurisprudential basis	Power existed; enforcement against citizens was temporarily suspended	Ultra vires / want of jurisdiction
Theoretical outcome	Doctrine of revival	Doctrine of re-enactment

The fundamental dichotomy — the most tested distinction in the topic

Doctrine of Eclipse

The metaphor is astronomical: an eclipse does not destroy the celestial body, it merely obscures it. The Sun is the pre-constitutional law radiating legal force; the Moon is the inconsistent Fundamental Right; the shadow is Article 13(1); the Earth is the affected population — for citizens the law is in shadow, for non-citizens it shines fully. When the Moon moves away (the Fundamental Right is amended), the Sun automatically becomes visible again. The problem the doctrine solves: declaring all inconsistent pre-constitutional laws dead would destroy vested rights, past transactions and completed decrees, creating legal chaos.



Decision map for the Doctrine of Eclipse — and its post-Constitutional boundary

The four simultaneous states of an inconsistent pre-Constitutional law: (1) **as against citizens** — dormant or moribund, unenforceable; (2) **as against non-citizens** — fully operative, since Articles 15, 16, 19, 29 and 30 are citizens' rights (*Keshav Madhav Menon*); (3) **for pre-Constitution transactions** — fully effective, Article 13(1) not being retrospective (*Bhikaji Narain*); (4) **potential for revival** — automatic when the inconsistency is removed.

Bhikaji Narain Dhakras v. State of Madhya Pradesh (1955)

5-judge bench · AIR 1955 SC 781 · locus classicus of eclipse

Facts · The C.P. and Berar Motor Vehicles (Amendment) Act, 1948 — enacted under the Government of India Act, 1935 by a legislature with plenary powers — created a State monopoly in motor transport, clashing with Article 19(1)(g) as it then stood. The First Amendment (1951) added the state-monopoly clause to Article 19(6).

Held · Per B.K. Mukherjea J., unanimously: the impugned law "became, as it were, eclipsed, for the time being, by the fundamental right... Such laws were not dead for all purposes... It is only as against the citizens that they remained in a dormant or moribund condition." The amendment "removed the shadow"; the 1948 Act revived automatically — no re-enactment required.

Principle · Pre-constitutional laws are void only quoad citizens; supervening inconsistency is curable retrospectively by constitutional amendment.

Keshav Madhav Menon v. State of Bombay (1951)

AIR 1951 SC 128 · per S.R. Das J.

Facts · Prosecution under the Indian Press (Emergency Powers) Act, 1931 for publishing a pamphlet without prior authorisation; proceedings had begun before the Constitution.

Held · Article 13(1) operates prospectively from the Constitution's commencement; it does not invalidate past transactions or pending proceedings under laws valid when the act was done. "The voidness of the law is from the date of the commencement of the Constitution and not from an earlier date."

Principle · The distinction between void ab initio and void from a future date is the very foundation of the eclipse doctrine.

Deep Chand v. State of Uttar Pradesh (1959)

AIR 1959 SC 648 · 4:1 · per S.K. Das J.

Facts · The U.P. State Road Transport Act, 1951 — a post-Constitutional state monopoly — was challenged under Article 19(1)(g); the State invoked Bhikaji Narain's revival logic.

Held · Article 13(2) imposes a constitutional prohibition; the State legislature "had no power to make the impugned law." A post-Constitutional inconsistent law is "still-born" and void ab initio — "A dead law cannot be revived by any constitutional amendment... it must be re-enacted."

Principle · Eclipse applies exclusively to pre-Constitutional laws under Article 13(1).

Saghir Ahmad v. State of Uttar Pradesh (1955)

AIR 1955 SC 728

Facts · The U.P. Road Transport Act, 1951 (post-Constitutional) was challenged while the First Amendment's Article 19(6) change was in force.

Held · Applying Thomas Cooley's American doctrine: "A statute void for unconstitutionality is dead and cannot be vitalized by a subsequent amendment of the Constitution removing the constitutional objection but must be re-enacted."

Principle · The critical difference between pre- and post-Constitutional laws: a constitutional amendment does not retroactively confer jurisdiction on the legislature that passed the void law.

State of Gujarat v. Shri Ambica Mills Ltd. (1974)

AIR 1974 SC 1300 · per H.R. Khanna J.

Facts · The Bombay Labour Welfare Fund Act, 1953 (post-Constitutional) required employers' contributions; provisions were challenged under Articles 19(1)(f) and 14 by a company (a citizen).

Held · A post-Constitutional law void for violating Articles 14 or 19 is void only quoad citizens — the contravention exists only in relation to those entitled to the right. The law remains valid and enforceable against non-citizens.

Principle · Modifies the "still-born" theory by making it person-specific: void in personam for citizens, not void in rem against the world.

Revival through the Ninth Schedule — and the Dularey Lodh anomaly

Article 31B is the one great exception to the re-enactment rule: it deems a listed Act never to have been void — an absolute constitutional fiction applying to pre- and post-Constitutional laws alike. But its limits were later drawn: *Waman Rao* (1981) held laws added to the Ninth Schedule before Kesavananda (24 April 1973) to be beyond review, while post-1973 insertions remain challengeable; *I.R. Coelho* (2007, 9 judges) confirmed that any law placed in the Schedule after 24 April 1973 is open to review on the twin grounds of Part III violation and basic structure. *Dularey Lodh v. III Additional District Judge, Kanpur* (1984) is the anomaly — applying eclipse language to a post-Constitutional statutory bar blocking a decree: once the 1972 Act's bar was removed, "by virtue of the doctrine of eclipse the decree will revive and become at once operative and executable." It has not been followed as a general principle. The four arguments for extending eclipse to post-Constitutional laws: (1) legislative incompetence is relative to the Fundamental Right, not absolute — the law should not be treated as non-est; (2) Articles 200–201 and 213(3) contemplate laws of doubtful vires, implying some existence; (3) Parliament's power to repeal State laws (Article 252) presupposes their valid existence; (4) practical sense — re-enactment for a cured inconsistency is formalistic waste. **The settled position nonetheless remains Deep Chand's: eclipse is for pre-Constitutional laws only.**

Doctrine of Severability

Severability is embedded in the text — "to the extent of such inconsistency" — in both 13(1) and 13(2). Borrowed from American law (the "Doctrine of Separability"), the judicial function is to excise the malignant portion, not kill the organism; but if malignant and healthy tissue are inextricably interwoven, the entire statute falls. The twin test: **(1) separability in fact** — the valid and invalid parts must be physically and notionally separable; **(2) separability in intent** — would the legislature have enacted the valid part without the invalid? If either answer is negative, the whole Act falls.

Rule	Content (R.M.D. Chamarbaugwalla, 1957)
1	The intention of the legislature is determinative — the master rule: would it have passed the valid portion knowing the infirmity?
2	Where valid and invalid provisions are inextricably mixed, the invalidity of a part fails the whole
3	Where provisions are distinct and severable, the valid portion survives as a self-contained code
4	Even distinct sections forming a single integrated scheme may fall together — substance over form
5	If the remainder is "so thin and truncated" as to be materially different legislation, all falls
6	Judicial legislation prohibited — if severance would require rewriting, the court strikes down the whole; courts delete, never amend

Rule	Content (R.M.D. Chamarbaugwalla, 1957)
7	Substance over form — arrangement in the statute book is irrelevant; functional interconnection decides
8	External aids — legislative history, Statement of Objects and Reasons, title, preamble, scheme — may prove the hypothetical intent

The eight governing rules of severability

R.M.D. Chamarbaugwalla v. Union of India (1957)

AIR 1957 SC 628 · 5-judge bench · locus classicus

Facts · The Prize Competitions Act, 1955 defined "prize competition" broadly enough to cover both skill competitions (crosswords, essays — protected business under 19(1)(g)) and gambling (lotteries, lucky draws — res extra commercium, outside 19(1)(g)).

Held · The Act was unconstitutional as applied to skill competitions but valid as to gambling; the distinction was "clear-cut and well-recognized," and Parliament's primary object was the gambling evil. The Court read down the definition: the Act applies only to gambling competitions.

Principle · Severability by restricting application — the classic instance of saving an Act by confining it to the valid class.

Romesh Thappar v. State of Madras (1950)

AIR 1950 SC 124 · 6 judges

Facts · Section 9(1-A), Madras Maintenance of Public Order Act, 1949 — banning entry and circulation of journals "for securing the public safety or the maintenance of public order." "Public safety" was not a ground in Article 19(2) as it then stood.

Held · The provision fell entirely: the distinction between "public safety" and "public order" was "not precise"; severing the words would leave a power still capable of unconstitutional application — danger of misuse is the decisive factor.

Principle · Inseverability where permissible and impermissible applications cannot be cleanly separated.

State of Bombay v. F.N. Balsara (1951)

AIR 1951 SC 318

Facts · The Bombay Prohibition Act, 1949, challenged on multiple grounds.

Held · Eight specific unconstitutional sections were severed; the core Prohibition Act survived as a complete, workable code.

Principle · Rule 3 in action — distinct invalid parts removed, the rest upheld.

A.K. Gopalan v. State of Madras (1950)

AIR 1950 SC 27

Facts · Section 14 of the Preventive Detention Act, 1950 barred detainees from disclosing grounds of detention to a court.

Held · Only Section 14 violated Articles 19(1)(a) and 21; the rest of the Act was a complete code without it.

Principle · "Save as much of an Act as can be saved" — declare void only what must be void.

Mithu Singh v. State of Punjab (1983)

AIR 1983 SC 473 · 5-judge bench

Facts · Section 303 IPC mandated the death penalty for murder by a life convict — no judicial discretion.

Held · The classification (life convicts versus other murderers) lacked intelligible differentia, and mandatory death excluded judicial consideration of mitigating circumstances, violating Articles 14 and 21. Section 303 was a standalone provision, cleanly severable from the IPC's sentencing scheme (Section 302 continues to govern).

Principle · A penal provision excised cleanly; the rest of the Code operates normally.

The reconciliation came in **Superintendent, Central Prison, Fatehgarh v. Ram Manohar Lohia** (1960), per Subba Rao J.: in *RMDC* the two activities were conceptually distinct with no confusion risk; in *Romesh Thappar* the two purposes overlapped imprecisely, with a real danger the power granted for the constitutional purpose would be used for the unconstitutional one. **The decisive factor is the danger of misuse** — essentially a test of overbreadth.

Doctrine of Waiver

Waiver is the intentional, voluntary relinquishment of a known right. Its elements: (1) **knowledge** of the right; (2) **intention** to abandon it; (3) **voluntariness** — no coercion or duress. Can a citizen waive a fundamental right? The answer is a resounding **no**.

Basheshar Nath v. Commissioner of Income Tax (1959)

AIR 1959 SC 149 · 5-judge bench · majority of C.J. S.R. Das, Kapur and Subba Rao JJ.; N.H. Bhagwati J. concurring more broadly; S.K. Das J. dissenting

Facts · Basheshar Nath, a wealthy businessman, settled under Section 8A of the Taxation of Income (Investigation Commission) Act, 1947, agreeing to pay about Rs. 4.5 lakh in instalments. When Section 5(1) of that Act was held unconstitutional in Suraj Mall Mohta (1955), he stopped paying; the Department sought recovery as arrears of land revenue, arguing he had waived his Article 14 right by settling.

Held · Fundamental rights cannot be waived. Article 14 is a principle of public policy, the foundation of the Constitution — not a private right to be bartered away.

Principle · Justice Subba Rao's rationale: rights are limitations on State power, not gifts; “The large majority of our people are economically poor, educationally backward, and politically not yet conscious of their rights... They may, without understanding the consequences, agree to waive their rights. It would be the duty of the Court to protect them against themselves.” Waiver assumes equal bargaining power — a fiction in India.

Bhagwati J. went further: no fundamental right in Part III can be waived. The dissenter S.K. Das J. distinguished rights for the public benefit (Articles 15, 17, 18, 20, 21, 23, 24 — non-waivable) from rights for individual advantage (Articles 16, 19, and the Article 14 right at issue — waivable); the settlement falling in the second category, the petitioner had validly waived. The deep rationales of the majority: Part III is a charter of public policy (jus publicum), not a contract; allowing waiver would let the State extract rights-surrenders for licenses and settlements, making rights negotiable commodities; the Indian reality of unequal bargaining power imposes a paternalistic duty; and constitutional morality binds the State even where the individual does not insist.

The modern critique

Arvind Datar's critique: every right necessarily includes the right not to exercise it — the right to speech includes the right to remain silent; post-Puttaswamy decisional autonomy recognises informed choices to forgo rights (the reality-show contract; the voluntarily posted photograph). *Excel Wear v. Union of India* (1978) held that the right to carry on business includes the right not to carry it on — a choice inherent in the right. And *Olga Tellis*: estoppel cannot stand against fundamental rights; no individual act can validate a void law.

Aspect	Waiver	Estoppel
Source	Contract law — an agreement to release a right	Evidence law (s. 115, Evidence Act) — a rule preventing contradiction of one's own representation
Nature	Substantive and contractual — extinguishes a right	Procedural and evidentiary — bars the remedy, not the right
Basis	Intention of the right-holder	Conduct, reliance and detriment; intention to deceive unnecessary
Maxim	Quilibet potest renuntiare juri pro se inducto — inapplicable to fundamental rights	Allegans contraria non est audiendus
Application to FRs	Cannot apply — a fundamental right cannot be waived	Cannot apply — there is no estoppel against the Constitution

Waiver distinguished from estoppel

Doctrine	Source	Key cases	Core principle
Eclipse	Article 13(1) — pre-Constitutional laws	Bhikaji Narain (1955); Keshav Madhav Menon (1951); Deep Chand (1959); Ambica Mills (1974); Waman Rao (1981); I.R. Coelho (2007)	An inconsistent pre-Constitutional law is dormant for citizens, operative for non-citizens and past transactions, and revives automatically when the FR is amended
Severability	"To the extent of" in 13(1) & 13(2) — both classes of law	RMDC (1957); Romesh Thappar (1950); Gopalan (1950); Balsara (1951); Mithu Singh (1983); Lohia (1960)	Only the offending part falls if distinct and separable; if inseparable or misuse-prone, the whole falls; the test is legislative intent
Waiver	Judge-made limit from the nature of FRs as public rights	Basheshar Nath (1959); Olga Tellis (1986); Excel Wear (1978)	A citizen cannot voluntarily relinquish fundamental rights; no estoppel against the Constitution

The three doctrines of Article 13 — comprehensive comparison

APPENDIX

Full case list with citations as distributed: **Eclipse** — Bhikaji Narain AIR 1955 SC 781; Keshav Madhav Menon AIR 1951 SC 128; Deep Chand AIR 1959 SC 648; Saghir Ahmad AIR 1955 SC 728; Ambica Mills AIR 1974 SC 1300; Dularey Lodh AIR 1984 SC 1260; Waman Rao AIR 1981 SC 271; I.R. Coelho AIR 2007 SC 861. **Severability** — RMDC AIR 1957 SC 628; Romesh Thappar AIR 1950 SC 124; Gopalan AIR 1950 SC 27; Balsara AIR 1951 SC 318; Mithu Singh AIR 1983 SC 473; Lohia AIR 1960 SC 633. **Waiver** — Basheshar Nath AIR 1959 SC 149; Suraj Mall Mohta AIR 1954 SC 545; Olga Tellis AIR 1986 SC 180; Excel Wear AIR 1979 SC 25.

DAY 5
c. 23–24 July 2026

Basic Structure Consolidated & Article 14 Introduced

24th Amendment text · 42nd Amendment & Minerva Mills · I.R. Coelho and the Ninth Schedule · Dissecting Article 14 · The Salma & Prapti hypothetical

This session (undated; it recaps Kesavananda and sets up the Article 14 sequence) begins with the text of the amended Article 368. The 24th Amendment's Article 368(3) — *"Nothing in Article 13 shall apply to any amendment made under this article"* — and the consequential Article 13(4) were designed as a watertight separation between amending power and fundamental rights: Parliament's direct legislative answer to Golaknath.

From Kesavananda to Minerva Mills

Kesavananda (7:6) overruled Golaknath and upheld the 24th Amendment, but on the implied-limitation reasoning of constitutional identity: the Constitution possesses a fundamental identity, an essential character constituting its core; Article 368 grants the power to amend, not to destroy. Illustrative constituents of the basic structure identified across the judgments: supremacy of the Constitution; the republican and democratic form of government (one cannot amend in a monarchy or a foreign ruler); secularism; federalism and the distribution of powers; separation of powers; the Supreme Court's jurisdiction under Articles 32, 136, 141 and 142; and Fundamental Rights — while not all FRs are per se basic structure, some are so foundational that their destruction would violate it; the essence of Part III is protected.

The executive's retort was the **42nd Amendment (1976)**, the Emergency-era "Mini-Constitution." Article 368(4): *"No amendment of this Constitution (including the provisions of Part III) made or purporting to have been made under this article whether before or after the commencement of section 55 of the Constitution (Forty-second Amendment) Act, 1976 shall be called in question in any court on any ground."* Article 368(5) declared that there shall be *"no limitation whatever"* on the constituent power. The first clause was a direct ouster of the judiciary's Kesavananda jurisdiction; the second an assertion of unlimited power.

Minerva Mills Ltd. v. Union of India (1980)

Y.V. Chandrachud and P.N. Bhagwati JJ. prominent · suo motu cognizance of sections 4 and 55 of the 42nd Amendment

Facts · The immediate issue was a challenge under Article 31C, but the Court took up the validity of the 42nd Amendment's clauses (4) and (5) of Article 368 on its own motion.

Held · Twin holdings: (1) the Indian scheme vests supremacy in the Constitution, not in Parliament — Parliament is a creature of the Constitution; (2) judicial review of constitutional amendments is an integral basic feature. Article 368(4) was struck down as violative of basic structure; so was 368(5), which sought to destroy the limited nature of the amending power — itself part of the basic structure.

Principle · The final synthesis: Parliament may amend under Article 368; Article 13 does not bar amendments; but any amendment destroying the basic structure is void.

I.R. Coelho v. State of Tamil Nadu (2007)

9-judge bench · unanimous

Facts · Post-Kesavananda legislatures kept adding laws to the Ninth Schedule — some allegedly arbitrary, even near-100% reservation destroying equality.

Held · The cut-off is 24 April 1973, the date Kesavananda was decided. Any law inserted into the Ninth Schedule after that date is not immune from judicial review, and can be tested on the twin grounds of Part III violation and basic structure violation; if it fails, it is struck down.

Principle · Unchecked post-1973 insertion would render the Basic Structure Doctrine a dead letter. Open research question left to the class: does the doctrine apply only to amendments, or directly to any ordinary legislation (beyond the Ninth Schedule route)?

Article 14 — Dissecting the Text

> *"The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India."*
>
> — Article 14

Element	Analysis
"The State" — the duty-bearer	A vertical right enforceable against the State; Article 12 defines it. Test — Pradeep Kumar Biswas v. IICB (2002): financial, functional and administrative domination, or deep and pervasive government control. Even private universities (e.g. SRM, per the Chennai case) have been held to be "State"; a fortiori a National Law University established by State Act, with the Chief Justice as Chancellor and Secretaries (Finance, Law, Education) on its governing board, receiving substantial state funding — "500% State"
"Any person" — the right-holder	The word "citizen" is conspicuously absent, unlike Articles 15, 16, 19 and 29. The right extends to non-citizens, aliens, even artificial legal persons (companies)
"Within the territory of India"	The guarantee operates within the Republic's geographical boundaries — it prohibits discrimination even against a foreign national on Indian soil

Three foundational elements of the Article

The Salma and Prapti Hypothetical — Deconstructing the Textualist Argument

Facts: MNLU Nagpur's admission policy (eligibility for CLAT: "Citizen of India"). **Prapti**, an Indian citizen with CLAT rank 300, gains admission. **Salma**, a Pakistani citizen with rank 290 — higher merit — is denied solely for not being an Indian citizen. She petitions under Article 32. Her purely textualist argument: (a) Article 14 says "any person," not "any citizen"; (b) I am a person; (c) the State (MNLU, through admission committee head Dr. Disha Kher) has denied me equality before the law; (d) the policy discriminates between persons — one citizen, one non-citizen — treating my higher marks as inferior; (e) the policy is unconstitutional on the face of Article 14.

The Socratic demolition of the intuitive responses: **(1)** "The University's bye-law says so" — but the Constitution is supreme (Article 13(2)); a bye-law is tested against the constitutional standard, not on its own terms. **(2)** "She is not a citizen, so she has no right" — a legislative addition; the framers consciously used "any person" in Article 14 and "citizen" in Article 19; the interpreter cannot insert a word deliberately omitted. **(3)** "Article 29 (or 15) applies only to citizens" — a non sequitur; a challenge under Article 14 must be answered on the anvil of Article 14: *"You cannot defeat a claim for khichdi (Article 14) by serving chicken (Article 29)."* **(4)** "Equality before law differs from equal protection" — a semantic trap; the combined effect is a comprehensive mandate of non-arbitrariness. **(5)** "There are reasonable restrictions" — unlike Article 19, Article 14 enumerates none; the classification must pass the twin test of intelligible differentia and rational nexus, with the burden on the State.

THE OPEN QUESTION

The unresolved suspense — the threshold question for the next class: if Article 14's text is taken to its logical extreme, every law preferring citizens over non-citizens in state benefits would be unconstitutional — yet such laws are ubiquitous. Find the principle that harmonises the inclusive text of Article 14 with the sovereign right of a State to prefer its own citizens, without importing the word "citizen" into the text.

DAY 6
c. 24–25 July 2026

Article 14 — Reasonable Classification & the Nexus Test

Treating unequals equally · The two-fold command · Anwar Ali Sarkar — the dacoit case · Kathi Raning — the contrast · Chiranjit Lal — one person, one class

The Core Principle — Why Classification Is Essential

The right to equality is not a mandate for absolute, mechanical, rigid equality. To treat everyone identically regardless of differing circumstances, needs and conditions is not equality — it is injustice. The foundational maxim: **"Equals must be treated equally, and unequals must be treated unequally."** God and nature have created human beings with infinite variety — in upbringing, age, education, income, background and needs — so the law must classify persons and things into groups based on relevant similarities, applying appropriate rules to each.

- **Illustration 1 — dietary needs:** one person observes a religious fast (sabudana, fruits), another is non-vegetarian. If the mess serves chicken biryani to everyone and compels the fasting student to eat it "in the name of equality," that violates her rights; equally, forcing the non-vegetarian to eat only khichdi every day because another is fasting is injustice.
- **Illustration 2 — regional habits:** a person from Uttar Pradesh may eat four or five parathas for breakfast; a person from Maharashtra is satisfied with poha. A uniform "poha only" rule leaves the first hungry — a failure to account for different needs.
- **Illustration 3 — age:** a sixty-year-old has different physical, medical and dietary requirements from a twenty-year-old; applying the same standard to both is not equal treatment.

Hence the two-fold command of Article 14: (1) persons **similarly situated** (the same class) must be treated alike — if Niyati and Manaswi both fast but Niyati gets plain sabudana worth Rs. 15 while Manaswi gets sabudana vada with raisins and cashews worth Rs. 500, that is discrimination within a class; (2) persons **differently situated** may — indeed must — be treated differently. The critical question: how do we decide who falls into one class? That is the function of the Doctrine of Reasonable Classification and the Nexus Test.

Article 14 does not forbid classification; it forbids **class legislation** — discrimination against a class without any reasonable basis — while permitting reasonable classification. A legislature that cannot classify cannot govern. The burden of proving unreasonableness lies in the first instance on the challenger, though once a prima facie case of discrimination is made out it may shift to the State.

ARTICLE 14 — THE TWO-LIMB TEST FOR REASONABLE CLASSIFICATION

State of West Bengal v. Anwar Ali Sarkar (1952) · refined by E.P. Royappa (non-arbitrariness)

Step 0 — Identify the classification & the legislative object

Who is included, who is excluded — and **why** was the law made? (e.g. prohibition → public health + public order, not 'banning alcohol')

▼

Limb 1 — Intelligible Differentia? ✗ fails / ✓ satisfied

Is the basis for grouping **real, clear and substantial** — not fanciful or artificial? (Soldiers & sailors vs. civilians: yes. Unguided pick-and-choose: no.)

Limb 2 — Rational Nexus with the Object? ✗ fails / ✓ satisfied

Does that very difference **connect** to the purpose of the law? (Military discipline → not the poor the Act protects: nexus. 5-star hotels if the object is public health: nexus fails.)

Arbitrary → violates Article 14

"Arbitrariness is the antithesis of equality" — *E.P. Royappa*. Wherever there is unguided discretion, there is room for arbitrariness.

Valid classification

Presumption of constitutionality; challenger bears the burden. Courts defer to economic policy unless manifestly arbitrary (*R.K. Garg* bearer-bonds problem).

Either limb failing makes the classification void. A single person may constitute a class (Chiranjit Lal).

The two-limb test — the analytical spine of every Article 14 answer

State of West Bengal v. Anwar Ali Sarkar (1952) — the "Dacoit Case"

State of West Bengal v. Anwar Ali Sarkar

AIR 1952 SC 75 · 7-judge Constitutional Bench · 6:1 majority · Patanjali Sastri C.J. dissenting

Facts · The West Bengal Special Courts Act, 1950 provided for speedier trial of certain offences. Section 5(1) empowered the State Government, by notification, to direct that any particular case or class of cases be tried by a Special Court — with no guidelines, criteria or standards governing the selection. The special procedure was more stringent than the CrPC: ordinary procedural safeguards were withdrawn. Anwar Ali Sarkar and 49 co-accused, caught in an armed dacoity raid, were notified into a Special Court, tried, convicted and sentenced; he challenged Section 5(1) under Article 14.

Held · Section 5(1) unconstitutional. Limb 1 failed — no basis or criterion for classifying which cases go to speedier trial; selection rested on the subjective opinion of executive officers; change the officers and different cases would be picked: not "intelligible," but arbitrary and capricious. Limb 2 failed — how does unguided discretion serve speedier trial? The means (absolute discretion) are not rationally related to the end. Illustration: dacoities in five districts, two dacoits caught in each; District A's pair notified to the harsher Special Court while Districts B–E enjoy ordinary protections — discrimination within a single class (all dacoity accused), with no justifiable answer to "why these two?"

Principle · A law conferring absolute, unguided, unfettered discretion on the executive to classify persons or cases, without criteria or standards, violates Article 14.

Kathi Raning Rawat v. State of Saurashtra (1952) — the Contrast Case

Kathi Raning Rawat v. State of Saurashtra

AIR 1952 SC 123 · text of the impugned section virtually identical to the West Bengal Act

Facts · A Saurashtra State Ordinance empowered the government to send cases to Special Courts — but its preamble recited the exceptional law-and-order situation: widespread communal violence, dacoity, breakdown of the ordinary criminal justice system in named disturbed regions.

Held · Upheld. In context, the discretion was not unguided: the preamble itself channelled it — cases connected with the breakdown of public order were the legitimate target. The discretion was bounded by the statute's stated objective.

Principle · A provision identical in text may be valid or invalid depending on context, purpose, and the presence of guiding principles — in the statute or its surrounding circumstances. Noteworthy: Patanjali Sastri C.J. was a judge in both cases — dissenting in Anwar Ali Sarkar (to uphold) and in the majority in Kathi Raning (upholding).

Anwar Ali Sarkar (struck down)	Kathi Raning (upheld)
Act specified no categories of offences	Ordinance specified the categories — in the preamble and the disturbed regions
Uncontrolled discretion with the State Government	Clear guidance to Executive Magistrates
Failed the intelligible differentia test	Passed the intelligible differentia test

Two virtually identical provisions, two opposite outcomes

Can a Single Person Constitute a Class?

Chiranjit Lal Chowdhuri v. Union of India (1950)

AIR 1950 SC 41

Facts · A single “sick” industrial undertaking — a textile mill threatening the livelihood of over 1,30,000 people — was taken over by the government for better management; shareholders objected to being singled out.

Held · Yes — a single person or entity can constitute a valid class where it possesses unique characteristics distinguishing it from all others, and the law addresses that unique situation. Illustration offered in class: if one company causes 90% of an industry's pollution, a law addressing that company may be a valid classification.

Principle · The test remains the same: intelligible differentia plus rational nexus — even for a class of one.

Other Authorities and a Note on Judicial Fallibility

- **Ram Krishna Dalmia v. Justice S.R. Tendolkar (1958)** — the consolidating authority: several propositions summarising the law on Article 14 and reasonable classification.
- **In re: Special Courts Act** — further elucidation of the limits of special courts and Article 14.
- **Ex-Services Association v. Union of India (2006)** — cut-off date (1997) for retired servicemen's medical benefits: those retired before paid nothing, those after paid. The reasoning has been debated; students are encouraged to examine it critically and form their own views, with reasons.

PROFESSOR'S ASIDE

Judges, like all human beings, can err in reasoning. A judgment is not divine law. Justice Endlaw of the Delhi High Court, in the Delhi University photocopying case brought by Oxford University Press, delivered a celebrated judgment: "Copyright is not divine law" — a critique of the colonial mindset of blindly copying Western copyright laws, in a case where the library photocopied expensive textbooks for students who could not afford them. The principle may be right even where a given application is debatable.

Questions for Reflection — Answered

Q

Why is classification necessary for the application of Article 14?

A

Because equality is not identical treatment: treating unequals equally is itself a violation of equality. Without classification the State could not legislate for specific groups or problems; the power to classify is an essential incident of legislative power. Article 14 forbids only class legislation, not reasonable classification.

Q

What are the two tests for a valid classification? Explain with reference to Anwar Ali Sarkar.

A

(1) Intelligible differentia — a clear, real, substantial basis distinguishing those grouped in from those left out; (2) rational nexus between that differentia and the statute's object. In Anwar Ali Sarkar, Section 5(1) supplied no differentia at all — the executive's unguided pick-and-choose — and the conferral of absolute discretion had no rational connection with speedier trial. Both limbs failing, the provision was void.

Q

Why did Anwar Ali Sarkar succeed while a similar provision was upheld in Kathi Raning Rawat?

A

Context and guidance. The Saurashtra Ordinance's preamble supplied the criteria — offences connected with an exceptional breakdown of public order in named regions — channelling the executive's discretion toward a constitutional object. The West Bengal Act had no such internal or contextual guide, leaving naked discretion. Same text, different legal fate.

Q

Why is Article 14 placed before Articles 19 and 21 in the Constitution?

A

The lecture leaves this as the question for the next class: is equality more important than life (Article 21) and freedom (Article 19)? The placement is a conscious constitutional choice — the framework for answering it (equality as the first among the rights, and later the Golden Triangle that makes them co-equal) develops over the following sessions.

HOMEWORK

Reading list: Anwar Ali Sarkar; Kathi Raning Rawat; Chiranjit Lal Chowdhuri; Ram Krishna Dalmia v. Tendolkar; In re: Special Courts Act; Ex-Services Association (2006, critically).

DAY 7
27 July 2026

Equality Before Law vs Equal Protection of Laws

Scope of "person" · E.P. Royappa introduced · Historical disabilities · The basketball and IAS illustrations · Ten valid and five invalid classes

Foundations

Article 14's dual mandate: **equality before law**, a negative concept prohibiting special privileges and disabilities, of English origin; and **equal protection of the laws**, a positive concept requiring the State to treat equals equally and unequals unequally — justifying affirmative action and reasonable classification — drawn from the Fourteenth Amendment to the U.S. Constitution. The term "person" includes citizens, aliens (Pakistan, Bangladesh, Sri Lanka nationals alike) and companies, ensuring the protection against discrimination extends to every individual within Indian territory.

Reasonable Classification — The Working Cases

E.P. Royappa v. State of Tamil Nadu (1974)

(1974) 4 SCC 3

Facts · E.P. Royappa, a senior IAS officer serving as Chief Secretary of Tamil Nadu — the highest State-level IAS post — was moved out and made Deputy Chairman of the Planning Commission Board (a post declared equivalent in rank and salary), then OSD. He challenged the removal as arbitrary.

Held · Article 14 strikes at arbitrariness: a decision that is arbitrary is inherently unequal — a significant expansion beyond the traditional classification test. (The doctrine is taught in full on Day 10.)

Principle · The "New Doctrine of Equality": arbitrariness read as a facet of Article 14.

Anwar Ali Sarkar and Kathi Raning Rawat were revisited in compressed form with the comparison table (Day 6), and **Federation of Armed Forces v. Union of India** was added: a policy requiring retired armed forces personnel to make a one-time payment for lifetime medical facilities while active personnel received free treatment — the cut-off discriminating between similarly situated groups without a reasonable nexus may be unconstitutional.

Equality Before Law — The Negative Concept in History

The lecture illuminated the disabilities and privileges this concept abolishes through four historical episodes:

- **Mahatma Gandhi in South Africa** — thrown out of a first-class compartment at Pietermaritzburg despite a valid ticket, solely on race; the turning point of his life.
- **The Travancore breast tax** — lower-caste women prohibited from wearing upper garments unless they paid it; the tragic protest of **Nangeli**, who cut off her breasts.
- **"No peon, no water"** — Dalits denied access to public water sources; Dr. B.R. Ambedkar's own experience of not being allowed to drink water without a peon's assistance.
- **Karna's exclusion** — denied participation in Draupadi's swayamvar as a Suta-putra, not of royal lineage.

Equality before law abolishes these historical disabilities and privileges, creating a level playing field for all.

Equal Protection — The Positive Concept

Two illustrations anchored the positive dimension. **The basketball example:** two players, one six-and-a-half feet tall, one three feet; a uniform twelve-foot hoop advantages the taller — that is merely equality before law. True equal protection may adjust conditions to make the contest fair. **The IAS examination example:** Person A, born into affluence — optimal nutrition, top-tier education, coaching from infancy, social capital of judges and ministers acquired by daily osmosis; Person B, born into rural poverty — nutritional deficits, late schooling, no social capital. Applying an identical standard (same examination, same age limit, same cut-off) guarantees B's perpetual ineligibility: the competition is rigged not by individual malice but by historically accumulated structural advantage.

Criterion	Equality Before Law	Equal Protection of Laws
Origin	British legal tradition	American legal tradition (14th Amendment)
Nature	Negative concept	Positive concept
Command	The State shall not deny equality	The State shall afford equal protection
Function	Abolition of special, discriminatory privileges	Reasonable classification and positive discrimination to remedy structural disadvantage
Concept of equality	Formal — treating all alike	Substantive — treating unequals differently to achieve genuine equality
Illustration	First-class ticket: anyone holding it may travel	Reservation / quota system in education and employment

The two facets of Article 14 compared

HOMEWORK

Homework: create **10 valid classifications** satisfying both the intelligible-differentia and nexus tests, and **5 invalid** ones failing them; support each with case law where possible; keep the classes diverse (avoid multiple variations of "committees"). Also read: E.P. Royappa (1974) 4 SCC 3; Anwar Ali Sarkar AIR 1952 SC 75; Kathi Raning Rawat AIR 1952 SC 123; Federation of Armed Forces; and the historical incidents — Travancore Breast Tax, No Peon No Water — for the context of Article 14.

DAY 8
30 July 2026
Session A

Positive Discrimination & Social Justice

Discrimination as a global phenomenon · Code Noir & the French Declaration · Loving v. Virginia · Forms of affirmative action · Nivedita Jain · Individual exploitation vs social discrimination

The Universality of Discrimination

A common and erroneous criticism holds that social discrimination — particularly caste and untouchability — was uniquely Indian. Historically, systemic, legally sanctioned discrimination was near-universal. **Japan's Burakumin** ("hamlet people") suffered ostracism analogous to untouchability — residential segregation and restrictions on social intercourse — the existence of the very word evidencing institutionalisation. **Ancient Mesopotamia, Greece and Rome** divided society into rigid classes — free persons, slaves, citizens, non-citizens — with rights to property, contract and courts apportioned by status; law functioned as an instrument of exclusion.

The Code Noir (1685), promulgated by Louis XIV for the French colonies, systematised exploitation in 60 articles: it defined the legal conditions of slavery with precision, classified human beings as movable property (*meubles*) stripping them of juridical personality, mandated Catholicism and ordered the expulsion of Jews — remaining in force long after France's revolutionary declarations of universal rights. The heritability principle *partus sequitur ventrem* — the child follows the mother's condition — created the doctrine of "once a slave, always a slave." A comparative caution: India's bonded labour (prohibited by Article 23, including *begar*) is brutal, but the bonded labourer retains residual legal personality, unlike the chattel slave who was a *res* — a thing.

The **French Declaration of 1789** is celebrated as liberalism's foundational text, yet women were not entitled to citizenship, and property qualifications confined the vote to *citoyens actifs*; the poor and all women were *citoyens passifs* — civil rights without political rights. The most vaunted proclamation of equality in the Western canon was, at inception, a document for propertied white males. **Racial discrimination in the United States** persisted into living memory: until **Loving v. Virginia** (1967), anti-miscegenation laws were valid — Richard Loving (white) and Mildred Jeter (Black), married in the District of Columbia, were convicted on returning to Virginia under the Racial Integrity Act, before a unanimous Supreme Court held the statutes violative of equal protection and due process. The Nazi **Nuremberg Laws** (1935) — protecting "German or related blood" (*Blutschutzgesetz*) — were the most extreme expression of state-sanctioned social discrimination; the lecture also referred to recent conflict reports of checking sexual organs to determine religious identity before execution.

KEY POINT

Key takeaway: discrimination on grounds of race, caste, religion and sex was a global phenomenon. Indian society has — and continues to have — profound shortcomings requiring rectification; but the portrayal of discrimination as an exclusively Indian pathology is historically false and intellectually dishonest. Every society must confront its own legacy; the Indian constitutional project is a conscious, ongoing effort to dismantle inherited structures of injustice.

The Two Dimensions — and the Impossibility of Formal Competition

Equality before law is fundamentally prohibitory: post-independence, the sole criterion for a first-class railway compartment is a valid first-class ticket — whether the passenger is Black, White, Hindu, Muslim, Christian, Sikh or Parsi, of any caste or sex. Equal protection, by contrast, authorises and sometimes requires preferential treatment for the historically disadvantaged. The lecture's centrepiece contrast: **Child A** (the child of privilege — optimal nutrition and healthcare, top-tier resources from infancy, social capital: connections with judges and ministers, knowledge of institutions acquired by osmosis) against **Child B** (the child of disadvantage — poverty, health deficits, late schooling, informational deficits, systemic barriers). A purely formal, identical standard of competition guarantees B's perpetual exclusion from power, influence and advancement — the competition is inherently rigged by historically accumulated structural advantage.

PROFESSOR'S ASIDE

The early Indian Civil Services examination is the paradigm. For years no Indian succeeded — not for want of intellect, but because the examination tested a universe of knowledge centred on Christian theology and the Bible, entirely alien to the Indian experience. Questions like "Who gave the apple to whom?" were incomprehensible to a candidate not steeped in scripture. That was structural exclusion — and it shows why the professor says NEET has never operated on a purely meritocratic basis.

Forms of Affirmative Action

Form	Mechanism	Example
Preferential treatment (tie-breaker)	Equal marks, different social groups — the disadvantaged candidate (e.g. a Scheduled Tribe woman) is selected, equal achievement against greater disadvantage being greater merit	Two candidates at identical scores
Augmented scoring (bonus marks)	Marks added to raw scores by category	OBC +5; SC +10; ST +15; woman +10; woman with disability +5 — a disabled ST woman scoring 580 reaches 610
Quota system (reservation)	A fixed percentage of seats reserved; a reserved candidate may be selected with lower absolute marks, subject to any minimum threshold	India's chosen, "more robust" mechanism under Article 15(4) / 16(4)

Three modalities of positive discrimination

State of Madhya Pradesh v. Kumari Nivedita Jain

The limits of reservation

Facts · To fill backward-class medical seats, MP progressively lowered the qualifying marks from 50 to 45 to 35 to 30 — then removed the minimum entirely, permitting admission regardless of entrance score, even zero or negative.

Held · The Supreme Court upheld the State's action.

Principle · The extremity of compensatory discrimination — and, as the professor notes, evidence that medical admissions have grappled with the merit-versus-social-justice tension from the outset; NEET has never been purely meritocratic.

State of Madras v. Champakam Dorairajan (1951)

The trigger for Article 15(4)

Facts · Madras's Communal G.O. allocated medical and engineering seats by caste and community.

Held · Struck down under Article 15(1): discrimination on grounds of religion, race, caste. Consequence: the First Constitutional Amendment (1951) inserted Article 15(4), empowering special provisions for socially and educationally backward classes, SCs and STs.

Principle · The case that constitutionalised affirmative action in education.

The Taxonomy — Individual Exploitation vs Social Discrimination

Individual exploitation arises from personal relationships and private enmities — the abuse of personal power. The case studies from contemporary India: **Madhumita Shukla**, the poetess murdered by Uttar Pradesh's Amarmani Tripathi when she pressed for marriage after seeking his patronage; **Geetika Sharma**, the air hostess allegedly coerced into servicing the business clients of Haryana minister Gopal Kanda, who died by suicide leaving a detailed note; **Shivani Bhatnagar**, the journalist murdered through her entanglement with IPS officer R.K. Sharma in pursuit of access to the Prime Minister's Office; **Naina Sahni**, the tandoor murder victim of Congress politician Sushil Sharma. *"As long as the sun and moon exist, individual exploitation will persist"* — rooted in the ineradicable human capacity for passion, jealousy, greed and vengeance; law can punish it, not prevent it.

Social discrimination is categorically different: not personal enmity but membership of a targeted group — the victim harmed not for who they are but for what they are within the discriminatory structure. The archetype is Dr. Ambedkar: no personal enmity with anyone (his father was a respected Subedar); forced to sit outside the

classroom and denied water by peons — social boycott by caste. Maharaja Sayajirao Gaekwad of Baroda sponsored his studies abroad on merit. The grounds: **sex** (Sabarimala entry restrictions, litigated in Indian Young Lawyers' Association; historical denial of property rights, remedied only by the Hindu Succession (Amendment) Act, 2005); **caste** (hierarchy by birth imposing civil and religious disabilities); **race** (Jim Crow, apartheid); **religion** (assertion of one faith's supremacy; extremist interpretations denying the very right to life of others; the Nazi persecution as the extreme); and **economic status** (the Marxist critique of law as superstructural exploitation; Shakespeare's line — "The first thing we do, let's kill all the lawyers," *Henry VI Part 2* — a critique of law used to oppress the poor).

Criterion	Individual exploitation	Social discrimination
Basis	Personal enmity, private relationships, individual passion	Membership in a targeted group (caste, race, religion, sex)
Scope	Interpersonal	Systemic and structural
Target	The victim as an individual	The victim as a representative of a group
Remedy	Criminal prosecution and civil action for specific wrongs	Constitutional and legislative group measures — affirmative action, reservations, social justice
Persistence	Ineradicable so long as human passions exist	Dismantlable through sustained legal and social reform

The taxonomy applied to remedies

KEY POINT

Social justice is the telos — the ultimate purpose — of equal protection: the set of positive measures by which the State dismantles structures of social discrimination, recognising that formal equality is an insufficient guarantee of a dignified life for those subjected to centuries of systemic subordination. It demands conditions in which the historically disadvantaged participate in the life of the nation on terms of genuine, substantive equality.

DAY 9
30 July 2026
Session B

Applying the Two-Limb Test — The Prohibition Hypothetical

West Bengal Prohibition Ordinance · Finding the true objective · Testing exceptions A, B and C · The classroom vote · NEET rural age concession · R.D. Shetty and reading facts

The Hypothetical — West Bengal Prohibition Ordinance

A newly elected West Bengal government issues an ordinance imposing prohibition — a total ban on the manufacture, transportation, storage, sale, purchase and consumption of alcoholic liquor. Section 3's proviso exempts: **(A) military personnel; (B) foreigners; (C) consumption within 5-star hotels**. A citizen — "Niyati," in the classroom's casting — petitions under Article 14. Her arguments: (1) military personnel are citizens too, and she is "an army in herself, all alone"; (2) is she "any less than a foreigner"?; (3) the 5-star exception is discrimination purely by economic class — if the rich may drink in luxury, why not the person of modest means at home or in a 3-star hotel?

Step one — identify the true legislative objective

The ban is a means, not an end. The deeper objectives are grounded in the Directive Principles: **public health (Article 47)** — the State shall endeavour to bring about prohibition of intoxicating drinks injurious to health; **public order and safety** — prevention of alcohol-related crime and nuisance (the vivid illustration: a rickshaw-puller earning Rs. 300 a day who spends Rs. 500 on a bottle — the cascade of demanding money from and beating his wife, chain-snatching to finance the addiction, further crime under influence); and **protection of the vulnerable** — a paternalistic, welfarist rationale: the government is not opposed to drinking by those who can "afford and reconcile" it, but is deeply concerned for the poor.

Step two — test each exception

Exception	Intelligible differentia	Nexus analysis
A — Military personnel	A fundamentally distinct class: separate regulated society (cantonments), military discipline, unique stresses and sacrifices	Clear: they are not the vulnerable socio-economic class the Act protects; stable state-provided income; "trained enough" to know how much and when to drink. Precedent — upheld in State of Bombay v. F.N. Balsara (AIR 1951 SC 318)
B — Foreigners	A distinct juridical class: non-citizens, transient, not subjects of the State's socio-economic reform	Not offending international sensibilities; facilitating commerce and tourism; in colder-climate cultures (the Sikkim example — universal drinking as thermoregulatory norm) alcohol is integral to meals; the object of protecting the Indian poor does not rationally extend to foreign visitors' cultural habits
C — 5-star hotels	Economic elite — the clientele is a proxy for socio-economic status	For validity: a person spending Rs. 10,000–20,000 is definitionally outside the protected class — his drinking does not produce the theft and domestic violence over a Rs. 200 shortfall the Act targets; the classification perfectly serves the object. For invalidity: facially discriminatory by economic capacity — "it promotes inequality"; if the object were public health per se, the classification fails, for alcohol is equally harmful to the rich liver and the poor

Testing the three exceptions against the twin limbs

A classroom vote followed: an overwhelming majority held the classification invalid (for the petitioner); a small minority for validity. The lecture's conclusion: both sides are arguable — the outcome depends on which objective the court prioritises. F.N. Balsara is the seminal authority grappling with these precise questions.

RESEARCH TASK

Research assignment: in Bihar a prohibition law was challenged and initially declared unconstitutional; a subsequent ordinance, its flaws rectified, was upheld. Identify the first ordinance and the flaw in its classification scheme; then the second, and the legislative improvements that satisfied the intelligible-differentia and rational-nexus tests.

Hypothetical — Age Concession for Rural NEET Candidates

A Maharashtra ordinance grants a five-year age concession to students of rural (village) background appearing for NEET; city students get none. **For validity:** rural and urban students are distinct classes — documented lack of access to quality schools, coaching and infrastructure. **For invalidity (a student's counter-argument):** the classification is over-inclusive and outdated — a village child may attend a school superior to an urban slum's municipal school; a rich landlord's village child has every facility while the urban domestic worker's child in Dharavi has none; the classification fails to distinguish the rural rich from the urban poor. **The Supreme Court's view (per the lecture):** a blanket "rural" classification is unreasonable — it ignores the disparities within the urban category, particularly the uniquely disadvantaged urban slum-dweller, whose condition is often worse than the rural poor (who may retain community support and access to food). In the same judgment the Court **upheld** a classification based on mountainous or hilly terrain (the Uttarakhand example): the geographical hardship, sparse population and severe lack of accessible schools place all residents of that terrain at a fundamental disadvantage.

The Case Compendium — and the R.D. Shetty Lesson

Case	Basis of classification / key principle
State of West Bengal v. Anwar Ali Sarkar (1952)	Foundational two-limb test; unguided discretion to send cases to special courts struck down
State of Bombay v. F.N. Balsara (1951)	Prohibition-law exemptions for military personnel and foreigners upheld as reasonable
Chiranjit Lal Chowdhury v. Union of India (1950)	A single "sick" industrial undertaking — a class in itself; 1,30,000 livelihoods at stake
Kathi Raning Rawat v. State of Saurashtra (1952)	Special courts for named disturbed regions upheld — objective situation of public order
Air India v. Nergesh Meerza (1981)	Service regulation retiring air hostesses on first pregnancy examined — classification by sex and pregnancy
R.D. Shetty v. International Airport Authority (1979)	A tender requiring "5 years' experience in a 3-Star Hotel"; the contract awarded to a person with 10 years' experience running a tea-stall (tapri). Struck down: the class "3-star hotel management" is fundamentally different from "tea-stall management" — the authority failed to respect its own intelligible differentia

Landmark cases on reasonable classification

> **PROFESSOR'S ASIDE**
> *Read case facts with meticulous care. A colleague preparing to teach R.D. Shetty repeatedly missed the critical detail that the eligibility criterion was specifically "5 years of experience in a 3-Star Hotel." Because she skipped over the qualifier "3-Star," she never saw the legal problem — the authority had equated a 3-star hotel manager's experience with a tea-stall owner's. Without grasping the fact, the intelligible differentia at the heart of the case becomes invisible. The lesson: read facts with precision.*

The Method for Solving Article 14 Problems

Step	Question
1. Identify the classification	Exactly what groups has the law created? Who is included, who excluded?

Step	Question
2. Determine the legislative objective	Why was the law passed — what social evil, policy goal or constitutional directive (DPSPs)? The most critical step: a prohibition law's objective is not “to ban alcohol” but public health and public order
3. Test intelligible differentia	Is the distinction real, substantial, non-arbitrary? Is a rural student always differently situated from an urban one — or does the distinction fail between rich rural and poor urban?
4. Test rational nexus	Does that specific difference connect directly to the objective? Military personnel are different — but is their differentness connected to preventing alcohol-induced destitution? If the objective is public health, all consumption is harmful, and every exception's nexus fails

The four-step analytical method

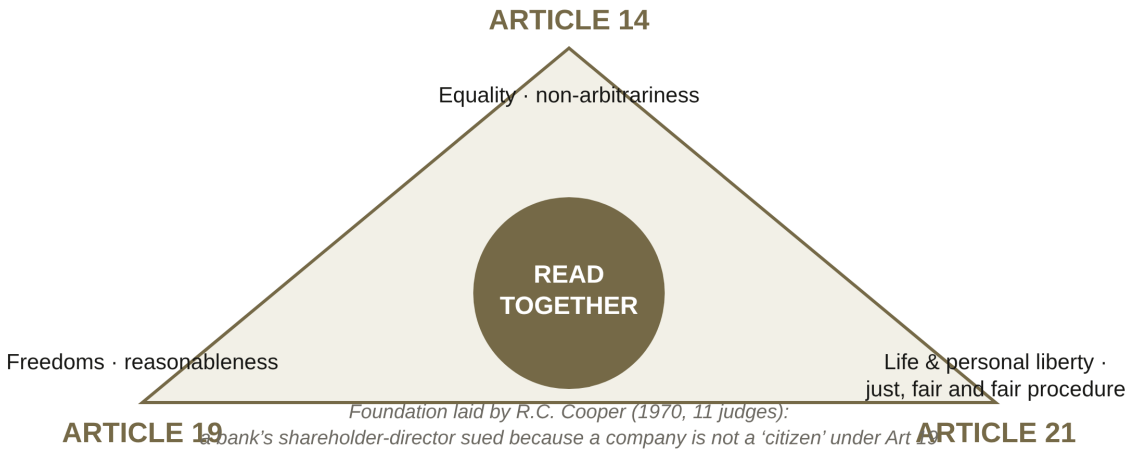
DAY 10
c. 31 July 2026

Non-Arbitrariness & the Golden Triangle

E.P. Royappa in full · What arbitrariness is · Kharak Singh · R.C. Cooper · Satwant Singh · Maneka Gandhi & post-decisional hearing · Marbury v. Madison · The Bearer Bonds problem

THE GOLDEN TRIANGLE

Maneka Gandhi v. Union of India (1978) — Articles 14, 19 and 21 are read together, not in watertight compartments



The Golden Triangle — Articles 14, 19 and 21 read together

The Journey from Classification to Non-Arbitrariness

Year	Case	Principle	Impact
1803	Marbury v. Madison	Judicial review; constitutional supremacy	Foundation of judicial power over executive and legislature
1962	Kharak Singh v. State of U.P.	“Life does not mean mere animal existence”	Article 21 expanded beyond physical survival

Year	Case	Principle	Impact
1970	R.C. Cooper (Bank Nationalisation)	Fundamental rights are interconnected	Foundation of the Golden Triangle
1973	E.P. Royappa v. Tamil Nadu	Arbitrariness is the antithesis of equality	Non-arbitrariness added as a test under Article 14
1978	Maneka Gandhi v. UOI	Golden Triangle (Arts. 14, 19, 21); post-decisional hearing	Interconnection of fundamental rights crystallised

Doctrinal evolution

E.P. Royappa v. State of Tamil Nadu (1973)

E.P. Royappa v. State of Tamil Nadu

AIR 1974 SC 555 · bench including P.N. Bhagwati and Y.V. Chandrachud JJ.

Facts · Royappa, IAS, Chief Secretary of Tamil Nadu — the highest State-level IAS post — was removed and appointed Deputy Chairman of the Planning Commission Board (the Chairman being the Chief Minister; the Deputy Chairman therefore the post immediately below), then made OSD. An official order declared the posts equivalent in rank and salary to Chief Secretary.

Held · He lost — he could not prove arbitrariness — but the principle was established. The petitioner's argument: equality is not determined solely by salary; power, position, prestige, status and respect are essential components (the classroom example: a professor given Rs. 5 lakh but assigned housekeeping duties is not made Vice-Chancellor). The State's answer — equal salary, equivalent posts, no discrimination — missed the point. Bhagwati J.: “Mala fide and arbitrariness are easy to claim, but hardest to prove.”

Principle · The flaw in the old law: where there is no comparator class (a person uniquely targeted), discrimination cannot be proven and Article 14 lies dormant. The new perspective: whether or not discrimination exists, if the State has absolute discretionary power or acts arbitrarily, Article 14 is violated. “Equality is a dynamic concept with many aspects and dimensions, and it cannot be ‘cribbed, cabined and confined’ within the traditional limits of classification.”

What is arbitrariness?

A decision based on whims and fancies — without reason, logic or justification; the opposite of a judicious decision. Its characteristics: (1) absence of reason; (2) whims and fancies — “I liked it, so I did it”; (3) lack of evidentiary support; (4) no consideration of relevant factors. Why absolute discretion breeds arbitrariness: every human being has preferences — someone likes chicken, someone biryani — and unfettered power lets personal preference govern. Discretion cannot be eliminated (governance requires it — if a fire breaks out, the teacher must evacuate the class; everything cannot be pre-written), but it must be structured, guided, reasonable. Proving arbitrariness is extremely difficult — *“as tough as proving the existence of oxygen without instruments.”*

The Three Pillars Before Maneka Gandhi

Kharak Singh v. State of Uttar Pradesh (1962)

first Indian citation of Munn v. Illinois

Facts · Police surveillance of a citizen, challenged under Article 21.

Held · "Life does not mean mere animal existence. It includes all those things which make life meaningful and beautiful. It includes the right to develop all our faculties."

Principle · The expansive reading of Article 21 from which the rights to privacy, to choose one's partner, and to live with dignity all descend — without this sentence, the constitutional protection for love marriages, personal relationships and individual autonomy would not exist. (Contemporary application: the Allahabad High Court recently scolded police for investigating a married couple's private life — protected under Article 21.)

R.C. Cooper v. Union of India (1970) — Bank Nationalisation

11-judge bench — one of only a handful in history

Facts · Indira Gandhi nationalised several banks. The petitioner was not a bank but a director and shareholder — because the right to property under Article 19(1)(f) belongs only to citizens, and a company is not a citizen; the bank could not sue, its shareholder-director could.

Held · The government argued it need comply only with Article 31, not Article 19. Rejected: "Nothing doing! They cannot be separated. While acting under Article 31, you must also comply with Article 19(1)(f)."

Principle · Fundamental rights are not watertight compartments — the foundation stone of the Golden Triangle, expressly acknowledged by Bhagwati J. in Maneka Gandhi.

Satwant Singh v. Union of India — the Passport Precedent

Facts · Before 1967 India had no Passport Act; issuance was executive discretion. Satwant Singh's passport was refused — "We denied it because we chose to deny it."

Held · The Court directed the government: if you want to deny passports, make a law; write down the reasons. Result: the Passports Act, 1967 — whose Section 10(3) authorised impounding "without assigning any reason, in public interest": absolute, arbitrary power.

Principle · The statutory hook that Maneka Gandhi would strike.

Maneka Gandhi v. Union of India (1978)

Maneka Gandhi v. Union of India

AIR 1978 SC 597

Facts · Two constables arrived at her residence: "Ministry of External Affairs — please surrender your passport." On asking why: "Orders from above. We don't know why." The government invoked Section 10(3) — impounding without assigning any reason — and defended it: "If we tell her the reason, she will run away!"

Held · The doctrine of post-decisional hearing evolved: in urgency the State may impound first, but must immediately (1) issue a notice stating the grounds; (2) afford a hearing; (3) continue the impounding only if justified, else return the passport. Section 10(3)'s absolute unguided discretion was arbitrary power, violating Article 14; and Articles 14, 19 and 21 are not mutually exclusive — any law depriving personal liberty must satisfy non-arbitrariness (14) and reasonableness (19) as well as Article 21. The Golden Triangle was formally established.

Principle · Outcome: Maneka Gandhi did not get her passport back — the case was dismissed on other grounds, continuing the pattern: Marbury (no relief), Kesavananda (no relief), Royappa (no relief), Maneka (no relief). Landmark cases create principles; they do not always grant relief to the petitioner.

Marbury v. Madison (1803) — the Origin of Judicial Review

Marbury v. Madison

5 U.S. (1 Cranch) 137 (1803) · Chief Justice John Marshall

Facts · The Constitution was 14–15 years old; no article mentioned judicial review. In the lame-duck period after John Adams lost the 1800 election, his party appointed 40 judges; commissions were signed and sealed, but some undelivered when Jefferson took office at midnight. Jefferson: "Throw these undelivered commissions away!" Marbury sought mandamus against Secretary of State Madison.

Held · Three issues: (1) Does Marbury have a right to the commission? Yes — the right vested when signed and sealed; "where there is a right, there is a remedy" (ubi jus ibi remedium). (2) Can the Court issue mandamus to the executive? Yes — in the most famous sentence of American constitutional law: "It is emphatically the province and duty of the judicial department to say what the law is." (3) Does mandamus lie in the Court's original jurisdiction? No — Article III, Section 2 does not cover it; Section 13 of the Judiciary Act 1789, which purported to grant it, was unconstitutional and void — the first federal statute ever struck down.

Principle · The political genius: the Court asserted the massive power of judicial review yet ordered no relief against the President, avoiding a confrontation Jefferson would likely have defied. "We will show our power, but we will not use it in this case." Marbury did not get his commission.

Applying the Tests — the Bearer Bonds Problem

Q

The government, to bring black money into the mainstream and fund new medical colleges, issues Bearer Bonds purchasable by anyone without questions about the money's source; after ten years the investment becomes white. A PIL challenges the Act under Article 14: it is an injustice to honest taxpayers who paid full income tax; it rewards dishonesty and encourages hoarding in expectation of future amnesty schemes. Decide.

A

(1) Presumption of constitutionality: courts presume a parliamentary statute valid; the burden is on the challenger. (2) Judicial deference to economic policy: courts do not intervene in policy, especially economic policy, unless it is manifestly arbitrary. (3) The two tests: intelligible differentia — is there a clear distinction between holders of black money and others? Yes, the classification is clear. Rational nexus — the object is to surface black money, fund medical colleges, improve the doctor-patient ratio; allowing investment without declaring the source directly furthers that object. Nexus exists. (4) Conclusion: the Act is constitutionally valid — it satisfies both limbs and, as an economic policy measure, deserves deference. (This is the pattern of R.K. Garg v. Union of India, the recommended original reading.)

EXAM TIPS

Examination tips: structure the answer Introduction → Facts (brief) → Legal Provisions → Tests Applied → Case Laws → Conclusion; use headings ("Intelligible Differentia," "Rational Nexus," "Non-Arbitrariness," "Presumption of Constitutionality"); cite cases with name, year and principle; quote judicial observations for weight; do NOT invoke "colourable legislation" unless genuinely applicable — misapplied doctrines cost marks; distinguish "arbitrary" from "mala fide"; always remember the Golden Triangle (cite Maneka Gandhi and R.C. Cooper).

> *"Arbitrariness and equality are sworn enemies. Equality cannot be crippled, cabined, cribbed, or imprisoned in some doctrinal limitations."*
>
> — E.P. Royappa v. State of Tamil Nadu

DAY 11
3 August 2026

Rule of Law I — Dicey & the Glorious Revolution

Meaning and definition · Dicey's book and its three parts · The Glorious Revolution 1688-89 · The three components · How to answer a Rule of Law question

Meaning and Definition

> *Rule of Law means that no man is above law and every person is subject to the jurisdiction of ordinary courts of law, irrespective of position and rank.*
>
> — The working definition

The phrase originates in the French *La Principe de Legalite* — the principle of legality: governance according to law, not according to the whims and fancies of any person. Black's Law Dictionary defines it as governance according to law; the Oxford Advanced Learner's Dictionary provides a similar definition. Rule of Law is a foundational concept of constitutional jurisprudence ensuring that everything runs by law.

Dicey and His Book

Professor Albert Venn Dicey systematically articulated the concept in *An Introduction to the Study of the Law of the Constitution* (1885), observing and documenting the prevailing circumstances in England after the Glorious Revolution of 1688-89: the powers of the monarchy curtailed, governance increasingly in the hands of the House of Commons — the common people. **Dicey did not create the Rule of Law; he observed and documented it.** His book was divided into three parts: (1) **The Sovereignty of Parliament** — which Dicey took to be fundamental, total and beyond challenge; (2) **The Rule of Law**; (3) the constitutional conventions. When Irish home rule returned to Parliament's agenda some three decades later, Dicey changed his mind about parliamentary omnipotence: in the final edition of *The Law of the Constitution* (1915) he lamented that parliamentary sovereignty had fallen prey to the party system.

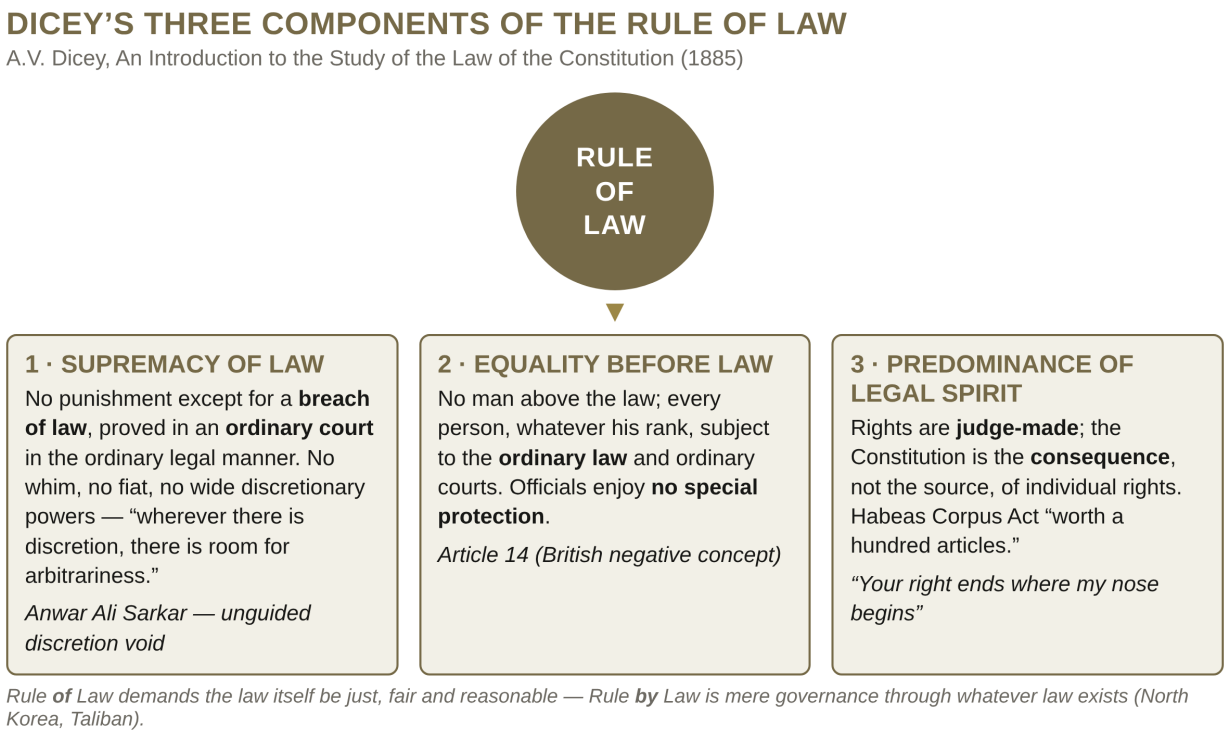
The Glorious Revolution of 1688-89

A watershed in British constitutional history establishing the supremacy of Parliament over the monarchy. It began on 5 November 1688 when **William of Orange, backed by a 21,000-strong army, invaded England**; uprisings in the north followed; by the end of 1688 James II had fled to France, where Louis XIV offered the king-in-exile his protection. The revolution was driven by a deep-seated fear of Catholicism and the belief that Catholics were plotting the overthrow of church and state — a conspiracy theory given credibility by genuine Catholic subterfuge, most notably the Gunpowder Plot of 1605. James II's authority had appeared secure on his accession in February 1685, but support ebbed as it became clear he wished not only freedom of worship for Catholics but removal of the Test and Corporation Acts so they could occupy public office.

In the months after James's flight, a Convention Parliament decided he had effectively abdicated; William and his wife Mary were declared joint monarchs — a minor Dutch prince became King of England. The **Bill of Rights (1689)** determined the monarch must be Protestant; the **Act of Settlement (1701)** went further, demanding that whoever inherited the Crown must "joyn in communion with the Church of England as by law established." The revolution established parliamentary supremacy — though the events of 1688 constituted a foreign invasion by the Dutch Republic; bloodshed in England was limited, but the settlement was secured in Ireland and Scotland by force and much loss of life. The revolution also fostered the growth of slavery by ending the Royal African Company's monopoly on the trade in 1698 — for the non-white inhabitants of the British Atlantic empire it represented not the

broadening of freedom but the expansion of servitude.

The Three Components



Dicey's three components — the architecture of the Rule of Law

1. Supremacy of Law

"No man shall be punished or made to suffer in body or goods except for the violation of the law, and such violation must be established in an ordinary court of the land and in an ordinary legal manner." Key elements: no punishment without law; punishment only through the ordinary legal manner; no arbitrary power — government cannot punish by its own fiat; no wide discretionary powers — persons in authority in Britain do not enjoy wide, arbitrary or discretionary powers; and **wherever there is discretion, there is room for arbitrariness**. The concept was necessary because before its establishment people acted according to their own will. The **Anwar Ali Sarkar** case exemplifies the violation: unguided State discretion to send cases for speedy trial without rational basis — one Collector might send a rape case for speedy trial because it received good publicity while another ignores a similar case. The law itself should specify what kind of cases go to speedy trial.

> **PROFESSOR'S ASIDE**
> *If a student expresses an opinion I disagree with, I cannot throw her out of class simply because I didn't like what she said. That would be acting on individual whims and fancies. The law gives everyone the liberty to hold independent opinions based on their own choice, conviction and thinking. If someone is to be punished, it must be in accordance with the law, not personal preference.*

2. Equality before Law

"No man is above the law and everyone, whatever his condition or rank, is subject to the ordinary laws of the land. Every person can sue or be sued in a court of law." Dicey was not concerned with equality in a general sense but with limiting official power in favour of individual legal rights. His two specific ideas: (1) officials as such enjoy no special protection — an official who abuses power is personally liable to anyone whose rights he violates, just as if he were a private citizen; (2) disputes between government and citizen are settled in the ordinary courts according to ordinary law, not in special governmental courts. The framers incorporated this into **Article 14**: "The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India." Equality before Law (the negative aspect — no special privilege will be created; no untouchability, no caste restrictions, no prohibition on wearing clothes on the upper body, no denial of access to ponds) was borrowed from the British tradition; Equal Protection of Laws (the positive aspect — no discriminatory and depressive status will be created) from the American.

3. Predominance of Legal Spirit

"The general principles of the British Constitution and especially the liberties of the individual are judge-made — the result of judicial decisions determining the rights of private persons in particular cases brought before the courts from time to time." Peculiar to Britain: the rights of individuals form part of and pervade the Constitution because they are secured by the courts. British Constitutional Law is not the source but the **consequence** of the rights of individuals as defined by courts. Referring to the Habeas Corpus Act, Dicey said it was *"worth a hundred Constitutional articles guaranteeing individual liberty."* He accepted there was Rule of Law in the U.S.A. because the rights declared in the Constitution could be enforced, the Constitution giving legal security to the rights declared.

The classroom explanation is the lecture's philosophical centre. Think of the hundred people you have known since childhood: how many would you have enmity with? A student estimates 80-20; the professor suggests closer to 90-95 neutral, 5-10 hostile. With most people we do not fight — we do not violate their rights, nor they ours. Even without a teacher or State present, peace prevails, because human beings are usually peaceful. **Even before the State or formal law existed, people lived in an orderly, non-volatile manner.** The famous maxim: *"Your right ends where my nose begins"* — possibly originating in France, later used by Abraham Lincoln and others: you may practice punching all you want, but it must not hit someone else's nose. This theory governed society even when there was no sovereign, no State, no king, no Prime Minister — a natural, self-regulating order.

> **PROFESSOR'S ASIDE**
> *The State might have made a few laws, but as human society evolved, some laws kept forming along with us. When the State came into existence, there were already existing laws. At the very least, the right to life, the right to food, the right to marry and the right to procreation were certainly already there. These rights were not given by any king or any State. Generally people respected each other and took care of each other — and such practices which became customs were, in essence, laws. The State came later to make it even better.*

Rule of Law vs Rule by Law

Aspect	Rule by Law	Rule of Law
Meaning	Work happens according to whatever law exists	The law itself must be just, fair and reasonable
Quality	No concern for justice or quality of the law	Law must have inherent quality, respect fundamental rights and human dignity

Aspect	Rule by Law	Rule of Law
Examples	A dictator's orders; oppressive laws	Laws respecting fundamental rights and promoting justice

The critical distinction

- **North Korea:** when the father of the "missile man" died, the new ruler ordered all subjects to weep, with tears in their eyes — anyone without tears would be killed. Not illegal, because the sovereign ordered it; but no fairness, no justice, no reasonableness — Rule by Law. (When dictators die, the professor observes, people actually celebrate.)
- **Taliban:** girls cannot study under existing laws — order without justice.
- **Women's rights:** in some interpretations Indian girls from Muslim households are given fewer rights, told not to get educated, married off early, made to wear a burqa — contrasted with Iranian girls who protested against the burqa by coming onto the streets and being shot at, some agitating that if forced to wear it they would wear nothing at all.

How to Answer a Question on the Rule of Law

The ideal structure, displayed on the PPT: (1) **Meaning** — the general definition; (2) **Dictionary definition** — Black's Law Dictionary, Oxford; (3) **Jurist's view** — the historical perspective. Sir Edward Coke, Chief Justice in James I's reign, was the originator of the doctrine in England; but Greek philosophers — Aristotle, Plato and Cicero — first wrote about it. Aristotle notably said that *"law should govern and those who are in power should be servants of law."* This introduction pattern (general meaning, dictionary definition, jurist's view) works for any topic — Rule of Law or Natural Justice alike.

Significance and Application

Dicey's thesis has been criticised from various angles, but his basic tenet stands: power is derived from, and is to be exercised according to, law — the absence of arbitrary and discretionary power, equality before law, legal protection of basic rights. In India the Supreme Court has read Article 14 to encompass non-arbitrariness: **E.P. Royappa** — arbitrariness is the antithesis of equality. In **Kesavananda Bharati**, the Court enunciated the Rule of Law as one of the most important aspects of the basic structure doctrine. The broad emphasis: absence of any centre of unlimited or arbitrary power, proper structuration and control of power. Government intervention in citizens' daily activities is ever-increasing, creating possibility of arbitrariness in State action — Rule of Law is the counter, because its basic emphasis is the exclusion of arbitrariness. Lawlessness and unreasonableness in government are its antithesis.

DAY 12
4 August 2026

Rule of Law II — Ancient India, Colonial Erasure & ADM Jabalpur

Attendance and honesty · The quasi-federal warning · Rule of Law in ancient India · Article 331 and the Anglo-Indians · ADM Jabalpur and the 44th Amendment · Justice Khanna's legacy

Classroom Interaction — the Honesty Principle

PROFESSOR'S ASIDE

I am not as stupid as students think — I remember faces and names even when students lie. One student claims her attendance is fine; it is actually fifteen percent — fifteen out of thirty-five classes. Lying and saying "I do come" will not help the situation improve; accept the truth so the problem can be addressed. I ask about attendance only for your betterment — I even help students at risk of being debarred, because a full year back is a serious consequence. I am not as cruel as students think; if someone genuinely cannot wake in the morning, I will jokingly arrange for a bucket of water to be poured over them. The rules exist and cannot be bypassed — but there is room for empathy if students are honest about their difficulties.

The NLU System — and the Quasi-Federal Warning

KEY POINT

The professor does not teach by reading from a book: whatever he teaches is what he expects in the examination. He has taught that the Constitution of India is **not quasi-federal**. Every book and article will say "quasi-federal" — the moment a student writes that word in an exam, they receive a zero and fail; he will not entertain a book brought to argue otherwise. The correct position, as taught: Dr. Ambedkar first said the Constitution is federal; the Supreme Court repeatedly said it is federal; later the Court declared federation part of the basic structure. *"Anyone writing quasi-federal is merely acting as a follower of a Western country. I am not Western. I am Indian."*

PROFESSOR'S ASIDE

A student from Nagpur — a local girl — is threatened, humorously, that eight to ten of us will come to her house for tea and to lodge a complaint about her attendance. In my local rustic language, "abusing" actually means criticism. When I taught IPS officers, criticising corruption — if the SSP is not corrupt, a traffic inspector does not have the courage to take money at a crossroad; the topic was the Prevention of Corruption Act — a huge complaint was made against me for taunting and abusing the very officers who had paid my airfare. And if we eat your salt, we cannot abuse you — but I still promise to visit; Symbiosis often hosts my lectures, so a visit is not impossible.

Rule of Law — Its True Origins in Ancient India

Since Equality before Law is drawn from the Rule of Law, the professor returns to its deeper origins. The Rule of Law is a concept very difficult to explain but very easy to understand. Books trace it only to Western countries; the professor asserts emphatically that **the Rule of Law has always been there in our country** — read any story from ancient India and you will find it. Natural justice can be considered part of the Rule of Law:

Lord Rama and Ravana — natural justice in the Ramayana

Classroom authority for the ancient Indian Rule of Law

Facts · Rama sent messages to Ravana not once but twice, warning him to return Mother Sita and avoid a destructive war; even during the war he gave repeated warnings.

Held · —

Principle · Rama told Ravana that he was a great and knowledgeable saint, and needed only to return Sita to be excused — notice and opportunity to amend before force: natural justice.

Yudhishthira's exile — the Mahabharata example

Facts · Yudhishthira lost the game of gambling; the condition was twelve years of exile and one year in an unknown place. Lord Krishna knew a war would take place — yet did not stop it.

Held · —

Principle · He insisted that the rule be followed: even the contemplated catastrophe did not justify setting aside the agreed condition.

Shravan Kumar — the devoted son

Facts · Shravan Kumar was carrying his blind parents; Lord Dasharatha accidentally killed him.

Held · —

Principle · The Rule of Law demanded that the king take responsibility for the care and protection of the dead boy's parents. King Dasharatha went to them and served them water; they ultimately cursed him to die of the same grief of losing a son. Dasharatha was a king — he could have avoided this, but the Rule of Law bound him. This is the true spirit of the ancient Indian Rule of Law.

The Colonial Erasure of Indian Legal Heritage

Why are these hundreds and thousands of ancient Indian examples ignored? Because of the British need to show dominance: had the British acknowledged that Indians had good things of their own, the Indian people would never have accepted their superiority. The narrative pushed was that Indians were inferior — "snake charmers." The professor dislikes the term intensely: *charm* actually means something good (a charming friend); the real satisfaction comes from the Hindi word *sapera*. *Did the British come all the way to India just to see snakes? If they liked India so much — why didn't they want to go back even after independence?*

The historical footnote: the British eventually folded their hands before people like Dr. Ambedkar and pleaded — with democracy, the public would elect representatives, but the British had fallen in love with India and were not going back. Since they would not win elections, they asked for **representation without elections**. Dr. Ambedkar granted the Anglo-Indian community two MPs in Parliament for ten years under **Article 331**; the professor criticises the Congress Party for repeatedly extending the provision until its removal by the **104th Constitutional Amendment**. If India was not good, no one would have wanted to settle here — from the Mughals to the British, everyone who came stayed. Even **Mark Tully**, the BBC reporter, came to report and stayed — the professor recommends him as an excellent writer.

EXAM DIRECTIVE

Examination directive: if asked about the Rule of Law, write a little bit about India. The professor states candidly that no matter how hard the "cockroach" tries, he thinks Modi will remain in power another three years and only Modi sympathisers would evaluate their answer sheets — but regardless of who is in power, **he** will be evaluating their papers. If a student writes that the Rule of Law came from Western countries, three marks will be deducted automatically. Search for and find references to the Rule of Law in ancient Indian literature — even new Indian literature is still older than Western sources. Decolonise your legal thinking.

ADM Jabalpur — the Darkest Hour of the Rule of Law

ADM JABALPUR — THE DARKEST HOUR AND ITS CORRECTION

"I am sorry, but the present law does not allow any relief." — Y.V. Chandrachud J., to Palkhivala's hypothetical of the shot innocent

1975–77	1976	THE DISSENT	1978	2017
THE EMERGENCY MISA invoked; Fundamental Rights suspended; detentions challenged.	**ADM JABALPUR v. SHIVKANT SHUKLA** Held (4:1): all rights flow from the Constitution — suspend the Constitution and there is **no right to life** left to enforce.	**JUSTICE H.R. KHANNA** "The only man who was not sold." Superseded — never made Chief Justice.	**44th AMENDMENT** Morarji Desai government: Articles **20 & 21 can never be suspended** — written into Article 359.	**PUTTASWAMY (PRIVACY)** Justice D.Y. Chandrachud: "Neither life nor liberty are bounties conferred by the State" — ADM Jabalpur expressly overruled.

Palkhivala's hypothetical: police mistake Aarya for Ishita and arrest her — "to hell with it, you are in our hands now." Under the majority's holding, even a shooting by a drunk policeman would have carried no remedy.

ADM Jabalpur and its correction — the timeline that must be memorised

ADM Jabalpur v. Shivkant Shukla

The Emergency case · habeas corpus during MISA detentions

Facts · During the Emergency, MISA (Maintenance of Internal Security Act) was applied and everyone was arrested under it; Fundamental Rights stood suspended. Detainees petitioned that they were wrongly detained and should be released. The Supreme Court then had very good judges — at least three beyond doubt: Justice Khanna, a very upright judge; Justice Bhagwati, who called himself the pioneer of human rights; Justice Y.V. Chandrachud, a very good judge — along with Justice Beg (whom the professor harshly calls Indira Gandhi's "peon") and Chief Justice A.N. Ray (made Chief Justice by Indira Gandhi, later changing his allegiance). It seemed the decision would be 4:1 for liberty.

Held · The shocking judgment came — the professor states bluntly that Indira Gandhi bought everyone; the only man who was not sold was Justice H.R. Khanna. The judges held: "The entire repository of the right to liberty is the Constitution. If the Constitution has not given the right, then you do not have the right at all. Since the Constitution and rights were suspended, there was no Right to Life left to protect."

Principle · The core: all rights come only from the Constitution — suspend the Constitution and you have no rights at all.

Nani Palkhivala's argument (appearing for the detainees) posed a terrifying hypothetical: suppose a girl committed a crime and the police went to arrest "Ishita," but by mistake caught an innocent girl, "Aarya," who protests she is not Ishita — and the police answer, *"To hell with it, you are in our hands now."* The darker question: during an Emergency, if a policeman, out of personal enmity or after drinking, simply shoots an innocent person without any crime — is there any remedy? **Justice Chandrachud's devastating response:** *"I am sorry, but the present law does not allow any relief."* A station house officer could come, shoot you, and you would have no legal recourse whatsoever. The professor tells students to read the case themselves — *"you will feel like abusing the judges even more"* — and recounts visiting Justice Bhagwati's home and bluntly asking him what had happened, whether he had consumed something.

The overruling — the 44th Amendment

Because it was a manifestly wrong decision, immediately after the Morarji Desai government came to power the **44th Constitutional Amendment** was passed: the Right to Life can never be suspended, even during an Emergency. **Two articles cannot be suspended — Articles 20 and 21.** The professor made the class chant "twenty and twenty-one" five times to memorise it: this is explicitly written in Article 359, which now reads "except 20 and 21." Thus ADM Jabalpur stands overruled by the 44th Amendment.

The emotional correction — Justice D.Y. Chandrachud

Justice D.Y. Chandrachud — son of Justice Y.V. Chandrachud — felt a deep sense of guilt over his father's betrayal. In the landmark Privacy case he wrote a powerful passage, read aloud in class: *"Neither life nor liberty are bounties conferred by the State, nor does the Constitution create these rights."* Our life and liberty are not a bounty (a gift) of the State or the Constitution; they are given by Nature or God, and the Constitution has merely accepted this fact — it is not the sole repository of these rights, which existed even before its advent. The exact opposite of what his father had written.

PROFESSOR'S ASIDE

The parable of the naughty father and the good son: a very naughty father abused everyone in the village his whole life. On his deathbed he told his decent son that everyone would abuse him after his death, and asked the son to do something to make people praise him. The son realised that if he did even dirtier work than his father, people would say the father was better — so while the father only abused, the son started throwing mud and dung at people. After a few days the villagers began saying, "His father was better!" D.Y. Chandrachud did something similar: to make his father look better, he wrote this profound passage — though it was not legally necessary, the 44th Amendment having already fixed the problem — explicitly writing that ADM Jabalpur is overruled, washing away his father's sin.

The Visit of Justice Sanjiv Khanna — Reading Cases Pays

PROFESSOR'S ASIDE

Justice Sanjiv Khanna — nephew of Justice H.R. Khanna — visited the university for convocation. Students, having been taught ADM Jabalpur, were eager for photos with him because of the heroic legacy: for his courageous dissent, H.R. Khanna was not made Chief Justice. I told Justice Khanna he had a huge fan following; he was surprised — Chief Justice for only five or six months, who would know him? I explained: he had converted the injustice done to his uncle into justice by rising to Chief Justice himself. He was pleased immensely and took photos with students for a long time.

PROFESSOR'S ASIDE

A PhD scholar, on her honeymoon in Kashmir, recognised Justice Sanjay Kishan Kaul at her hotel and called me for advice on what to say. I told her: quickly read two or three of his judgments, then tell him how much you appreciated his explanation of proportionality in the Privacy judgment. She did — and it led to a meaningful conversation. When Justice S.K. Krishna — a popular judge, Chairman of the Pay Commission — visited, I could engage him by recollecting his judgments and commission reports. The moral: when students read cases and judgments, they have something substantial to talk about with eminent people. Otherwise they will just come, eat food, leave — and not have a good life.

The Answer Structure, Again

A student (Athisha) reads the PPT aloud: meaning; origin in *La Principe de Legalite*; Black's Law Dictionary and Oxford definitions; then the jurists — Sir Edward Coke as originator in England, with the professor's gloss that Aristotle, Plato and Cicero wrote of it first. The professor notes he has provided everything in a concise seven-page document — *"acknowledging that you are 'useless' and won't read much, I have kept it short"* — which also covers the Modern Rule of Law as defined by the International Commission of Jurists and the United Nations, with many parameters and sub-points. Parliament in England made laws that controlled and limited the monarchy's power, subjecting the executive to law — the modern English form. The session closes with a compliment about the quality of teachers recruited at the university, despite the flaws of a former administrator.

DAY 13
5 August 2026

Rule of Law III — Heritage, Magna Carta, WJP & Subramanian Swamy

The exports debate · Sanskrit, Ayurveda and patents · Magna Carta 1215 · Subramanian Swamy v. Manmohan Singh · The World Justice Project · Legitimate Expectation homework

Indian Heritage, Exports and Traditional Knowledge

The professor opens with a reflection on how Indian traditions and products were systematically neglected after independence. If **sarees** had been exported to the world, India could have become economically strong much earlier — Aishwarya Rai once draped a saree for a European actress, demonstrating the global appeal of Indian attire; girls who do not feel like studying could, he jokes, go to Europe and open a business draping sarees at weddings and functions. The larger point: Nehru focused heavily on imports and neglected exports, believing there was nothing in India worth exporting — a fundamental flaw. A student counters that Nehru himself wore kurta-pajama and khadi; the professor replies that he is not asking Nehru to wear a saree.

- **Sanskrit** — "the most scientific language in the world"; research on Sanskrit is happening at NASA, yet Nehru stopped its teaching in India, insisting English was essential for progress.
- **Pilgrimage and tourism** — Ayodhya, a place of immense faith for crores, had no railway station while Faizabad, fifteen kilometres away, was developed with all trains stopping; Chitrakoot was ignored in favour of Karwi. When students suggest this avoided Hindu-Muslim conflict, the professor counters that no Muslim ever said a railway station should not be built at a Hindu place; those who objected should have been sent to Pakistan — India was divided on the basis of religion, and Hindus in Hindustan must have the right to live as Hindus.
- **Somnath** — the temple had been broken seventeen times; after independence Sardar Patel decided to rebuild it. There was a mosque at the site, but Patel requested the local Muslims to agree, noting the place had no specific Islamic significance like a visit from the Prophet; they agreed — today there is no conflict over Somnath. Nehru, by contrast, refused to allow similar temple construction in Uttar Pradesh — a political calculation, the professor argues, to secure votes by maintaining Hindu-Muslim tension; the ongoing disputes over Ayodhya and Mathura are the direct result.
- **Traditional medicine** — the professor's father prepared a medicine for cataract from the juice of a white bush which could cure even the highest level of cataract; Ayurveda was demoted, not promoted, and curing someone at home with it can today lead to jail. Turmeric, tulsi and neem are being patented by America, though Indian mothers have used tulsi water for sick children for generations. Had lakhs of such remedies been patented and

exported, the economic gains would have been enormous. He is not against Western medicine or clothing — people can wear pants and suits, but Indian products should have been marketed too. Modi popularised the Indian jacket, and now ninety percent of people wear it: proof that promotion works.

Q

A student argues: government priorities after independence were different — first feed the hungry during the Bengal famine, build ISRO, DRDO and the IITs, then turn to traditional knowledge. The professor's response?

A

"Tell me one institute opened to promote Ayurvedic medicine." When a student mentions AIIMS, he dismisses it as having only a neglected Ayurveda department — no dedicated government institute for Ayurveda was ever established. Even today millets and Indian generic foods have become globally popular — why was this importance not recognised earlier? Seventy years have passed, and the neglect continued throughout. A second student then makes the thoughtful point that those in power can only act on what they know: Nehru and Gandhi were educated abroad, absorbed Western philosophies of freedom and liberty, and naturally implemented what they had learned. The professor acknowledges the argument but, needing to move forward with the syllabus, humorously declares the student has "won for now," inviting a dedicated debate another day.

Rule of Law — Recap and Deeper Exploration

Why study the Rule of Law? One of its components, Equality before Law, is part of Article 14. **Supremacy of Law** means two things: no punishment except for violation of law, and no governance by individual whims and fancies (the classroom example of the opinion-expressing student). **Equality before Law** — all are equal, but all cannot be equal, which is why the theory of classification exists in both England and India. **Predominance of Legal Spirit** receives the interactive treatment: the most naughty student in class (Isha, self-certified) considers the hundred people she has known since childhood — her estimate of enmity is 80-20, corrected to 90-95 neutral, 5-10 hostile. With most people we do not fight: rights go unviolated on both sides; peace prevails even without teacher or State, because human beings are usually peaceful. Even before the State or formal law existed, people lived in an orderly, non-volatile manner.

FIND OUT

Homework attached to the maxim: find out who said "Your right ends where my nose begins" — it may have originated in France and was later used by Abraham Lincoln and others. The idea: you can practice punching all you want, but it should not hit someone else's nose; as long as there is distance, people do not interfere. This theory governed society even when there was no sovereign, no State, no king, no Prime Minister — no Nehru, no Modi. It is a natural, self-regulating order. Students are also directed to read the International Commission of Jurists' modern expansion of the concept.

Magna Carta (1215)

The professor traces the Rule of Law in England to 1215. Magna Carta was one of the first official documents about human rights — **the first written promise by a King not to do certain things**. In older times kings levied taxes on the public for personal whims: to fight wars for a princess; to build grand monuments for a deceased wife; simply to display power. The common people's blood was sucked through arbitrary taxation; there was no curb on the king's power. The **Barons of England** — not the common man, but middle-class people — confronted the king and threatened revolt; the king was compelled to accept: no taxation without consultation. This was the first time a king acknowledged that some people had some rights.

- Magna Carta was **not for the common man** initially.
- It was signed **not once but on several occasions** — each new king signed the charter afresh.
- The first version may have had only **fifteen items**; later versions expanded to **thirty-nine**.
- The words **"due process"** were used for the first time in Magna Carta — likely in Article 39 of a later version.

Rule of Law in India — Subramanian Swamy v. Manmohan Singh

Dr. Subramanian Swamy v. Dr. Manmohan Singh

Modern application of the Rule of Law

Facts · A government servant can be prosecuted for corruption only with the government's sanction. If a minister in Manmohan Singh's government was corrupt, permission to prosecute had to come from Manmohan Singh himself — naturally, it was not granted.

Held · The Supreme Court held that refusing sanction for the prosecution of a corrupt official is a violation of the Rule of Law.

Principle · The professor is criticising on the basis of this judicial pronouncement, not personal whims. Reading the case is compulsory — anyone who does not read it will fail the mid-term (though he later admits he has never actually framed a question on it).

The World Justice Project — Measuring the Rule of Law

The WJP attempts a new definition and annually audits countries. India is currently ranked around **76th** — lower, the professor feels, than deserved. His methodological critique: Scandinavian countries like Norway have smaller, more homogeneous populations and sufficient money, hence fewer problems; India's immense diversity brings unique challenges — *"many arrangements for anger"*: give reservation, the General category gets angry; don't give it, the rest get angry; permit Tazia processions, the idol-immersers get angry; permit idol immersion, the Tazia processors get angry.

WJP component	What it includes
Accountability · Open Government · Just Law · Accessible and Impartial Justice	The WJP's four main components (its restated pillars)
Constraints on government powers	Limited by the legislature, the judiciary, independent audit, and non-governmental checks
Absence of corruption	In the executive, judicial and legislative branches
Open government	Published laws, Right to Information, civic participation, complaint mechanisms — weakened in India because no matter how good a law Modi makes, Rahul Gandhi will never support it, and vice versa; party interest over national interest
Fundamental rights	Equal treatment, right to life, due process, freedom of opinion, belief, privacy, assembly, labour rights
Order and security	Crime control, limited civil conflict, no resort to violence for personal grievances
Regulatory enforcement	Effective enforcement without improper influence, no unreasonable delay, due process in administrative proceedings, no expropriation without lawful process and compensation
Civil justice	Access and affordability; freedom from discrimination, corruption and improper government influence; no unreasonable delay; effective enforcement; accessible ADR

WJP component	What it includes
Criminal justice	Effective investigation, timely adjudication, effective correctional system, impartiality, freedom from corruption and improper influence, due process rights of the accused — the professor humorously references an incident where a former Home Minister was beaten up, suggesting such things affect this parameter

The WJP conceptual framework, as read out in class

Where the Rule of Law is stronger, the economy is stronger (hard work rewarded, looting less); countries are more peaceful; people are more educated; people live longer. The Bihar example: it became poor because Jungle Raj replaced the Rule of Law — no one sets up a factory where they must pay bribes or risk kidnapping. And the Rule of Law can be applied anywhere, practically: students can measure it in their own university — do classes start on time; are syllabus and reading material provided; do teachers come on time; do exams and results happen on time — broken down into Academic, Hostel Management, Mess Management and Placement Cell parameters for NLU Nagpur.

Homework — Legitimate Expectation and American Equality

Legitimate Expectation: read what it is, where it started, how it developed, when it travelled to India, and two to four cases. The class votes to read the American equality cases before Article 15: **Plessy v. Ferguson (1896)** — "separate but equal" upheld, on the reasoning that "legislation is powerless to eradicate racial instincts or abolish distinctions based upon physical differences"; and **Brown v. Board of Education (1954)** — separate is inherently unequal, the reversal. Asked how he remembers exact dates, the professor answers: *"First love is never forgotten"* — a BBC London article reported that people who tried to find their first love after many years married them eighty percent of the time; for him the Constitution is his first and last love.

Personal Anecdotes — Capability and the Scholarship Issue

PROFESSOR'S ASIDE

In 2012 a gentleman approached me to teach CLAT coaching. I refused; when he persisted, I demanded three thousand rupees per lecture — fifteen thousand in today's money. He asked me to first give a demo class, because the students were "very naughty" and had chased away three teachers. I replied: "Throw your approval in the dustbin. I don't have time to give a test. If you bring lousy teachers, kids will do this only." I refused to negotiate and insisted on payment for all thirty classes upfront — joking that the director should not instigate the kids to chase me away after twenty-eight classes to avoid paying. My confidence came from knowing my subject thoroughly. Nidhi Mugreja, a good teacher, earns around six to seven lakh rupees a month teaching at Rahul IAS — possibly ten. In India there is no lack of employment; there is a lack of capable people.

PROFESSOR'S ASIDE

I belong to the General category, with no reservation, and have changed many government jobs, always thriving because of competence. I chose to stay in Nagpur because Delhi's pollution gave me respiratory problems and black spots on my heart — doctors said it looked as if I smoked twenty cigarettes a day, though I have never even seen a cigarette up close. Nagpur, especially the Mihan area, offers morning and evening walks and a peaceful life.

The scholarship saga: **Merit-cum-Means** had been interpreted by the Vice Chancellor for seven years as "Merit separate, Means separate," with scholarships given under two heads. Becoming Chairman of the committee, the professor argued that Merit-cum-Means means **Merit in Means** — just as a "Drawing-cum-Dining room" does not

mean the dining room and drawing room are separate. After a world-class research effort and a trip to the Executive Council, a judge ruled in his favour. New rules: only students with family income up to Rs. 8 lakh (the government's means criterion) are eligible, and within that group the toppers receive the scholarship; families with one crore rupees are not eligible at all. *"This is Rule of Law in action — and that is why people get angry with me. But if one keeps reading and building capability, one will always find work elsewhere."*

DAY 14
9–10 August 2026

The Article 14 Workshop — Twenty-One Problems, Answered

21 disguised problems on classification · The two-limb test applied · Section B's official answers · The course framework completed

The workshop distributed a problem sheet: twenty-one fact patterns (each a disguised constitutional problem) with a question, followed by a "Section B — Reasoning, Verdicts, and Doctrinal Test Applied" containing the model reasoning. **In the source notes, Section B survives only for problems 1 and 2 (the second cut mid-sentence);** the answers to problems 3–21 below are therefore worked out strictly on the course's own framework — the two-limb test, non-arbitrariness, and the precedents actually taught in these lectures. The pattern-answers below the two official ones are reconstruction, clearly marked.

The Problems and Answers

Q

1 · Prohibition with exemptions. A State bans liquor entirely in the interest of public health and temperance, but exempts soldiers and sailors consuming foreign liquor in military messes, canteens, warships and troopships, and foreign tourists possessing liquor under a special permit. Ordinary residents get no permit route. Is the exemption of defence personnel (separate service conditions, functional needs aboard ships) and foreign visitors (transient status, different customs) valid, even though allowing them to drink seems to work against the very purpose of temperance among the general population?

A

OFFICIAL SECTION B ANSWER: Defence personnel and vessels were already recognised as a distinct legal category under separate service and discipline laws, and foreigners were distinguished by their transient status and different customs — both real, non-fanciful differentia. The Supreme Court held that special treatment of a class already treated as distinct under other statutes has a rational nexus to practical governance — even though the High Court had earlier found no such nexus and struck the exemption down. (This is the pattern of State of Bombay v. F.N. Balsara, taught on 30 July.)

Q

2 · The rent-control cut-off. A rent law permanently frees all buildings constructed after a cut-off date from rent control, to encourage fresh construction. Decades later, the "new" buildings are over twenty-five years old, yet their landlords still enjoy total freedom, while equally old pre-cutoff buildings remain regulated forever. The classification made sense when passed — is it still valid to keep exempting them forever, with no time limit?

A

OFFICIAL SECTION B ANSWER (as far as the source preserves it): the classification — date of construction — was valid when first made, a genuine, verifiable distinction with a real incentive-based nexus. But a classification's validity is not frozen... [the source text breaks off here]. COMPLETION ON THE COURSE FRAMEWORK: ...at the date of enactment. The rational nexus between "newness" and the incentive object evaporates once the exempted buildings age into the regulated class's condition; perpetuating the distinction indefinitely, with no sunset, is a continuing failure of the nexus limb as applied today. The better view: the exemption was valid when made but is open to challenge as arbitrary in its continuing operation — the legislature must re-examine the cut-off.

Q

3 · The labour welfare fund. A law requires "establishments" — all factories, plus tramway and motor-bus businesses — to deposit unclaimed wages and bonuses in a welfare fund, but excludes businesses with fewer than fifty employees and government establishments other than factories. Is it valid to regulate only larger establishments and specific sectors, leaving out smaller trade businesses and most government bodies, on the reasoning that the legislature may tackle a widespread problem in phases?

A

VALID. The differentia is intelligible: large factories and public transport undertakings concentrate wage labour and unpaid dues; small trading businesses and non-factory offices present a smaller, more diffuse administrative problem. The nexus with the object — recovering unclaimed dues for workers' welfare where the problem is administratively concentrated — is rational, and the legislature may legitimately attack a widespread evil in phases, beginning where the concern is greatest (the pattern of the phased-approach reasoning taught with this problem).

Q

4 · The flat land tax. A State imposes a single flat rate per acre on "all lands," so the owner of fertile, income-generating farmland pays the same as the owner of unproductive forest yielding barely any income — one owner earned only a small annual income from roughly 25,000 acres of forest yet faced a tax demand many times his earnings. The law also lets government exempt "any land or class of lands" at its own discretion, with no guidelines. Is a flat rate on wildly unequal land valid, and is the unguided discretionary exemption valid?

A

INVALID ON BOTH COUNTS. First, imposing identical burden on admittedly unequal subjects — fertile versus barren land — is the very "equal treatment of unequals" that Article 14 forbids (the positive concept of equal protection, 27 July lecture): a rational tax would classify by productivity or income. Second, the unguided power to exempt "any land" is Anwar Ali Sarkar's vice in reverse — absolute, unguided executive discretion with no criteria, which fails the intelligible differentia limb and breeds arbitrariness (E.P. Royappa).

Q

5 · The pension line. The government liberalises the pension formula but applies it only to employees retiring on or after a fixed date; employees retired even a day earlier, with identical service of the same kind, quality and length, remain on the old, less generous formula for life. All served the same employer — is a line drawn purely on the date of retirement valid when the object was simply better financial security in old age?

A

INVALID. Cut-off dates are not per se unconstitutional, but the differentia must have a rational nexus with the object. Here the object — old-age financial security for those who rendered comparable service — is indifferent to the day of retirement; the classification neither identifies a class needing different treatment nor serves economy or transition (no such justification appears). Same-service pensioners are similarly situated; the day's difference is arbitrary in effect — the pattern of the cut-off analysis in Ex-Services Association (taught 24–25 July), where a cut-off discriminating between similarly situated groups without reasonable nexus was condemned.

Q

6 · The air hostesses (three sub-questions). An airline has two cabin-crew cadres: male flight pursers and female air hostesses. Air hostesses must retire at 35, or earlier on marriage within the first four years of service, or immediately upon first pregnancy — whichever first; pursers serve until 58. Extension beyond these conditions lies purely in the Managing Director's unguided discretion. (a) Are two separate cadres with different rules valid, given different recruitment sources and historical service conditions? (b) Is termination upon first pregnancy valid, on the theory that pregnancy affects ability to do the job? (c) Is it valid to let one official decide, with no written standard, whose service is extended?

A

(a) VALID — separate cadres recruited from different sources with different historical conditions can constitute an intelligible differentia; that much is not per se objectionable. (b) INVALID — a rule terminating a woman upon first pregnancy draws the line on sex and pregnancy alone. The “ability to do the job” rationale is over-broad: pregnancy is a temporary condition, not a permanent incapacity, and the rule spares the employer any individualised inquiry while visiting the entire burden on women alone — the classification fails the nexus limb and is sex-based discrimination of the kind Articles 14–15 target (Air India v. Nergesh Meerza was the course's designated case for exactly this regulation). (c) INVALID — the Managing Director's unguided discretion to extend service is Anwar Ali Sarkar's absolute, standardless pick-and-choose: wherever there is discretion without criteria, there is room for arbitrariness.

Q

7 · The degree-and-diploma split. Degree-holder and diploma-holder Assistant Engineers had formed one integrated cadre — equal pay, equal promotion prospects. New rules give degree-holders a higher pay scale and reserve promotion to Executive Engineer for degree-holders alone; diploma-holders, however senior, are no longer eligible. Is re-splitting a merged cadre valid, on the reasoning that a degree involves deeper theoretical training better equipping a person for the senior post's technical and managerial responsibility?

A

VALID. The differentia — formal engineering degree versus diploma — is real, verifiable and non-fanciful; the nexus — the senior post's greater technical and managerial responsibility requiring deeper theoretical training — is rational. The prior integration of the cadres is a fact of history, not a constitutional bar: the State may re-classify when the qualification genuinely correlates with the demands of the post. (The answer would flip if the degree bore no rational relation to the post's functions — then the split would be arbitrary.)

Q

8 · The black-money bonds. To pull undisclosed wealth into productive investment, government issues special bonds buyable with black money, granting immunity from questions about its source, protection from tax proceedings and certain exemptions — while honest taxpayers who declared and paid tax on everything receive nothing comparable. Is giving immunities specifically to holders of undisclosed wealth, where the stated aim is productive investment of black money, valid — or does it reward tax evasion at the expense of the honest?

A

VALID — this is the Bearer Bonds problem solved in class (c.31 July) and read as R.K. Garg v. Union of India. (1) Presumption of constitutionality; the burden lies on the challenger. (2) Judicial deference to economic policy unless manifestly arbitrary. (3) Intelligible differentia: holders of undisclosed wealth are a clearly distinct class. (4) Rational nexus: allowing them to invest without declaring the source directly furthers the object — surfacing black money, funding development. The emotional claim of "rewarding dishonesty" does not supply a constitutional ground; the hardship of honest taxpayers is not a listed vice in the classification.

Q

9 · The SC/ST test exemption. Departmental tests must be passed for promotion to a higher clerical grade, but the government may temporarily exempt in-service SC/ST employees for a limited period. A batch of promotions goes largely to exempted employees by seniority, ahead of a general-category employee who passed the tests. Is the temporary exemption valid, where the object is adequate representation of historically disadvantaged communities?

A

VALID. The differentia is intelligible — Scheduled Castes and Scheduled Tribes are historically disadvantaged and under-represented communities, the very class the Constitution's scheme of compensatory discrimination addresses (Articles 15(4) and 16(4) are facets of equality, not exceptions — the 13 August lecture). The nexus — securing adequate representation in public service — is direct. That some promoted employees had not passed the test while a general candidate had is within the logic of substantive equality: the Court has upheld even the removal of minimum qualifying marks for reserved candidates (Kumari Nivedita Jain). The exemption is temporary and targeted, not a permanent lowering of standards.

Q

10 · The single-company law. After a special inquiry into one textile mill in financial and managerial trouble threatening the supply of an essential commodity (cloth), Parliament passes a law naming that company alone — removing its managing agents and directors, letting government appoint new ones, curtailing shareholders' voting rights. No other company, even similarly troubled, is touched. Can a law targeting a single named entity be a valid classification, given that a "class" normally means a group of more than one?

A

VALID — a single person or entity can constitute a class where its situation is unique: the special inquiry established this company's specific financial and managerial crisis threatening an essential commodity's supply and a vast workforce's livelihoods — characteristics not shared by "similarly troubled" companies in the abstract. Chiranjit Lal Chowdhury settles that a class of one is permissible if the differentia is intelligible and the nexus rational. The shareholder's "hostile discrimination" argument is the strongest counter, but it fails because the law responds to demonstrated, unique facts, not hostility toward the named entity.

Q

11 · The pick-and-choose special courts. After communal riots, a State law allows Special Courts with a faster procedure dropping safeguards like jury trial and committal, but does not specify which offences, areas or cases go to them — government may by notification pick any individual "case" or "offence," with no guiding standard. Is free, case-by-case executive selection of who gets the harsher procedure valid?

A

INVALID — this is Anwar Ali Sarkar itself. Both limbs fail: no intelligible differentia (no criteria at all; the selection rests on executive whim — change the officer, change the cases), and no rational nexus (unguided discretion bears no connection to speedy trial). Persons accused of the same offence may face radically different procedures with no justifiable answer to "why me?"

Q

12 · The ordinance with built-in criteria. After integration of princely states, regions of the new State see organised armed robbery, dacoity, looting and murder; an ordinance itself names the disturbed regions and lists the serious violent offences (murder, dacoity, robbery and related) to be tried by a faster special procedure. A convict argues being tried differently from accused persons elsewhere is discriminatory. Does building the criteria into the law, rather than leaving unguided choice, make the classification valid?

A

VALID — this is Kathi Raning Rawat. The differentia is intelligible (named regions suffering an exceptional breakdown of law and order; named grave offences), and the nexus — a speedier, tougher procedure precisely where the ordinary system has broken down — is rational. Contrast Anwar Ali Sarkar: the guidance here is in the law itself, so no standardless discretion exists.

Q

13 · The custody-statement rule. Confessions to police are generally inadmissible, but a person in custody who gives information leading to a fact's discovery (say, a hidden weapon) may have the discovery-related portion of his statement proved — while a person not in custody making a full voluntary confession is governed by ordinary rules instead. Is treating custody statements differently valid?

A

VALID. The differentia is intelligible — persons in police custody face a materially higher risk of police pressure, inducement and fabrication, so their statements warrant a distinct, more restrictive admissibility rule. The nexus is rational: admitting only the discovery-related portion, verified by the actual discovery of the object, is a safeguard precisely calibrated to that risk — the corroboration of the fact guarantees reliability in a way a free-floating confession does not. Differential treatment keyed to a real difference in vulnerability satisfies both limbs.

Q

14 · The two tobaccos. A sales-tax law taxes one premium, largely export-oriented, cigarette-grade variety of tobacco while exempting the more common "country" variety used for chewing and bidi-making. Traders in the taxed variety argue there is no fair reason to single out their product while a competing product goes untaxed. Is taxing one commercial variety while exempting another variety of the same broad category valid?

A

VALID. The two varieties are genuinely different commodities — grown, cured, marketed and used differently; one is a distinct, higher-value, export-oriented product, the other locally consumed. The differentia is real and commercial, not fanciful; the nexus — taxing the higher-value commodity (and, implicitly, sparing the local consumption of the common variety) — is a rational revenue measure. A "same broad category" does not make sub-varieties a single class for all purposes.

Q

15 · The seventeen-month year. On a district's transfer into a newly formed State, a transitional provision fixes the "previous year" for agricultural income tax in that district as seventeen months (instead of twelve), with the rate computed on an adjusted average-annual-income formula; taxpayers elsewhere in the State use the standard year. The transferred district's taxpayers say the result is harsher and discriminatory. Is a temporary, one-time transitional computation valid?

A

VALID. Transitional provisions classify by a real and temporary necessity: reconciling two different accounting-year systems at the merger. The differentia — the transferred district — is intelligible and self-evident; the nexus — an adjusted computation period and averaging formula to bridge the systems — is directly rational. Genuine administrative difficulty at a one-time transition is a classic reasonable classification; it is neither permanent nor capricious.

Q

16 · The adultery exemption. An offence punishes a man for sexual relations with another man's wife without the husband's consent, but expressly exempts the wife — not even as abettor — however great her role. Is criminalising only men while completely exempting women valid, given that special treatment favourable to women is separately and expressly permitted by the Constitution?

A

VALID on the course's framework. The differentia is sex-based, but it operates favourably to women; the Constitution expressly contemplates special provisions for women (Article 15(3) — the "injection" against historically entrenched discrimination, taught 10–11 August). The legislature proceeded on the protective assumption that in the marital context the wife is the victim, not the perpetrator, and therefore withdrew her from criminal liability even as an abettor. A sex-based classification is not per se invalid; what Article 15(1) forbids is discrimination — hostile or prejudicial treatment — not protective differentiation.

Q

17 · The blanket bar on women in liquor premises. An excise law bans the employment of any woman — and any man under twenty-five — anywhere liquor is consumed by the public: bars, hotel restaurants, room service. The stated purpose is protecting women (and young men) from the environment's risks; trained hospitality professionals who are women are completely barred regardless of individual skill, experience or actual workplace safety. Is a blanket protective ban valid, or does it fail because narrower measures (workplace safety rules) could address the same concerns?

A

INVALID. Protective legislation for women is constitutionally contemplated, but the ban is over-inclusive and the nexus fails: the object — safety in the working environment — can be achieved by narrower, individualised means (safety regulations, conditions of service), so a total exclusion from an entire profession based purely on sex and age is disproportionate to the object. The classification assumes what it should prove — that every woman, whatever her training and whatever the actual conditions of a specific workplace, is endangered — and therefore treats the protected class as incapable of choice. The course's test: where a less restrictive measure serves the object equally, the blanket ban is arbitrary.

Q

18 · The fifteen-percent interview. A college admits students by written test plus interview, with more than fifteen percent of total marks allotted to the interview; each interview lasts two to three minutes and consists of formal questions about parentage and residence — nothing that tests merit. Some high-scoring written candidates are kept out while lower scorers enter on unexplained interview marks. Though every candidate passed through the same process, can the weightage be struck down as unfair and arbitrary in effect, even without a "classification" in the traditional sense?

A

INVALID. This is the E.P. Royappa extension: equality is violated not only by bad classifications but by arbitrary process. A component worth fifteen percent of the admission that, by its own design (two-to-three minutes, formal questions on parentage and residence), cannot assess merit, is irrational — the mechanism bears no relation to the object (selecting on merit). The identical application of an irrational process is still arbitrary; unexplained interview marks functioning as an unreviewable discretion fail non-arbitrariness even where every candidate was "treated alike."

Q

19 · The EWS quota's exclusion. A constitutional amendment allows up to 10% reservation for "economically weaker sections" — but only for those who do not belong to SCs, STs or OBCs (who already have their own separate reservation). It is argued that since poverty exists in every community, excluding the poor of already-reserved communities from the new quota discriminates against the poorest of the poor. Is treating "economically weak general-category citizens" as a distinct class from "economically weak persons from already-reserved communities" valid?

A

VALID — the position of Janhit Abhiyan v. Union of India, as taught on 10 August. The class "economically weaker sections of citizens not already covered by reservation" is coherent: the excluded communities already possess separate, older reservation benefits rooted in social and educational backwardness, so the new, purely economic quota reaches precisely those whom the existing scheme leaves out. EWS reservation is not caste-based, and it specifically excludes those already receiving benefits — it brings in people from castes previously outside the net rather than enlarging the same castes' entitlement. The classification identifies two genuinely different positions, not one class arbitrarily halved.

Q

20 · The 27% with creamy layer. A government order grants 27% reservation for socially and educationally "backward classes," identified substantially using caste as an indicator — while excluding the more advanced "creamy layer" within those communities so the benefit reaches the genuinely disadvantaged. Critics say using caste at all, then sub-dividing the backward class, is irrational and that economic status alone should have been the test. Is caste as an indicator (not the sole test) plus creamy-layer exclusion valid?

A

VALID — the position of Indra Sawhney. (1) Caste may be a starting point for identifying social and educational backwardness — in Indian conditions caste is a very real component of social position — but it cannot be the sole criterion; the identification here uses caste as an indicator within a broader assessment. (2) Excluding the creamy layer keeps the benefit targeted at those genuinely, not merely nominally, disadvantaged — the advanced members of a backward class have already escaped the disadvantage the measure targets. Both limbs satisfied: intelligible differentia (genuinely backward versus advanced members) and rational nexus (advancement of the actually disadvantaged).

Q

21 · The juvenile's date. An accused was a minor on the date of the alleged offence but had crossed the juvenile age by the time of investigation or production before the court. One view fixes juvenile status by age on the date of production; the other by age on the date of the offence. Which is more consistent with treating similarly-placed young offenders equally?

A

The date of the offence. The protective juvenile-justice procedure attaches to the person's condition when the act was done — that is the morally and legally relevant moment, common to all young offenders in like circumstances. The date of production is an accident of procedure: it varies enormously with how quickly or slowly a case moves, so two offenders identically situated at the offence would receive different treatment according to docket speed alone. Equality among similarly-placed offenders therefore requires fixing status by age on the date of the offence — the certain, rational basis; the production-date rule creates an arbitrary, litigation-driven lottery.

DAY 15
10 August 2026

Article 15 in Reverse — Discrimination, Caste, Prisons & EWS

The 93rd Amendment nexus critique · Thakur Pratap Singh police-tax case · Sukanya Samriddhi — caste in prisons · The caste census debate · The purpose of reservation · Article 15's five grounds · EWS and Janhit Abhiyan

The Assignment Check — and the ChatGPT Exchange

The lecture opens with the professor inquiring about the assignment: students confirm they have copied material up to the 93rd Constitutional Amendment and completed the objective section and Article 15. He directs a new task: *"Test the validity of the above classification with reference to the nexus test of Article 14"* — evaluating whether the 93rd Amendment's exemption of minority educational institutions serves the objective of educating poor children or breaks the nexus.

PROFESSOR'S ASIDE

When Prince reports that his result shows the classification as "valid," I strongly disagree. If the result shows valid, it means either you have not given the proper command to the analytical tool, or you are being a slave to the Supreme Court without critical thinking, or you are simply not reading the material properly.

The 93rd Amendment's Minority Exemption — the Nexus Critique

The professor's substantive critique (framed as his critique of the Congress party's approach, which he terms placing one community above everything — above the country, above any law): the objective of the RTE Act and the 93rd Amendment is that **poor children receive good education in good schools**. His rhetorical question is the crux of the nexus analysis: *Where is it written that they shouldn't get an education in minority schools? What problem is there with minority schools?* Properly analysed (he confirms he ran the exercise in another class that day and knew the outcome independently), the classification fails: poor children are one category needing assistance; private schools are a category separate from government schools; children fundamentally need to study. The minority-institution exclusion introduces an extraneous classification with no logical connection to the stated objective — *where is the classification for minority coming in? The point is whether it's a school or not a school.*

The Supreme Court in **Ashok Kumar Thakur** held minority institutions exempt because they are "specially protected by Article 30." The professor challenges this: are the rest of the people protected by the Constitution of Pakistan? The other schools operate under the Indian Constitution — Article 19(1)(g), the freedom of trade and business, protects all citizens, including those running non-minority private schools. And he articulates the hierarchy principle: **Articles 14, 19 and 21 are superior to other Articles in the constitutional scheme.** Article 30's protection cannot be elevated above Article 19. He characterises the failure to recognise this as "foolishness" and Ashok Kumar Thakur as "among all the terrible decisions," attributing the exemption to Congress's vote-bank politics. The practical reality check: who will educate a child in a Muslim madrasa? Would the students' own

parents educate them there? Muslims have very few schools besides Jamia Millia Islamia and Aligarh Muslim University — where even now, he asserts, "Islamisation" is occurring.

The Constitutional Hierarchy — and the Loudspeaker Example

Students are directed to examine Article 25: it opens *"Subject to public order, morality and health and to the other provisions of this Part"* — the critical phrase "other provisions of this Part" makes Article 25 subject to the rest of Part III, including Articles 14, 19 and 21. The contemporary illustration: the Supreme Court's ruling on **loudspeakers in mosques** — used at very high volumes creating noise disturbance, the practice was restricted because Article 21 (the right to life, read to include peaceful living without noise pollution) is superior to Article 25. If anyone's Article 21 rights are disturbed, Article 25 must yield. By the same reasoning, if Article 30 protection for minority institutions conflicts with Article 19(1)(g) rights or the equality framework, Article 30 must yield. Rahul Gandhi, the professor adds, now alleges judges engage in sycophancy for Modi as well — a pattern of judicial deference to political power across administrations.

State of Rajasthan v. Thakur Pratap Singh — Religion-Based Tax

State of Rajasthan v. Thakur Pratap Singh (or Sampratap Singh)

Taught as the Article 15 authority on religious discrimination

Facts · In a village plagued by dacoity, villagers requested the Congress Chief Minister to post additional police. He replied the government was "very poor" — the villagers would have to contribute for the extra personnel. The wealthy villagers agreed. But back in Jaipur, after consulting Rahul Gandhi, instructions came: do not collect money from Muslims. An Act followed, requiring villagers to pay the additional police tax — with an express exemption for Muslims.

Held · Such discrimination on the basis of religion violates Article 15(1), which prohibits discrimination solely on grounds of religion, race, caste, sex or place of birth.

Principle · The professor's ongoing bewilderment: when dacoity affects the entire village and everyone should contribute to the solution, why should Muslims alone be exempted? "Even today I do not understand the rationale." The case is taught as part of Article 15: discrimination in the name of religion is constitutionally prohibited.

Sukanya Samriddhi v. Union of India — Caste Discrimination in Prisons

Sukanya Samriddhi v. Union of India (2023/24)

CJI Dhananjaya Chandrachud · argued by Justice Muralidhar (former Chief Justice, Orissa High Court, engaged by the petitioner)

Facts · Sukanya — "a very dynamic journalist" — researched and revealed that caste-based discrimination persisted in Indian prisons decades after independence: work assignments were made by caste, Dalit prisoners assigned to dig drains and clean bathrooms, Brahmin prisoners assigned to cook. This despite Congress having amended the Constitution to declare India "Socialist Secular." Disturbed, she filed a PIL.

Held · Counsel argued that Article 15 explicitly prohibits caste discrimination, yet the prison system was recording prisoners' castes and assigning work on that basis. CJI Chandrachud made a landmark observation: there is no need to record caste anywhere, as recording facilitates discrimination. The Court directed that the caste column and references to caste in the registers of undertrial and convict prisoners "shall be deleted."

Principle · The judgment connects to Ambedkar's vision of a casteless society. The professor contrasts Rahul Gandhi's persistent four-year demand for a caste census as moving in the opposite direction, notes the BJP initially opposed it on the principled ground of a casteless society (consistent with both Ambedkar and the judgment) before political pressures forced a relent, and asks the class how many agree with the judgment — calling it "a great judgment." The underlying logic: if caste is not recorded, discrimination becomes harder; recording it facilitates discrimination.

The Caste Census Debate

The professor's critique of the caste census, in layers. Rahul Gandhi's formula: *"Jitni jiski sankhya, uski utni hissedari"* — as is the population, so is the share. The implied strategy: Dalits plus OBCs — together roughly ninety percent of the population (some add Muslims) — promised seventy to eighty percent reservation would secure their votes. The professor's challenge: *is the government distributing stolen goods that must be divided proportionally among thieves?* The constitutional anchors: the primary focus of the Constitution is equality; Article 16(2) prohibits discrimination of any kind; Article 16(4) provides reservation only where adequate representation is lacking, read with Article 335's requirement of efficiency of administration — together yielding the Supreme Court's principle that reservation cannot exceed fifty percent.

When a student raises the EWS reservation's breach of the fifty percent cap (upheld as part of the basic structure), the professor clarifies: EWS is fundamentally different — not caste-based, and specifically unavailable to those already receiving reservation benefits; it brings in people from other castes previously excluded rather than increasing benefits for the same castes. The dangers of the census: groups learning their exact percentages would demand proportional power — Dalits seeking the Prime Ministership where concentrated, Yadavas their strongholds — precisely the dynamic that led to Partition (Jinnah's argument that Muslims, a minority in a Hindu-majority country, would never genuinely come to power). Proportional reservation demands would bring violent protests, police firing — *he predicts at least fifty to a hundred deaths.* Vote bank politics is "the biggest evil of democracy": parties manipulating caste and religious identities, making groups fight while politicians secure votes. Even if seventy to eighty percent of the population belongs to certain castes, giving seventy to eighty percent reservation effectively ends the constitutional commitment to equality; since proportional reservation cannot constitutionally be given, there is no positive gain from determining exact percentages. He acknowledges the current government has also compromised on this principle for votes — but the ideal remains a casteless society.

The True Purpose of Reservation — Ending the Ruler-Ruled Divide

The professor's philosophical account opens with Manthara's couplet from the Ramayana, in Awadhi: *"Koi hoi Ram hame ka hani, cheri chhod na hoi bai rani"* — whoever becomes king, I lose nothing; I remain a servant. Under the old order, whoever ruled, the servants remained servants: the line between ruling class and ruled class was absolutely fixed. In monarchical systems no servant, however capable, could become king. **Reservation was designed to break this permanent divide.** By opening government positions to Dalits and backward classes, it aimed to erase the psychology of "I am the ruler and these are the ruled." Based on competence, anyone — Dalit or general caste — can become a Collector through the IAS examination, or a representative through votes.

Initially Dalits could not pass the IAS examination, necessitating modest reservation to provide the opportunity. The goal was to bridge the gulf so Dalits would not feel disconnected — not "what do we have to do with this country; we are peons anyway" — but rather: *"This country is ours too, and we are rulers of this country, and we are protectors of this country, and we have to do good for this country."* Reservation was to transform the psychology of the ruled class, lifting them from inferiority complex into patriotism and ownership — to make the ruled class part of the ruler class. **Economic empowerment was never the primary purpose.** The professor cites his own son, who never prepared an hour for a government job: a Chief Secretary earns perhaps Rs. 1.5–2 lakh monthly with privileges while in office, but afterward "they'll die of hunger" — one could earn more selling samosas. The craze for government jobs exists because of corruption; the day corruption ends, no child will aspire to government employment. His friend and NLU Jodhpur classmate, now a Group General Counsel, earns Rs. 4 crore annually — far more than any government position — talented people increasingly choose the private sector.

The Creamy Layer — Tina Dabi and Davinder Singh

Tina Dabi, IAS: her father is a General Manager in BSNL, her mother herself an IAS officer. With both parents high-ranking government officers for twenty-five years, what legitimate need remained for reservation benefits? If her children also avail reservation, the cycle perpetuates without addressing genuine disadvantage. The professor references Dr. Mahatme (nominated Rajya Sabha member, eye surgeon from Nagpur) who discussed this with him two or three times and compiled a list demonstrating the problem. The judiciary has now acted through **State of Punjab v. Davinder Singh**, permitting sub-classification within SC/ST categories — but Justice Gavai, himself a Dalit, faced significant criticism and abuse for supporting it, and the Modi government, seeking votes, filed an affidavit declining to implement it: vote bank politics again.

The Delhi Judicial Service Association Case (1991) — the Judge and the Police

Delhi Judicial Service Association v. State of Gujarat (1991)

Facts · A Gujarat judge, very strict with police officers over investigation quality ("Haven't done investigation, what are you doing?"), generated resentment in an understaffed, overworked force — running between crime scenes (a rape investigation interrupted by a truck-car collision with eight dead). The officers devised a plan: invited to the police station for dinner and inspection, the judge was pressed to drink — "I don't take it... but since you are pressing, I'll take it" — until inebriated. Then they beat him severely, shaved his head, placed him on a donkey, and paraded him: "Look, he's a judge, drinks alcohol and is unconscious — what judgment must he be giving!" The incident terrorised the entire judiciary; even IPS officers possibly involved were protected by fear — no one filed complaints.

Held · News reached Delhi; the judicial establishment was outraged. The Supreme Court held that even if the judge had consumed alcohol, the appropriate response was to put him in a car, take him home, and let him sleep — alcohol's effects dissipate naturally. The IPS officer involved was suspended; the Court issued guidelines on when and how a Magistrate may be arrested, providing procedural protections for judicial officers.

Principle · The life lesson drawn in class: one should not misbehave excessively with anyone. The professor admits his own mistakes — losing his temper, scolding people, having recently thrown someone out of his office for leaving mid-studies to watch a movie and sit in a bar (the theatre had a bar inside; second-year students bought alcohol elsewhere after the honest bar owner, checking identification, refused to serve minors under Maharashtra's age of twenty-one).

The Arrest Warrant Against the President

PROFESSOR'S ASIDE

Two men were drinking at 8 PM — a good time — debating judicial corruption. One insisted that with contacts — even just a judge's clerk — one could get anyone jailed; the other, honest like me, disagreed. A bet: Rs. 500 to get an arrest warrant against anyone named. The second man gave Rs. 5,000 and named the President of India, the Chief Justice of India, and the Governor of Gujarat. A "3rd class" magistrate actually issued the warrants. The winner had them published in a first-class newspaper: "THE HIGHEST LEVEL OF CORRUPTION IN JUDICIARY! Arrest warrant against the President of India!" — this in Ahmedabad; the judge was presumably suspended. The constitutional impossibility: arrest warrants cannot be issued against the President and Governor, who enjoy immunity under Article 361. Problems in the country have existed throughout history and continue to; none of it is unique to any political era.

Political Dynamics — the Evolution of the BJP's Approach

The BJP initially positioned itself as different — leaders like Atal Bihari Vajpayee and Murli Manohar Joshi maintained that while others might engage in dishonesty, they would not. Losing power changed the approach: Vajpayee's government fell by a single vote — cast by the Chief Minister of Orissa, who was not even supposed to vote in Parliament. A complete absence of morality, with enormous cost: an unstable government under a Prime Minister without real authority, then re-elections. The lesson absorbed: *"diamond cuts diamond"* — until one is willing to be somewhat dishonest, one cannot come to power. The professor expresses nostalgia for the earlier generation — Sushma Swaraj, Arun Jaitley, Pramod Mahajan, "top-class leaders" who could not secure power because they missed out on a little dishonesty, losing by a single improperly obtained vote.

Amit Shah's tit-for-tat response to political attacks and released videos: *"You got me beaten up for 10 hours, now I'll make it 50 hours for you. My video got released, now his will be released — get him beaten up in front of TV people!"* The professor showed the class a video of P. Chidambaram subjected to such treatment, criticising the cycle — a female student rightly observed that retaliation is wrong: removing corrupt leaders is appropriate, but adopting their methods undermines the moral justification. The same with scandal-whataboutery: "In our time paper leaked" — "So BJP's spokesperson says, 'In your time it leaked 10 times!'" The appropriate response should be: *"It leaked 10 times in your time — that's why we removed you. Now do something different."* The failure to break this cycle is a significant problem in Indian politics.

Article 15 — The Structure and the Five Grounds

In the Draft Constitution, Article 15 was numbered **Article 9**: "The State shall not discriminate against any citizen on ground only of religion, race, caste, sex, or any of them. In particular, no citizen shall on grounds only of religion, race, caste, sex or any of them be subject to any disability, liability, restriction or condition..." The historical context ties to Article 14's treatment of disabilities — Nangeli, denied upper garments; communities denied water and education — the disabilities Articles 14, 15, 16 and 17 were designed to eliminate. Article 15 now contains **six clauses**: 1, 2 and 3 from the original Constitution; 4 (First Amendment, 1951); 5 (93rd Amendment, 2005); 6 (103rd Amendment — 10% EWS).

ARTICLE 15 — STRUCTURE OF THE SIX CLAUSES

Draft Article 9 · three original clauses + three added by amendment

ORIGINAL TEXT · 1950		ADDED BY AMENDMENT	
15(1)	No discrimination by the State on grounds **only** of religion, race, caste, sex, place of birth *1950*	**15(4)**	Special provisions for **socially & educationally backward classes**, SCs & STs — response to *Champakam Dorairajan* *1st Amdt 1951*
15(2)	No discrimination in access to shops, restaurants, hotels, wells, tanks, roads — places of public resort *1950*	**15(5)**	Extends reservation to **private unaided** educational institutions — **except minority institutions** (Art 30) — *Ashok Kumar Thakur* *93rd Amdt 2005*
15(3)	Special provisions for **women and children** *1950*	**15(6)**	**10% EWS** reservation for economically weaker sections — *Janhit Abhiyan* *103rd Amdt 2019*

Tablet vs. injection (professor's analogy): Article 14 is the slow general medicine; Articles 15–17 are injections against specific, historically entrenched discriminations.

Article 15's six clauses — three original, three added by amendment

The tablet-versus-injection analogy

Article 14 is a **tablet** — general medicine working slowly, its application requiring interpretation (is the classification reasonable? does it pass the nexus test?), with the risk that courts, following flawed reasoning like Plessy v. Ferguson, reach wrong conclusions under the guise of formal equality. Articles 15, 16, 17 and 18 are **injections** — immediate, specific prohibitions of the particular discriminations that have historically plagued Indian society. Dr. Ambedkar, understanding how deeply entrenched these practices were, did not want their elimination to depend on the chances of judicial interpretation: he wanted the existing problems eradicated instantly, hence the specific provisions despite the general guarantee.

Ground	Notes from the lecture
Religion	Persecution pervades history — European Catholic–Protestant conflicts above all. Laws cannot be made on religion alone; the professor questions how the Haj subsidy (8–10 years ago, benefiting only Muslims going on Haj) was constitutionally justified — possibly as "poor Muslims" (religion plus another factor)
Race	Ethnic origin and physical features — Nepalis, Afghans, Chinese, Koreans. India's millennia of migration: Jews arrived in the 6th century BCE, before Christianity or Islam existed. Contemporary discrimination against people from the Northeast ("Seven Sisters") in Bangalore, Noida and elsewhere — based on physical features, i.e. race
Caste	The word "caste" is Portuguese, not Indian. Origins traced to occupational divisions — iron-smiths, gold-smiths — skills transmitted hereditarily in the absence of institutions like IITs. In the Mahabharata, characters carry no caste surnames: Shri Krishna is not "Shri Krishna Yadav," Arjun not "Arjun Singh," Duryodhan not "Duryodhan Singh." Rigid caste surnames developed later. The system may have begun on a convenience basis — occupational groups developing their own customs, like the protected Andaman tribes (the film Tejas depicts a pilot crashing in such an area). Yet caste discrimination remains a severe problem — murders still occur on its basis
Sex	Kanishk answers the distinction: sex is biological; gender is a social construct and identity. Gender stereotypes examined: NLU graduates of five years, same mess food, same education, both working at Amar Chand Mangaldas till midnight — yet after marriage the kitchen belongs exclusively to the wife. The professor calls the modern double burden — full-time job plus all household management — "harassment," applauds the reversal (the wife calling from the stadium to have her husband make tea), discusses housewives' isolation and depression in nuclear families, and recommends women maintain professional engagement even at modest financial return, for connection and purpose
Place of birth	The British practice of declaring communities "Criminal Tribes" — in Saurashtra, people born into certain communities designated criminals by birth, under special surveillance. Today: suspicion attaching even to innocents born in certain countries or regions (Syria)

The five prohibited grounds of Article 15(1)

The Added Clauses — 15(4), 15(5), 15(6)

15(4): added by the First Amendment after Champakam Dorairajan struck down the Communal G.O.'s caste-based educational reservations under 15(1) — empowering special provisions for the advancement of socially and educationally backward classes, SCs and STs. The professor stresses the beneficiaries are identified as "socially **and** educationally backward" — the word "economically" is conspicuously absent, a distinction later crucial in Indra Sawhney and the EWS debate.

15(5): added by the 93rd Amendment (2005, Congress-led UPA) — special provisions for SEBCs, SCs and STs regarding admission to educational institutions, including private unaided ones, but **excluding minority institutions under Article 30(1)**. The professor's reiterated critique: the amendment's object is poor children in good schools; minority institutions — Christian convent schools like St. Stephen's, St. Mary's, St. Joseph's — are among the country's best, so exempting them undermines the objective. Muslim minority institutions of comparable quality are very few (Jamia — where his son studied English Honours — and AMU, both facing "Islamisation"):

the exemption's practical effect protects numerous Christian institutions while offering Muslims a symbolic gesture with no real educational purpose. He is not speaking against any community — he is critiquing a policy that fails the constitutional nexus test.

15(6), the 103rd Amendment and Janhit Abhiyan

Article 15(6) — 10% EWS reservation — was brought by the Modi government in January 2019, just before the April elections; the timing suggests electoral motivation. The parallel: the Congress government under P.V. Narasimha Rao had also tried 10% reservation for the economically poor — struck down in Indra Sawhney, because Articles 15(4) and 16(4) envision reservation for the "socially **and** educationally" backward; the conjunction is crucial, and economic backwardness alone was not a valid basis. The practical difficulty with economic criteria: false certificates are easy to obtain — two students (Shreya Pandey from Bhopal and Ayesha, two years senior) from families owning multiple factories held "below poverty line" certificates and drew scholarships; confronted, Shreya claimed she had not obtained the certificate herself. Then the satirical essay: a student describing her father's "poverty" — so poor he could afford only *one driver for his BMW*; when the driver took leave, the father had to drive himself in Delhi traffic, unable to read the newspaper, missing tenders worth crores. Given the difficulty of reliably determining economic status, Ambedkar focused on social and educational backwardness — more identifiable, less fraud-prone. When the 103rd Amendment wrote EWS into Articles 15(6) and 16(6) explicitly, it overcame the Indra Sawhney objection — the Court had said economic reservation was unconstitutional because the Constitution did not provide for it; the government responded by amending the Constitution to provide for it.

Janhit Abhiyan v. Union of India (2022/23)

Validity of the 103rd Amendment

Facts · The 10% EWS reservation under Articles 15(6) and 16(6) challenged as violating the equality code and the fifty percent ceiling.

Held · Upheld. Assigned reading: determine the bench strength, the issues framed, the decision on each, any dissents, the ratio decidendi and supporting reasoning — a one-page written summary is required.

Principle · EWS reservation differs in character: not caste-based, and unavailable to those already receiving reservation benefits.

Closing Instructions

HOMEWORK

Reading for the three-day break (Friday night through Sunday night): (1) **Janhit Abhiyan v. Union of India** — bench composition, issues, decisions, dissents, ratio; one-page summary. (2) **Ashok Kumar Thakur v. Union of India** (2008) — validity of Article 15(5) and the minority exemption; the Court's reasoning and the professor's nexus critique. (3) **Indra Sawhney v. Union of India** — Justice Jeevan Reddy's judgment, all issues (8–9 distinct issues, studied issue-wise, not just the final ratio). (4) Bonus: **State of Madras v. Champakam Dorairajan** — the shorter case explaining why 15(4) was added. The professor notes he has covered almost everything on Article 14 — Rule of Law, Legitimate Expectation, Positive and Negative Discrimination, Classification — and the American experience (Separate but Equal). The next session begins Article 15 from the beginning, the later clauses having been covered in reverse order.

DAY 16
11 August 2026

Articles 15 & 16 — The Equality Code

Article 15 clause by clause · Article 16 clause by clause · Ambedkar's vision · The First Amendment speeches · Zoroastrian Housing · Pratap Singh · Prem Shankar Shukla · Law and society · Hostel allocation & the Amravati analogy

Article 15 — The Clauses

Clause	Content
15(1)	State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth
15(2)	No discrimination in access to shops, public restaurants, hotels, places of public entertainment; wells, tanks, bathing ghats, roads, places of public resort — society cannot discriminate against potential buyers or tenants by religion, caste or sex
15(3)	Special provisions for women and children — formal equality may not achieve substantive equality; protective discrimination addresses historical disadvantage
15(4)	Added by the First Amendment (1951) after Champakam Dorairajan — special provisions for the advancement of socially and educationally backward classes, SCs and STs
15(5)	93rd Amendment (2005) — extends special provisions to educational institutions including private unaided, except minority institutions under Article 30(1)
15(6)	103rd Amendment (2019) — 10% for economically weaker sections

The evolution of Article 15

Article 16 — Equality of Opportunity in Public Employment

Clause	Content
16(1)	"There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State."
16(2)	No citizen shall, on grounds only of religion, race, caste, sex, **descent, place of birth, residence** or any of them, be ineligible or discriminated against in respect of any employment or office under the State
16(3)	Parliament (alone) may prescribe residence requirements for employment in a State or UT — reinforced by Article 35's exclusive parliamentary power, ensuring uniformity and preventing parochialism
16(4)	Reservation of appointments or posts for any backward class of citizens not adequately represented in the State's services
16(4A)	77th Amendment (1995) — reservation in promotion for SCs and STs
16(4B)	81st Amendment (2000) — carry-forward of unfilled reserved vacancies
16(5)	Religious or denominational institutions may require their office-holders to profess the concerned religion
16(6)	103rd Amendment — up to 10% EWS reservation in employment, in addition to existing reservations

The eight clauses of Article 16

The distinctive grounds: **descent** (preventing hereditary appointments — the feudal practice of reserving positions for particular families) and **residence** (reflecting federal balance — citizens' mobility rights against States' local interests, with Article 16(3) as the sole exception, exercisable only by Parliament).

Dr. Ambedkar's Vision

> *The ultimate aim is to have equality. Reservations are a means to achieve that equality, not an end in themselves.*
>
> — Ambedkar in the Constituent Assembly debates on Article 16

Four points from the debates: (1) **equality as the ultimate goal** — reservations a temporary measure toward a society where they are unnecessary; (2) **backwardness as a recognizable, measurable condition** requiring state intervention; (3) **balancing competing interests** while the overall objective survives; (4) **reservations as transitional** — a mechanism to lift disadvantaged communities to a level where they compete on equal terms.

The First Constitutional Amendment Act, 1951

A watershed enacted in response to Supreme Court decisions striking down progressive measures. The primary trigger: **Champakam Dorairajan** — the Communal G.O., first introduced in 1926-27, allocating educational seats communally (illustratively: Brahmins 3, Harijans 2, Muslims 1, other communities variously), struck down under Article 15(1). The Court's reasoning: the State may make special provisions for backward classes, but they must rest on backwardness, not merely religion or caste — the Communal G.O. did not adequately distinguish the two. The amendment added Article 15(4) to overturn this effect.

Three speeches from the Provisional Parliament: **Nehru** argued passionately that the Constitution must not become an obstacle to social reform; **Ambedkar** defended the amendment as necessary to the constitutional goal of equality — the Court's interpretation had made upliftment measures impossible; **Syama Prasad Mookerjee** raised serious objections: the Article 19(2) speech restrictions were being broadened excessively, threatening the democratic fabric; property rights were being eroded; judicial review's scope might shrink, undermining checks and balances. Despite the objections, the amendment passed.

Landmark Cases

E.P. Royappa v. State of Tamil Nadu

Under Articles 14 and 16

Facts · The Chief Secretary's removal and appointment as OSD.

Held · Article 14 (and through it, Article 16) strikes at arbitrariness: “Equality is a dynamic concept with many aspects and dimensions, and it cannot be ‘cribbed, cabined and confined’ within the traditional limits of classification.” Administrative discretion is necessary for governance but must rest on relevant considerations, not whims.

Principle · The high evidentiary burden of proving arbitrariness — “easy to claim, hardest to prove.”

Zoroastrian Cooperative Housing Society Ltd. v. District Registrar Cooperative Societies (2005)

Facts · A cooperative housing society restricted membership to Zoroastrians (Parsis) only.

Held · Upheld: housing societies are not “places of public resort” under Article 15(2); a society may restrict membership by religion or community.

Principle · The professor's concern: "I feel in the long run this won't be right, because we want a plural society. If everyone makes pockets — Muslims here, Hindus here, Yadavs here, Dalits here — our unity will be destroyed." The reasoning rests on a literal reading of 15(2); the broader constitutional vision of a secular, egalitarian society might require a more expansive interpretation.

State of Rajasthan v. Pratap Singh

Facts · Additional tax and police force imposed on a particular area, allegedly discriminating against a community.

Held · The word "only" in Article 15(1): discrimination based solely on enumerated grounds is prohibited — if the State shows additional, rational reasons for its action, it stands.

Principle · "Only" is the hinge of Article 15(1).

Prem Shankar Shukla v. Delhi Administration

Facts · Routine hand-cuffing of undertrial prisoners challenged.

Held · Hand-cuffing is degrading treatment, violating dignity; permissible only exceptionally where genuine risk of escape or violence exists, justified case by case.

Principle · Referenced when the professor invoked it to argue for removing hand-cuffs from a young boy who had eloped with a girl.

The Law-Society Interface

Does law change society, or society change law? Both. Law changing society: Article 17 abolished untouchability — attitudes have not wholly changed, but the legal prohibition created the framework for challenge and gradually shifted norms; the Domestic Violence Act 2005 and the Criminal Law Amendment 2013 changed attitudes toward violence against women. Society changing law: the recognition of live-in relationships reflects evolved attitudes; Navtej Singh Johar's decriminalisation of Section 377 reflects the Court recognising changed society.

The professor's ambivalence on **Plessy v. Ferguson (1896)**: the U.S. Supreme Court held that "legislation is powerless to eradicate racial instincts, or abolish distinctions based upon physical differences" — a philosophy of law's limited power to change deep-seated attitudes, with which he expresses some sympathy (social change takes time). Yet Plessy was reversed in **Brown v. Board of Education (1954)** — separate but equal is inherently unequal — showing that while law may not instantly change society, it can set a normative framework that eventually transforms it.

Two stories of social change through innovation

- **Babu Jagjivan Ram's railway water booths:** as Railway Minister, he appointed Dalit women at station water booths — travellers needing water had to drink from their hands or go without. The forced interaction broke down caste prejudice over time.
- **The Punjabrao Deshmukh experiment:** at a function, Dalit women dressed elegantly cooked and served; guests did not realise their caste until informed after the meal. Initial discomfort gave way to the realisation that the food was no different and the women no lesser. *"It takes hard work to change society. Saying 'Accept it' doesn't work."*

PROFESSOR'S ASIDE

A personal story: I spent years mentally preparing myself to accept the possibility of my son marrying a Kashmiri Muslim girl. It is difficult; the prejudices are deeply ingrained. I consulted a sociology teacher, Deepmala, who said: "This we have to change slowly. Stigma remains, but slowly..." Social change — including acceptance of diverse communities and relationships — is a gradual process.

Caste, Politics and Information

PROFESSOR'S ASIDE

What will you do with a caste census — cause fights? ... Politicians destroying for votes, increasing caste, religion — not good. Vote should be on development. ... Today you shouldn't have Right to Information, but Right against Misinformation! So much misinformation Rahul Gandhi creates.

Procedural Fairness — Hostel Allocation and the Amravati Analogy

The hostel allocation anecdote: four beds; four sections (BA, Justicing, BBA and one other); one bed per section by chit-picking, decided in consultation with students; six medical-ground applications (epilepsy, PCOD and other genuine conditions) against four beds. Why the decision was not arbitrary: (1) a reasonable basis — equal sectional access; (2) precedent — the same process was used in December, and objections then could have produced discussion and better options; (3) consultation, not unilateral action; (4) no partiality — "what will we get by doing partiality?"; (5) openness to better alternatives.

The Amravati analogy for discretion versus arbitrariness: travelling to Amravati, three routes — the super-fast Gadkari highway at Rs. 3,000 toll; a partially developed highway at Rs. 1,500, slightly harder; a toll-free route, longer and slower. The driver (administrator) may choose any, with reasons: the fast highway — "we arrive half an hour early; Rs. 3,000 is worth it"; the free route — "we save Rs. 3,000; the extra time does not matter for a wedding." **Arbitrariness occurs only when there is no reason at all** — "I am saying, that's why." When a relevant reason is given, the decision is not arbitrary, even if another option was better. On the medical applications: *"I am having full sympathy with my students. But my limitations are there"* — the tension between individual rights and resource constraints in administrative decision-making.

Critical Analysis — and the Homework

For the current framework	Against
Historical justice — 15(4) and 16(4) address historical injustice and uplift disadvantaged communities	Reverse discrimination against non-reserved categories
Substantive equality — formal equality is insufficient without addressing structural disadvantage	Inefficiency — merit and efficiency in services and education compromised
Constitutional balancing — individual rights against collective welfare, equality against diversity	Political manipulation for electoral ends rather than genuine upliftment
Evolutionary framework — amendable to changing needs (15(5), 15(6), 16(6))	Caste entrenchment — reinforcing the very distinctions it should erase; creamy-layer capture of benefits

Articles 15–16: the balanced assessment

HOMEWORK

Homework: (1) Constituent Assembly Debates on Article 16 — Ambedkar's statements on equality as the primary and ultimate aim; prepare a presentation of the key arguments. (2) The First Amendment speeches of Nehru, Ambedkar and Mookerjee — focus on Mookerjee's critique of the Article 19(2) restrictions and Article 15(4). (3) Read and analyse: Zoroastrian Housing (is a housing society a "place of public resort"? does property include the right to associate with co-religionists? implications for pluralism?); Rajasthan v. Pratap Singh (the meaning of "only"; when additional burden constitutes discrimination); Champakam Dorairajan (why the G.O. fell; the political response); E.P. Royappa (arbitrariness under 14 and 16; the evidentiary burden); Prem Shankar Shukla (routine hand-cuffing). (4) Read at least 10 cases on arbitrariness: E.P. Royappa; Maneka Gandhi; Ajay Hasia v. Khalid Mujib; DTC v. DTC Mazdoor Congress; N. Nagendra Rao v. State of A.P.; Indian Railway Construction Co. v. Ajay Kumar; Central Inland Water Transport v. Brojo Nath Ganguly; Olga Tellis; K.S. Puttaswamy (both citations). (5) Comparative questions: Article 15 vs 16 (scope; why "residence" and "descent" appear only in 16(2)); Article 16(3) with Article 35. (6) Prepare for the coming classes on 15(4), 15(5), 15(6), 16(4), 16(5), 16(6) — key case: Janhit Abhiyan.

DAY 17
12 August 2026

The Constituent Assembly Debates on Draft Article 10

30 November 1948 · Capital punishment preliminary · The residence amendments · The backward classes debate · Ambedkar's concluding speech · From Article 10 to Article 16

The day reconstructs the Constituent Assembly's debate of **30 November 1948** on Draft Article 10 (equality of opportunity in public employment — now Article 16), presided over by the Vice-President (Dr. H.C. Mookherjee). The core issue: guaranteeing equality of opportunity while addressing the historical exclusion of certain communities from government service.

Preliminary — the Death Penalty Amendment (Draft Article 11-B)

- **Shri Amiyo Kumar Ghosh (Bihar)** opposed constitutionalising abolition of capital punishment: the State must retain grave penalties for crisis; fettering it "for all time" is unwise — changes should come through the IPC, amendable as circumstances change. He supported the principle but rejected the constitutional form.
- **Shri K. Hanumanthaiya (Mysore)** opposed from the State's perspective: citing Shaw's play about Joan of Arc — who preferred death to a "dead life" in prison — convicts may prefer death; society rests not only on reformation but on the "fear instinct"; without the death penalty deterrence is lost; early release after seven or eight years would "encourage the method of revenge." His reference to the Godse case was interrupted and ruled out of order by the Chair.
- **Dr. Ambedkar**: "I do not accept the amendment." The amendment was negatived.

The Amendments, One by One

Amendment	Proposed	Outcome
No. 338 (Mohd. Tahir), modified by No. 77 (Ananthasayanam Ayyangar)	"Acquisition" after "employment"; "employment or appointment to office" — comprehensive coverage	Accepted — clearer language
No. 336 (Naziruddin Ahmad)	Substituting clause (2): eligibility irrespective of religion, caste, sex, descent, place of birth	Negatived
No. 334 (Lokanath Misra)	Deleting clauses (2), (3), (4) entirely — clause (1) covers all; clause (3) puts "a premium on backwardness and inefficiency"; a secular State should not manage religious institutions	Negatived

Amendment	Proposed	Outcome
No. 339 (Prof. K.T. Shah)	Adding “in India” after place of birth — reserving positions for “children of the soil,” citing White Australia, White Canada, South Africa	Negatived
No. 340 (Jaspat Roy Kapoor)	Adding “or residence” — every citizen equal opportunity everywhere; provincialism (“Bengal for Bengalis,” “Madras for Madras”) threatening unity; provinces imposing absurd residency requirements (52 years!); unity “at all costs”	Accepted, as modified
Nos. 81 & 82 (Munshi; Alladi Krishnaswami Ayyar)	Verbal refinement; new clause (2a) — Parliament's exclusive power to prescribe residence requirements	Accepted
No. 342 (Ananthasayanam Ayyangar)	“or discriminated against” after “ineligible” — discrimination occurs in promotions and post-appointment matters too	Accepted

The drafting history of Article 10

H.V. Kamath raised a First Schedule difficulty — Part IV contains Andaman and Nicobar as “territories,” not “States.” Munshi clarified: the Schedule's heading is “States and Territories”; Parts I–III are States with autonomous governments; “any State” naturally means Parts I–III. The Centre cannot discriminate between provinces' residents for its own services.

The Backward Classes Debate

Ambedkar identified three conflicting viewpoints to reconcile: (1) **equality of opportunity** for all — every qualified person free to apply and be tested; (2) **no reservations** of any kind — all qualified citizens on the same footing; (3) **guaranteed entry** for communities historically outside the administration. The Drafting Committee's formula: sub-clause (1) embodies the generic principle; sub-clause (3) satisfies the third view, qualified by the word **“backward.”**

Supporters of reservation	Their positions
Ari Bahadur Gurung (W. Bengal)	Gurkhas domiciled in India owe allegiance to India, not Nepal; fought in Kashmir and Hyderabad; deserve equal civil-service opportunity
R.M. Nalavade (Bombay)	Supported for the depressed classes; “backward classes” too vague — might exclude Scheduled Castes; even provincial reservations were not producing adequate representation
Dr. Dharam Prakash (U.P.)	Substitute “Scheduled Castes” for “backward”; administration still communally biased; reservation only for the “real depressed classes” until they “reach the same level”
Chandrika Ram (Bihar)	Cited the 1921 and 1931 censuses; three sections of society — highest (caste Hindus), middle (backward classes), lowest (SCs/Harijans); backward classes denied political rights deserve legislature reservation too; criticised the Socialists for opposing
P. Kakkan (Madras)	For “poor Harijan candidates”: higher officers select “only their own people”; special steps for police and military, citing Harijan bravery in Kashmir
V.I. Muniswami Pillay (Madras)	Confused by “backward”; quoted Sardar Patel — “Not only justice must be done to the Harijans, but their case must be treated with generosity”; “not the object of any leaders of the Harijan community to perpetuate the communal bogey”
T. Channiah (Mysore)	South Indian understanding: socially and educationally backward; Mysore's “A Class” (open) and “B Class” (reserved) vacancies; opposed Kunzru's ten-year limit — reservation should run “150 years,” the period opportunities were denied

Supporters of reservation	Their positions
H.J. Khandekar (C.P. & Berar)	Wanted Scheduled Castes explicit: candidates “ordinarily ignored” despite qualifications; even 12.5% (higher) and 16.5% (lower) service reservations yielded under 1% recruitment; sought Public Service Commission representation and relaxed qualifications
Sardar Hukam Singh (East Punjab)	Conflict between Article 10 and Article 296: open competition takes “the topmost men,” but minority claims must also be considered — does Article 10 override 296?
Mohamed Ismail Sahib (Madras)	In Madras “backward” had technical meaning — 150+ Hindu communities; would minority communities (Muslims, Christians, SCs) also backward and under-represented be included? Opposed Kunzru's limit — “the measure should not be period of time” but whether the community has advanced; countered the communalism charge: “Communalism comes when people are denied rights... reservation creates contentment and harmony”

The case for reservation, member by member

Critics	Their positions
Damodar Swarup Seth (U.P.)	Delete clause (3): reservation is “the very negation of efficiency and good Government”; “backward” not easy to define; would “give rise to castism and favouritism”; give facilities and concessions to improve education, appoint solely on merit
Pandit H.N. Kunzru (U.P.)	Ten-year time limit — three arguments: “backward” undefined; special provisions should not operate “indefinitely”; legislative representation is limited to ten years (Art. 305), so service reservation should be too. Warned of “fissiparous tendencies” — classes claiming backwardness for protection
Prof. K.T. Shah	Add “managing” in clause (4) — “in connection with” is too broad, catching honorary positions and donations
T.T. Krishnamachari (Madras)	The sharp critique: a “paradise for lawyers” (quoting Prof. Ivor Jennings on the fundamental rights chapter); what does equality of opportunity mean for illiterates? Blamed the residence amendment for all the problems; “loose drafting”; “I cannot congratulate the Drafting Committee on putting this particular word in”; “backward” definable by caste, community, religion, literacy, economic status — no one knows

The case against, and for limits

Dr. Ambedkar's Concluding Speech

- **On “paradise for lawyers”:** he would ask Krishnamachari to point to any constitution in the world that is not one — the vast storehouses of American, Canadian and other law reports say so. He is “not ashamed at all” if this Constitution must be taken to the Federal Court for interpretation: that is the fate of every constitution and every drafting committee.
- **On residence:** common citizenship implies residence is no qualification — making it one subtracts from common citizenship's value. Yet people cannot be allowed to fly about “as mere birds of passage without any roots,” taking “the plums and walking away.” Provinces already had varying qualifying periods (domicile, ten years, seven); the amendment's purpose: the qualifying period should be **uniform throughout India**, achievable only by giving the power to Parliament, not the local units.
- **On “backward”:** the three viewpoints had to be reconciled in a workable formula. The danger of over-reservation: supposing reservations for communities totalling seventy percent of posts, leaving thirty percent open — could anyone say equality of opportunity survives? “Therefore the seats to be reserved... must be confined to a minority of seats. It is then only that the first principle could find its place in the Constitution and effective in operation.” Without a qualifying phrase like “backward,” the exception “will ultimately eat up

the rule altogether. Nothing of the rule will remain." The Drafting Committee inserted "backward" on its own shoulders — it did not appear in the fundamental right as passed by the Assembly — to prevent the exception from devouring the rule.

- **On definition and justiciability:** "A backward community is a community which is backward in the opinion of the Government." On whether the rule is justiciable: difficult to answer dogmatically — personally he thought it would be; a State reserving so many seats that equality was destroyed could be taken to the Federal Court and Supreme Court, which would decide whether the government acted "in a reasonable and prudent manner." To Krishnamachari's "who is a reasonable man?": the words are used in many laws — the Transfer of Property Act among them — and courts will not find difficulty.

The Final Article and Its Afterlife

Article 10 as amended: (1) equality of opportunity in matters relating to employment or appointment to any office under the State; (2) no ineligibility or discrimination on grounds only of religion, race, caste, sex, descent, place of birth, residence; (2a) Parliament's residence-requirement power; (3) reservation for backward classes not adequately represented; (4) religious institutions' office-holders. Post-Constitution, the "exception" theory (reservation as exception to equality) governed for years — until **N.M. Thomas** and **Indra Sawhney** recharacterised Article 16(4) as a facet of equality, a means of achieving it, creating a level playing field: backward classes are a separate class under reasonable classification. The residence philosophy connects to **Article 301**: trade, commerce and intercourse throughout India shall be free — India as one economic and social unit; as goods flow freely, citizens should move and work freely.

Earlier view	Later view (N.M. Thomas / Indra Sawhney)
Equality is the rule	Equality is the rule
Reservation is an exception to equality	Reservation is a means to achieve equality
Reservation deviates from merit	Reservation creates a level playing field
Backward classes are like others	Backward classes are a separate class

The shift in the understanding of Article 16(4)

QUOTES

Key quotes to remember: Ambedkar — "Equality is a general rule, while reservation is an exception"; "Unless you use some such qualifying phrase as 'backward,' the exception made in favour of reservation will ultimately eat up the rule altogether"; "A backward community is a community which is backward in the opinion of the Government"; "The seats to be reserved must be confined to a minority of seats." Mohamed Ismail Sahib — "Communalism does not come in because people want their rights..." Hukam Singh — "What would be the fate of the minorities?" Khandekar — "Though there are commissions... our candidates will not be able to compete with the candidates of the Brahmin community or the so-called Savarna Hindus." Kunzru — "It is not desirable that... any special provisions laid down for [backward classes] should operate indefinitely." Krishnamachari — "This chapter of fundamental rights is a paradise for lawyers. And, as a piece of loose drafting, article 10 takes the palm."

DAY 18
13 August 2026

The Mandal Commission & Indra Sawhney

Diksha's presentation: rights, not exceptions · N.M. Thomas · Dworkin · Hohfeld · Mandal's birth and implementation · Kaka Kalelkar · The eleven criteria · Indra Sawhney's issues and holdings

RESERVATION JURISPRUDENCE — THE LONG ARC

From the Communal G.O. to the EWS amendment

1926–27	**Communal G.O. (Madras)** Caste-community quotas in education — struck down in *Champakam Dorairajan* (1951).
1951	**1st Amendment** Article 15(4) inserted — special provisions for SEBCs, SCs, STs.
1953	**Kaka Kalelkar Commission** First Backward Classes Commission; report shelved; even the Chairman dissented on caste.
1963	**M.R. Balaji v. State of Mysore** Caste not the sole criterion; 68% reservation struck down; 50% ceiling indicated.
1976	**State of Kerala v. N.M. Thomas** 7 judges: Art 16(4) is a **facet of equality**, not an exception.
1978–80	**Mandal Commission** B.P. Mandal; 405/406 districts surveyed; 11 weighted criteria; SEBC = 52% → 27% recommended.
1990	**V.P. Singh implements** Executive order; chair 'shaking'; nationwide protests; students self-immolate.
1992	**Indra Sawhney v. Union of India** 9 judges: executive order valid; creamy layer excluded; 50% cap; no reservation in promotion (prospective overruling).
1995–2000	**77th & 81st Amendments** Art 16(4A) promotion quota; Art 16(4B) carry-forward — Parliament's answer to Indra Sawhney.
2019	**103rd Amendment · EWS 10%** Economic criterion written into Arts 15(6) & 16(6); upheld in *Janhit Abhiyan*.

Reservation jurisprudence — the long arc from the Communal G.O. to EWS

Student Presentation — Are 15(4) and 16(4) Fundamental Rights or Exceptions?

Diksha of Haryana (Mahendragarh) presents. The professor's clarification: Articles 12 to 35 are Part III — so the real doubt is not whether 15(4) and 16(4) are fundamental rights, but whether they are **exceptions** to 15(1) and 16(1) or **facets of equality itself**.

State of Kerala v. N.M. Thomas (1976)

7-judge bench · 5:2 · (1976) 2 SCC 310

Facts · The constitutionality of special treatment for Scheduled Castes and Scheduled Tribes in Kerala government service was at issue before the largest bench then assembled for the question.

Held · Five judges held Article 16(4) is NOT an exception to Article 16: it is within the purview of Article 16 as a facet of equality, providing equality of opportunity in line with clause (1), giving positive support and content to 16(1). The Court envisaged not formal or legal equality but proportional equality — the progressive elimination of pronounced inequality.

Principle · Justice Chinnappa Reddy repeated the position in A.B.S.K. Sangh (Akhil Bharatiya Shoshit Karmachari Sangh) v. Union of India — a demonstration of the power of Public Interest Litigation.

The same logic extends to 15(4): both rest on Article 14's equality. The theoretical footing is **Ronald Dworkin's distinction**: the right to *equal treatment* (formal equality — an equal distribution) versus the right to *treatment as an equal* (substantive — the fundamental right to be treated with equal concern and respect). Unequal treatment of equals violates equality; so does equal treatment of unequals. Article 15(4) rests not on prejudice, contempt or insult toward forward classes — it promotes equality by requiring affirmative action to remove discrimination.

Supporting arguments: (1) **constitutional practice** — 15(4) and 16(4) have been implemented through executive orders without separate legislation, and courts have consistently upheld this; a fundamental right cannot be taken away without authority of law, so treating these as exceptions would render the executive actions unconstitutional; (2) **DPSP harmony** — fundamental rights and Directive Principles are read in harmony (itself basic structure): Article 38 (social order for the people's welfare) and Article 46 (promoting the educational and economic interests of SCs, STs and weaker sections) — the pattern of Article 21A's derivation from Article 21 read with Articles 41, 45 and 46; (3) **Article 335** — SC/ST claims must be considered "consistently with the maintenance of efficiency of administration," a positive obligation, not a device to avoid reservation; (4) **Hohfeldian analysis** — rights as claims, privileges, powers and immunities: a positive State duty creates a corresponding claim, enforceable under Articles 32 and 226 (mandamus); (5) **international recognition** — the International Covenant on Economic, Social and Cultural Rights recognises positive rights; (6) **comparison** — Articles 17, 23 and 24 equally require positive State action, yet are unquestionably fundamental rights: requiring state action does not stop a right from being one.

The Birth of Reservation Jurisprudence — Mandal

The Mandal Commission was appointed by Prime Minister **Morarji Desai on 20 December 1978**, chaired by **Justice B.P. Mandal**, tasked to: (1) determine criteria for identifying socially and educationally backward classes; (2) recommend steps for their advancement; (3) examine the desirability of reservation in appointments and posts; (4) report to the President. The birth story: Dr. Ambedkar did not define "backward class" — when asked, he left it to the government of the day, a strategic avoidance of a politically impossible definition.

The report was submitted on 31 December 1980 — and left untouched, gathering dust. The turning point: V.P. Singh's 1990 political crisis, his chair "shaking." Someone suggested the 50-52% backward classes could save him: he implemented 27% OBC reservation **through an executive order** — crucial because he lacked parliamentary majority. The 52% thesis: the OBC population was estimated at 52%, hence 27% (within the 50% ceiling). The protests: students preparing for UPSC for three-plus years saw their chances drastically cut — with 500 seats, reservations taking 300 left 200 for the general category. *60-70 people died by self-immolation; around 200 died of burns.* The government remained "deaf and blind"; with limited media (no social media, few mobile phones), the government provided incomplete data. The students went to the Supreme Court.

The Kaka Kalelkar Commission (1953) — the First Attempt

Established 1953 under Kaka Kalelkar; report 1955-56 — the first attempt to identify backward classes. Criteria: (1) traditional apathy for education from social and environmental conditions; (2) occupational handicap; (3) poverty and lack of educational institutions in rural areas; (4) living in inaccessible areas. The failure: no unanimous report — five members recorded minutes of dissent against linking caste with backwardness; even Chairman Kalelkar himself opposed caste as the basis. The Union Government's 1961 memorandum: *"It cannot be denied that the caste system is the greatest hindrance in the way of our progress towards an egalitarian society, and the recognition of the specified castes as backward may serve to maintain and even perpetuate the existing distinctions on the basis of caste"* — concluding that "some positive and workable criteria should be devised." No all-India OBC list was drawn; States chose their own criteria; the Centre preferred economic tests.

The Mandal Commission's Methodology

An empirical survey of 405 of the 406 districts then existing — two villages and one urban area per district — a genuine effort at objectivity. Eleven criteria in three categories:

Category	Criteria	Weight
Social (3 points each)	Considered socially backward by others; dependent mainly on manual labour; early marriage (25% of females, 10% of males marrying above the State average at a very young age); female work participation at least 25% above the State average (economic compulsion)	12
Educational (2 points each)	Children aged 5-15 never attending school at least 25% above State average; dropout rate at least 25% above; matriculates at least 25% below	6
Economic (1 point each)	Average family assets at least 25% below State average; families in kutcha houses at least 25% above; drinking water source beyond half a kilometre; landless families or only "khasra" land at least 25% above	4

The eleven indicators of backwardness

Castes scoring 11 points (50%) or above were listed as socially and educationally backward; households below 20 for any caste were excluded as too small a sample. The evaluation offered in class: this cannot be called the best method, but it was the best effort — not arbitrary, suited to the task, with economic indicators flowing directly from social and educational backwardness.

Indra Sawhney v. Union of India (1992) — the Mandal Case

Indra Sawhney v. Union of India

9-judge bench — the largest for reservation matters · Justice P.B. Jeevan Reddy's judgment is the assigned reading

Facts · Challenge to the 27% OBC reservation implemented by executive order in 1990, and the consolidated questions on Article 16(4).

Held · See the issue-wise holdings below.

Principle · Reservation jurisprudence's organising case.

Issue	Holding
Can reservation be given by executive order?	Yes — Article 16(4) uses "provision," not "law"; the constitutional mandate exists; crucial for V.P. Singh, who lacked a parliamentary majority

Issue	Holding
Is 16(4) an exception to 16(1)?	No — following N.M. Thomas, it is a facet of equality, a form of reasonable classification
Who are the “backward class of citizens”?	Caste alone cannot determine it (following Balaji); but caste can be a starting point for identifying social backwardness
The creamy layer	Excluded — when a member of a backward class reaches an “advanced social level or status,” they “would no longer belong to the backward class and would have to be weeded out” (Jeevan Reddy J.), preventing the privileged within backward classes from monopolising benefits
Reservation in promotions	Initially rejected — but prospective overruling (the doctrine first established in Golaknath) allowed continuation for five years
Sub-classification	Left open at this stage (backward vs. more backward)
The 50% ceiling	Reservation cannot ordinarily exceed 50% — a rule of caution, not absolute (following N.M. Thomas); relaxation possible in rural and remote areas
Carry-forward rule	Unfilled reserved vacancies may be carried forward — subject to the 50% ceiling (later addressed by the 81st Amendment's Article 16(4B))

Indra Sawhney, issue by issue

M.R. Balaji v. State of Mysore (1963)

The earlier framework

Facts · Mysore's 68% reservation challenged.

Held · Caste cannot be the sole criterion — poverty or place of residence can also indicate backwardness; 68% struck down as excessive; reservation should generally not exceed 50%. Article 15(4) was then viewed as an exception to 15(1). The Court made clear its judgment did not affect SC/ST reservations.

Principle · The source of the 50% ceiling that Indra Sawhney adopted as a rule of caution.

Quotes, Concepts and the Professor's Mantras

> *A chain is only as strong as its weakest link — the country is only as strong as its weakest citizen; a class only as strong as its weakest student.*
>
> — Jawaharlal Nehru, as cited in the lecture

PROFESSOR'S ASIDE

Inhi uljhe dimaagon mein ghanee khushiyon ke lachche hain, humein paagal hi rehne do, hum paagal hi achchhe hain! — I embrace being called paagal (crazy) rather than being a “yes sir” person. Question and disagree rather than blindly follow.

PROFESSOR'S ASIDE

The mantra for student presentations: use simple language. If a word is difficult to pronounce, say “repeated” instead of “reiterated” — find an easy word. Never get stuck on difficult vocabulary.

DAY 19
14 August 2026

Backward Classes — Four Advocates Argue Indra Sawhney

The social-backwardness thesis · Palkhivala · Jethmalani · Parasaran · Venugopal · The Court's holdings · The EWS inconsistency · Quotes to memorise

The Core Thesis — All Backwardness Is Rooted in Social Backwardness

The Court's causal chain: (1) **social backwardness** (the caste system's discrimination, stigma and exclusion) is the root cause; (2) it produces **educational backwardness** (exclusion from access); (3) which produces **economic backwardness** (no education, no employment) — which in turn reinforces social backwardness. *"They feed upon each other, constituting a vicious circle."* The quotes to remember: *"Social hierarchy and economic position exhibit an indisputable mutual relationship"*; *"The lower the caste, the poorer its members. The poorer the members of the caste, the lower the caste."* It is therefore logically flawed to find a person "socially backward but educationally forward" and use that to deny reservation — the categories are intertwined, and the root is social status determined by caste.

Why pure economic criteria are rejected: "mere poverty" cannot be the criterion — the vast majority of India is poor, and among the poor are many socially and educationally forward (the professor's example: himself — a "forward community" member, not wealthy, but a PhD professor, certainly not educationally backward). Reservation based on income alone would benefit poor individuals from forward castes, which is not Article 16(4)'s object: correcting a specific historical injustice rooted in caste. From this logic grows the **creamy layer**: within a backward class, members who have "progressed far enough and far ahead so as to compare favourably with the leading forward class economically, socially and educationally" should not take the benefit — an upper income ceiling secures it "only for such of those members who are still behind, who really deserve."

The Purpose — Sharing State Power, Not Poverty Alleviation

Reservation was not designed to make anyone wealthy — a government job cannot do that. The object is to dismantle the historical dominance of certain castes in the State apparatus and enable backward classes to **share state power**. The pre-independence reality — *"It is a well known fact that till Independence, the administrative apparatus was manned almost exclusively by members of the upper caste"* — excluded Shudras, SCs, STs and backward groups among Muslims and Christians from any administrative role, leaving them perpetually "ruled." The goal is empowerment and dignity: moving a community from the feeling of being ruled to being part of the ruling class — bringing *pratishtha* (prestige), *samman* (respect) and *garv* (pride). The textual distinction matters: Article 15(4) reserves in education for classes **"socially and educationally backward"** (it would be pointless to reserve educational seats for a class educationally forward); Article 16(4) reserves employment for the **"backward class of citizens"** — where, per Indra Sawhney, social backwardness is the main criterion, and it is incorrect to require the class to be both socially and educationally backward for jobs.

Four Advocates, Four Definitions of "Backward Class"

Advocate	Core position	Key arguments
Nani Palkhivala	A "secular, unified, casteless society is the basic feature of the Constitution" — caste must be erased altogether	Since caste is a prohibited ground of distinction, it can never be the basis for determining backward classes under 16(4) — doing so perpetrates the very evil the Constitution abolishes. Accepting the Mandal findings (52% backward) would "seriously jeopardize the efficiency of the administration" and make "merit" disappear

Advocate	Core position	Key arguments
Ram Jethmalani	"Backward class" means only the Shudra class — the fourth varna below Brahmin, Kshatriya and Vaishya	Those outside the four-fold varna are not backward classes but outcastes (SCs and STs), for whom separate provisions exist; Article 16(4) was designed for the middle castes alone. "Poverty is not a necessary criterion for backwardness, it is in fact irrelevant." Reservation is "a program of historical compensation. It is neither a measure for economic reform nor a poverty alleviation program" — the sentence the professor makes the class repeat aloud
K. Parasaran	The linguistic distinction: reservation is for a "backward class of citizens," not for "backward citizens"	The State must identify a homogeneous group that is backward — a class formed by religion, race, caste, place of birth or another group characteristic — not a collection of backward individuals. If the entire group is backward, reservation may follow. "A very good secular definition"
K.K. Venugopal	The primacy of economic factors	Articles 38(2) and 46 direct the State to minimise income inequalities and promote weaker sections' interests; the economic criterion "must be applied in determining backward class." (Rejected by the Court for Article 16(4) — the seed of the later EWS controversy)

The four arguments before the Court

The Supreme Court's Holdings

On identification: the Court rejected Palkhivala's extreme (caste irrelevant) and Jethmalani's restriction (only Shudras). Caste is "a very very important component of our country" — **"If reservation is made in favour of backward class of citizens, the bar contained in clause 2 is not attracted, even if backward classes are identified with reference to caste."** But caste cannot be the sole factor: reservation for all Muslims simpliciter (religion alone) is unconstitutional; "Muslims + poverty" (a specific backward class) is permissible. The four principal factors of social backwardness — **poverty, caste, occupation, habitation**: *"Poverty, caste, occupation, and habitation are the principal factors which contributed to rank a class as socially backward."* The primary accent of 16(4) is social backwardness; educational backwardness is a requirement of 15(4), not 16(4).

#	Question	Ruling
1	Is a law required for reservation?	No — executive order suffices: 16(4) says "provision," not "law"
2	Is 16(4) an exception to 16(1)?	No — a facet, an elaboration of reasonable classification
3	Is 16(4) exhaustive?	No — reservation can also be made under 16(1) itself in "very exceptional situations" and "public interest," not for vote-bank politics
4	Can caste be a starting point?	Yes — relevant, but never the sole criterion
5	Economic criteria alone?	No — reservation under 16(4) cannot rest purely on economics (the later 10% EWS came by constitutional amendment and remains contested)
6	Sub-categories ("backward" and "more backward")?	Yes — States may sub-classify so benefits reach the most marginalised
7	The limit?	Normally 50%; extraordinary circumstances may justify exception
8	Carry-forward?	Valid, subject to the 50% ceiling — later addressed by the 81st Amendment (16(4B))
9	Reservation in promotion?	No — but prospective overruling allowed five years' continuation; nullified later by the 77th Amendment (16(4A))

#	Question	Ruling
10	Judicial review?	Yes — identifying backwardness is primarily for the executive, subject to review for flawed exercise
11	Oversight?	A permanent commission should periodically review the backward-class list

The rapid-fire summary — the Court's rulings

The EWS Inconsistency — the Professor's Critique

PROFESSOR'S ASIDE

The Court in Indra Sawhney said reservation cannot be based on economic criteria, and that the 50% limit is a general rule. It also said 16(4) is not exhaustive, and reservation can be made under 16(1) in "exceptional situations." Then a 10% EWS reservation arrives — and is upheld. My question: if reservation can be given under Article 16(1) for any exceptional situation, why was the EWS reservation not simply accommodated under 16(1)? Kitne peg pee ke aate hain Supreme Court ke judges? — How many pegs do Supreme Court judges drink before coming to court?

The Case Chain and Assigned Readings

Case	Contribution
Champakam Dorairajan (1951)	Caste-based educational reservation struck down → First Amendment, Article 15(4)
M.R. Balaji (1963)	Caste not the sole determinant; the 50% indication
T. Devadasan v. Union of India (1964)	The carry-forward rule — carrying vacancies forward could not take a year's total reservation beyond 50%
General Manager, Southern Railway v. Rangachari	Reservation in promotions — an important early treatment
N.M. Thomas (1976)	16(4) is a facet, not an exception
Golaknath (1967)	Prospective overruling introduced — the doctrine Indra Sawhney used for promotions
Indra Sawhney (1992)	The central case — 50% cap, creamy layer, executive order valid, promotion reservation refused
M. Nagaraj v. Union of India	The follow-up on Articles 16(4A) and 16(4B)
Jarnail Singh v. Lachhmi Narain Gupta	Later case on promotions and creamy layer for SCs/STs
Janhit Abhiyan (EWS case)	10% EWS upheld — the professor criticises the logic as inconsistent with Indra Sawhney
Regents of the University of California v. Bakke (U.S.)	Comparative: racial quotas ultimately cancelled, "institutional preferences" allowed — the global debate on affirmative action
Vasant Kumar	Assigned reading for the complete picture

The reservation case chain

HOMEWORK

Quotes to memorise (dictated in class): “It is a well known fact that till Independence, the administrative apparatus was manned almost exclusively by members of the upper caste.” · “It was this imbalance which was sought to be redressed by providing for reservation in favour of such backward classes.” · “It is neither a measure for economic reform nor a poverty alleviation program.” · “If reservation is made in favour of backward class of citizens, the bar contained in clause 2 is not attracted, even if backward classes are identified with reference to caste.” · “Poverty, caste, occupation, and habitation are the principal factors which contributed to rank a class as socially backward.” · “Social backwardness leads to educational backwardness and both of them together with poverty, which in turn breeds and perpetuates the social and educational backwardness. They feed upon each other, constituting a vicious circle.” Assigned readings: Balaji; A.B.S.K. Sangh (Railway); Rangachari; Devadasan; N.M. Thomas; Indra Sawhney (the advocates' arguments — Palkhivala, Jethmalani, Parasaran, Venugopal — and the judges' reasoning); Nagaraj; Vasant Kumar. To be an expert in law, read the original judgments.

DAY 20
5 October 2026

Article 19(1)(a) — Freedom of Speech and Expression

The text and the eight grounds · The First and Sixteenth Amendments · Ten landmark cases · The doctrinal toolkit · Comparative constitutional law · Twenty-five study questions, answered

This session's study guide (compiled by @Kanishk) follows the lecture's order but takes facts and holdings from the judgments, because the two differ in places. The lecturer's own instruction: read the original cases and cite a case only for the point it proves. Where the lecture and the judgments differ, the corrections are set out below — use the corrected version in an exam answer.

Part 1 — The Constitutional Text

Article 19(1) guarantees all citizens the rights to (a) freedom of speech and expression; (b) to assemble peaceably and without arms; (c) to form associations or unions or co-operative societies; (d) to move freely throughout India; (e) to reside and settle anywhere in India; and (g) to practise any profession, or carry on any occupation, trade or business. Sub-clause (f) — acquire, hold and dispose of property — was omitted by the Forty-fourth Amendment, 1978. The words “or co-operative societies” in (c) were added by the Ninety-seventh Amendment, 2011. Each freedom has its own restriction clause: (a) is limited by clause (2), (b) by (3), (c) by (4), (d) and (e) by (5), (g) by (6). The word “press” does not appear — press freedom is read into (a): Brij Bhushan, Sakal Papers, Indian Express Newspapers.

#	Ground in Article 19(2)	Entered the clause	Leading authority
1	Sovereignty and integrity of India	Sixteenth Amendment, 1963	Kedar Nath Singh (on the related security ground)
2	Security of the State	Original text, 1950	Romesh Thappar
3	Friendly relations with foreign States	First Amendment, 1951	No leading Supreme Court ruling; see the First Amendment debate
4	Public order	First Amendment, 1951	Ram Manohar Lohia (1966)
5	Decency or morality	Original text, 1950	Ranjit D. Udeshi; Aveek Sarkar
6	Contempt of court	Original text, 1950	E.M.S. Namboodiripad (1970)
7	Defamation	Original text, 1950	Subramanian Swamy v. Union of India (2016)

#	Ground in Article 19(2)	Entered the clause	Leading authority
8	Incitement to an offence	First Amendment, 1951	State of Bihar v. Shailabala Devi (1952)

The eight grounds — an exhaustive list

A restriction "in the interest of the general public" is allowed for trade under clause (6) but not for speech: Sakal Papers; reaffirmed in Kaushal Kishor v. State of U.P. (2023).

The 1950 text and the First Amendment

As enacted, clause (2) allowed restrictions only relating to libel, slander, defamation, contempt of court, matters offending decency or morality, or which undermined "the security of, or tend[ed] to overthrow, the State." Two gaps drove the early litigation: no "reasonable," and no "public order." Three lines of cases mattered: (1) *Romesh Thappar* and *Brij Bhushan* (both 26 May 1950) invalidated provincial public-safety provisions — the Punjab High Court then struck down sedition (section 124A) in *Tara Singh Gopi Chand* (1950); (2) the Organiser order in Brij Bhushan targeted "news and views about Pakistan" — the government wanted power to curb war-talk after the Nehru–Liaquat Pact of April 1950; (3) the Patna High Court in the Bharati Press case (*In re Shailabala Devi*, 1950) held even incitement to murder not covered unless it threatened the State — the "Bihar" case the lecturer recalled.

The First Amendment (1951) added three grounds — public order, friendly relations with foreign States, incitement to an offence; inserted the word **"reasonable,"** opening every restriction to judicial review; replaced "libel, slander, defamation" with "defamation" alone and dropped "tends to overthrow the State"; and operated retrospectively — Section 3 deemed the new clause "always to have been enacted," reviving struck-down laws. The same Act added Article 15(4) (answering Champakam Dorairajan), amended 19(6) for nationalisation, and added Articles 31A and 31B with the Ninth Schedule. The Supreme Court reversed the Patna view in *State of Bihar v. Shailabala Devi* (AIR 1952 SC 329) a year later — part of the stated need having disappeared, though the text stayed. The **Sixteenth Amendment (1963)** added "the sovereignty and integrity of India" to clauses (2), (3) and (4), following the November 1962 Committee on National Integration and Regionalism report amid secessionist demands and the war with China; it also changed Articles 84 and 173 and the Third Schedule oaths — candidates, legislators, ministers and judges now swear to uphold sovereignty and integrity.

Why Article 19 belongs only to citizens

Article	Subject	Who can claim
14	Equality before law	Any person, citizen or not
15	No discrimination on religion, race, caste, sex, place of birth	Citizens
16	Equal opportunity in public employment	Citizens
19	The six freedoms	Citizens
20, 21, 22	Criminal process protections, life and liberty, arrest	Any person

The constitutional scheme of right-holders

Consequences: a foreign national cannot found a claim on Article 19 (Hans Muller of Nuremberg, AIR 1955 SC 367); a company is not a citizen (State Trading Corporation, AIR 1963 SC 1811) but its shareholders and editors can sue for their own rights (Bennett Coleman); in Cricket Association of Bengal the government argued a foreign broadcaster was using an Indian body to claim 19(1)(a) — the majority answered that the citizen-organiser was exercising its own right through an agent.

Articles 17 and 18 in brief

Article 17 abolishes untouchability, forbids its practice in any form, and makes enforcement of any disability arising from it an offence — enforced through the Protection of Civil Rights Act, 1955 and the SC/ST (Prevention of Atrocities) Act, 1989; it binds private persons as well as the State (PUDR, 1982). The lecturer's hygiene-based account of untouchability's origins was expressly his personal view — not a legal proposition; Article 17 treats untouchability as exclusion based on birth, as Dr. Ambedkar described his own experience. Article 18: the State shall confer no title other than military or academic distinction (clause 1); no citizen shall accept a foreign title (clause 2); non-citizen office-holders of profit or trust need the President's consent for foreign titles (clause 3), and no such office-holder may accept presents, emoluments or offices from a foreign State without consent (clause 4). No penalty is prescribed; Parliament may legislate for breach but has not.

Category	Examples	Why
Prohibited	Knighthood (“Sir”), Rai Bahadur, Khan Bahadur, Dewan Bahadur — colonial or hereditary titles	They create a rank above fellow citizens — Article 18's mischief
Prohibited to citizens	Any title from a foreign State	Clause (2)
Permitted — military distinction	Param Vir Chakra, Maha Vir Chakra, Vir Chakra; military ranks	Express exception, clause (1)
Permitted — academic distinction	“Doctor” for a doctorate; “Professor”	Express exception, clause (1)
Permitted — professional designation	“Advocate”; “Dr.” for a medical practitioner	Earned by qualification, not conferred as a title by the State
Permitted — national awards	Bharat Ratna, Padma Vibhushan, Padma Bhushan, Padma Shri	Not “titles” (Balaji Raghavan) — but must not be used as prefix or suffix; a recipient who does so should forfeit the award

Titles under Article 18 — the categories

Part 2 — The Landmark Cases

Romesh Thappar v. State of Madras (1950)

AIR 1950 SC 124 · 6 judges · majority per Patanjali Sastri J.; Fazl Ali J. dissenting

Facts · Cross Roads, an English weekly printed in Bombay; on 1 March 1950 Madras banned its entry, circulation, sale and distribution under section 9(1-A) of the Madras Maintenance of Public Order Act, 1949 “for securing the public safety and the maintenance of public order.” Thappar went straight to the Supreme Court under Article 32.

Held · Petition allowed; section 9(1-A) void. Article 32 is itself a fundamental right — the Court cannot turn a petitioner away. Freedom of speech includes freedom to propagate ideas, and propagation is secured by circulation: “Liberty of circulation is as essential to that freedom as the liberty of publication.” “Public order” is a wide expression covering every breach of tranquillity from affray to rebellion — but the 1950 clause (2) spoke only of the security of the State; only aggravated disorder endangering the State's foundations could justify curbing speech. A provision whose language authorises both valid and invalid restrictions cannot be severed — void as a whole. Fazl Ali J.: serious disorder does undermine the State's security, as sedition does.

Principle · The first free-speech ruling: circulation is part of speech; the 19(2) grounds are exhaustive and read narrowly; the seed of the overbreadth doctrine. It caused the First Amendment.

Brij Bhushan v. State of Delhi (1950)

AIR 1950 SC 129 · the same six judges, the same day · Fazl Ali J. dissenting

Facts · The Chief Commissioner of Delhi required the weekly Organiser to submit for pre-publication scrutiny "all communal matter and news and views about Pakistan including photographs and cartoons" under section 7(1)(c), East Punjab Public Safety Act, 1949.

Held · Pre-censorship is a restriction on the liberty of the press, which is an essential part of 19(1)(a); the majority applied Romesh Thappar — public safety/public order is not the security of the State, so clause (2) did not save it. Fazl Ali J. read "public safety" as the security of the State and would have dismissed. Blackstone, quoted: the press's liberty "consists in laying no previous restraint upon publications."

Principle · Press freedom lives inside 19(1)(a) though the Article never says "press"; prior restraint demands justification under clause (2). It does NOT hold all print pre-censorship void — Virendra v. State of Punjab (1957) upheld a time-limited power with a right of representation and struck down one without safeguards.

State of Madras v. V.G. Row (1952)

AIR 1952 SC 196 · 5 judges · Patanjali Sastri C.J.

Facts · The People's Education Society declared an unlawful association under the 1908 Act's section 15(2)(b) (financing the banned Communist Party); the Madras amendment required stated grounds, allowed representation, and made an Advisory Board's finding bind the government — but the declaration was Gazette-only and membership itself became an offence.

Held · Restriction struck down. Reasonableness covers substance and procedure; the test is statute-by-statute — "no abstract standard, or general pattern, of reasonableness." The factors: the nature of the right, the purpose of the restriction, the extent and urgency of the evil, the disproportion of the imposition, and prevailing conditions. Shutting out judicial inquiry in favour of executive satisfaction is reasonable only in very exceptional circumstances; the absence of personal notice when membership was criminalised was a serious defect. The Court is "a sentinel on the qui vive."

Principle · The foundational reasonableness test for all of Article 19; the "disproportion" factor is the root of modern proportionality (Modern Dental College 2016; Anuradha Bhasin 2020). Limit noted: it arose under 19(1)(c)/(4) — a ruling on one freedom is weak authority on another.

K.A. Abbas v. Union of India (1970)

(1970) 2 SCC 780 · 5 judges · Hidayatullah C.J.

Facts · Abbas, journalist and film-maker (on the Khosla Committee), made the 16-minute documentary A Tale of Four Cities with a brief blurred red-light-district shot; offered a "U" certificate only with cuts, he challenged pre-censorship itself and the vagueness of the Cinematograph Act's section 5-B(2) directions.

Held · Censorship of films including prior restraint is justified; U/A classification is reasonable; directions not void for vagueness but must be supplemented to protect artistic and social value. Film is treated differently from print — instant appeal, realism, combined effect on eye and ear, strong effect on children. American decisions are not decisive: the First Amendment is absolute in form, Article 19(2) expressly permits reasonable restrictions. A law leaving censors "in a boundless sea of uncertainty" would be struck, but courts first construe sensibly. The flaw in the directions: treating artistic and inartistic work alike — censors judge the handling of a theme, not the theme. The Solicitor-General conceded time limits and court- or tribunal-level appeals.

Principle · The print-film distinction. Key lines: "The motion picture is able to stir up emotions more deeply than any other product of art"; "our standards must be so framed that we are not reduced to a level where the protection of the least capable and the most depraved amongst us determines what the morally healthy cannot view or read"; "Sex and obscenity are not always synonymous."

Odyssey Communications Pvt. Ltd. v. Lokvidayan Sanghatana (1988)

(1988) 3 SCC 410 · per Venkataramiah J.

Facts · Doordarshan was showing Honi-Anhoni; two organisations obtained a Bombay High Court injunction against episodes 12 and 13 in a public interest petition alleging superstition and fright to children — the producer added as a party only the day before the order.

Held · Injunction set aside. The right to exhibit a film on Doordarshan, on Doordarshan's terms, is part of 19(1)(a) — like publishing through a newspaper, subject to the medium owner's terms; an interim injunction infringes the producer's right where petitioners show no legal right and no material of real harm; "It spreads superstition" is not a 19(2) ground. The Court expressly left open whether a citizen may set up a private broadcasting station.

Principle · Dissemination extends to television; courts must not impose prior restraint by injunction on non-listed grounds. The reserved question was taken up in Cricket Association of Bengal.

LIC v. Prof. Manubhai D. Shah (1992)

(1992) 3 SCC 637 · two appeals together · per Ahmadi J.

Facts · Shah's study paper arguing LIC premiums were unduly high; a member's counter reprinted in LIC's magazine Yogakshema; Shah's rejoinder refused ("in-house publication"). Separately, Doordarshan refused to telecast Beyond Genocide, the Golden Lotus-winning Bhopal documentary holding a "U" certificate, calling it outdated and sub judice.

Held · Both appeals dismissed — LIC must print the rejoinder with explanation and apology for delay; Doordarshan must telecast. "Speech is God's gift to mankind." Freedom includes circulating views through print, radio and television and using the medium to answer criticism. LIC is "State" under Article 12; its publicly funded magazine, open to outside subscribers, must be fair — printing one side and refusing the other violated Articles 14 and 19(1)(a). Once the film-maker's right is recognised, the refusing party bears the burden of showing a 19(2) ground — criticism of government is not one. Ruling confined to "the peculiar facts": no absolute duty to print whatever any citizen sends.

Principle · Right of reply against State-controlled media; burden of justification on the State. It does not create such a right against a private publisher.

Secretary, Ministry of I&B; v. Cricket Association of Bengal (1995)

(1995) 2 SCC 161 · Sawant and Mohan JJ. jointly; Jeevan Reddy J. concurring

Facts · CAB's 1993 Hero Cup: Doordarshan offered Rs. 1 crore; CAB sold worldwide rights to Trans World International for a guaranteed US$550,000 plus 70% of excess; the Telecom Department told VSNL to refuse the uplink and customs detained TWI's equipment; interim orders let both telecast. The 1994 BCCI–ESPN dispute recurred.

Held · (para 124) Airwaves are public property; a public authority must regulate their use in the public interest. The right to impart and receive information is part of freedom of speech; a citizen has access to telecasting subject to public-property limits. The Central Government must set up an independent, autonomous public authority to control the airwaves. Sports telecast by a non-profit body has a speech element — earning revenue incidentally does not convert expression into trade. 19(2) permits no monopoly over speech (unlike 19(6) for business). Jeevan Reddy J.'s limits: no citizen has a fundamental right to set up a private broadcasting station — that is for Parliament; "From the standpoint of Article 19(1)(a), what is paramount is the right of the listeners and viewers and not the right of the broadcaster." Both opinions found the Telegraph Act, 1885 unsuited to broadcasting; the Prasar Bharati Act, 1990 was brought into force in 1997.

Principle · The right to receive information; airwaves public property; no broadcasting monopoly. The lecture's version — that the rights-holder must give the feed to Doordarshan — is not in the judgment: that rule comes from the Sports Broadcasting Signals (Mandatory Sharing with Prasar Bharati) Act, 2007.

S. Khushboo v. Kanniammal (2010)

(2010) 5 SCC 600 · per Chauhan J.

Facts · In a 2005 India Today survey the actress endorsed pre-marital sex within committed relationships and girls' self-protection; twenty-three criminal complaints (defamation, obscenity, insult to modesty) followed, mostly from one political party's functionaries.

Held · All quashed. A reference to sex is not per se obscene; the standard is contemporary community tolerance as of an average reasonable person; no identifiable person or definite group was defamed, so the complainants were not "persons aggrieved"; pre-marital sex between consenting adults is no offence, so advocating its acceptance cannot be incitement; the complaints were mala fide, for political mileage. "It is not the task of the criminal law to punish individuals merely for expressing unpopular views"; "Morality and Criminality are not co-extensive"; the law must not have a "chilling effect."

Principle · Unpopular social opinion protected from morality-based prosecution; lays down no new obscenity test (that came in Aveek Sarkar, which cites it).

Aveek Sarkar v. State of West Bengal (2014)

(2014) 4 SCC 257 · per Radhakrishnan J.

Facts · Stern's photograph of Boris Becker nude with his fiancée Barbara Feltus (her father took it), reproduced by Sports World and Anandabazar Patrika in May 1993; an Alipore lawyer's complaint under section 292 IPC; summons issued; the High Court refused to quash.

Held · Hicklin is "not the correct test." Obscenity is judged from the average person's viewpoint applying contemporary community standards, the work as a whole, in its context and for its message; nudity is not obscene per se — only material tending to excite lustful thoughts. The photograph's message was against racism; prosecution quashed.

Principle · Hicklin (followed since Ranjit Udeshi 1965) replaced by the community standard test. Note: a two-judge bench displaced a five-judge bench's retention of Hicklin; the judgment reads Udeshi as itself recognising changing standards.

Balaji Raghavan v. Union of India (1996)

(1996) 1 SCC 361 · 5-judge Constitution Bench · per Ahmadi C.J., Kuldip Singh J. concurring

Facts · Petitions in Kerala and Madhya Pradesh, transferred to the Supreme Court, challenged the Bharat Ratna and Padma awards as "titles" under Article 18(1).

Held · The awards are valid — not titles — but must not be used as prefixes or suffixes; a user should forfeit the award; a high-level committee should set selection criteria. "The theory of equality does not mandate that merit should not be recognized."

Principle · Article 18 targets ranks of nobility and colonial loyal-subject creation; honours recognising work done are compatible with equality.

Two cases raised by students

Ramesh v. Union of India (1988) — the Tamas case

(1988) 1 SCC 668

Facts · A petition to stop Doordarshan showing Tamas, the serial from Bhisham Sahni's Partition novel, alleging it would inflame communal feeling.

Held · Refused: two High Court judges had watched it and found a message of peace; the work is judged as a whole by the standard of reasonable, strong-minded people — not of those who sense danger in every hostile view.

Principle · Depicting violence is not inciting it.

S. Rangarajan v. P. Jagjivan Ram (1989)

(1989) 2 SCC 574 — the case a student named "Shankar Asrani v. Jagjivan Ram"

Facts · The Tamil film Ore Oru Gramathile criticised caste-based reservation; after agitation threats the High Court revoked its "U" certificate.

Held · Certificate restored. Open criticism of policy is not a restriction ground; the State cannot plead inability to control a hostile audience — freedom "cannot be held to ransom by an intolerant group of people"; the anticipated danger must be "a spark in a powder keg," justified "on the anvil of necessity and not the quicksand of convenience or expediency."

Principle · The Indian proximity test; the State's duty to protect speech against hostile audiences.

What speech includes

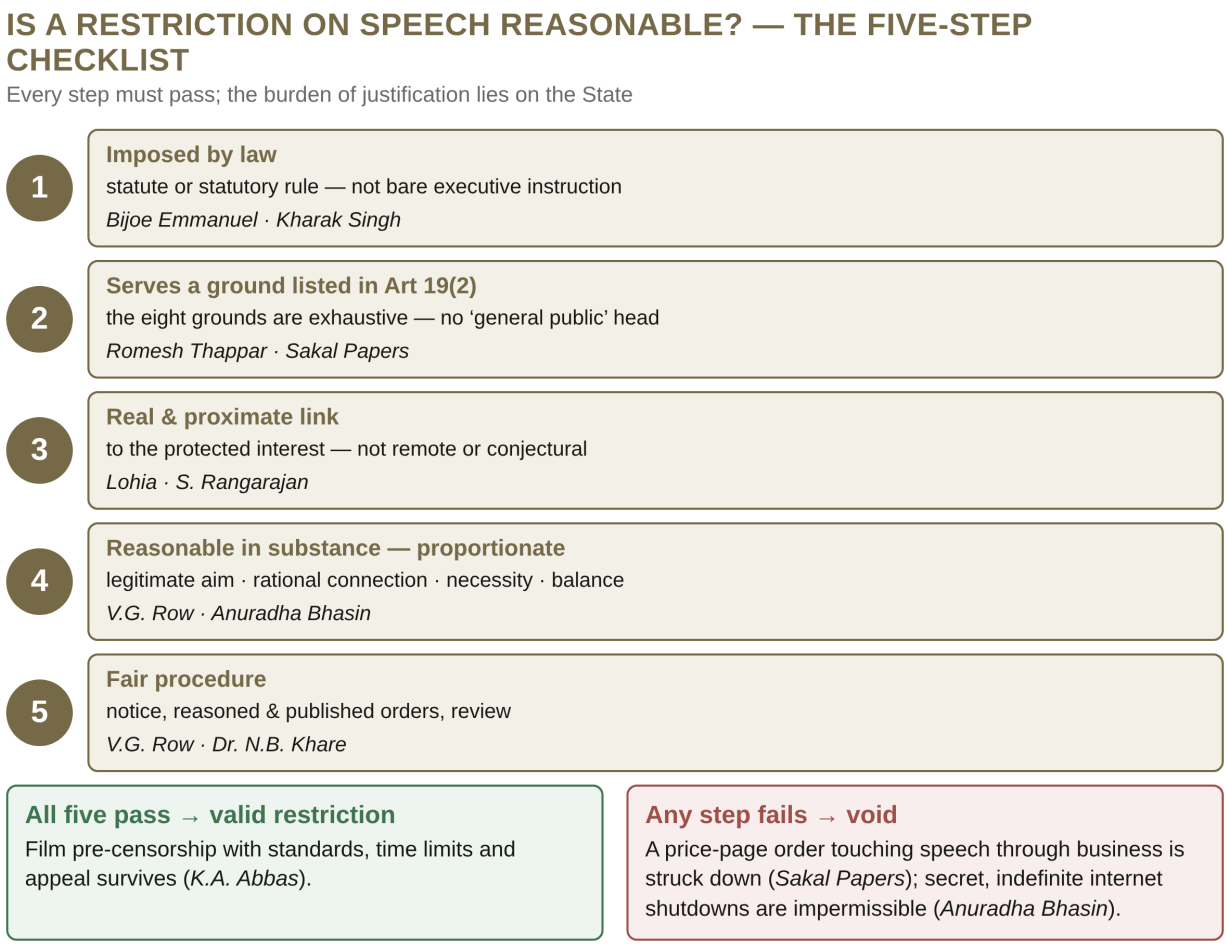
Form of expression	Authority
Oral and written speech; publication and circulation (including volume of circulation)	Romesh Thappar; Sakal Papers
Press freedom	Brij Bhushan; Bennett Coleman; Indian Express Newspapers (1985)
Political criticism	Kedar Nath Singh; S. Rangarajan
Artistic and literary expression	Ranjit D. Udeshi; Samaresh Bose v. Amal Mitra (1985)
Films	K.A. Abbas; Rangarajan; Bobby Art International (1996)
Television and broadcasting	Odyssey; LIC; Cricket Association of Bengal
Academic and research expression	LIC (a research study paper)
Peaceful advocacy and demonstration	Kameshwar Prasad v. State of Bihar (1962)
Digital and internet communication	Shreya Singhal (2015); Anuradha Bhasin (2020)
Symbols and symbolic acts — flying the flag	Union of India v. Naveen Jindal (2004)
Photographs and cartoons	Brij Bhushan; Aveek Sarkar
Silence	Bijoe Emmanuel v. State of Kerala (1986)
Advertisements — commercial speech	Tata Press v. MTNL (1995), qualifying Hamdard Dawakhana (1960)
Entertainment and sport	Cricket Association of Bengal
Replying to criticism	LIC v. Manubhai Shah
Receiving information	Raj Narain (1975); Cricket Association of Bengal

The scope of "speech and expression"

Circulation and the right to receive

An idea that cannot be disseminated has not been expressed in any useful sense. Romesh Thappar: a journal's entry ban restricts speech; Sakal Papers: price-by-page laws restrict speech by cutting circulation — the State cannot curb speech to regulate business; Bennett Coleman: newsprint quotas capping pages restrict speech; Odyssey: stopping a telecast restricts the producer; LIC: refusing a reply restricts the critic. Article 19(1)(a) also protects the listener and viewer: Raj Narain — the people's right to know every public act of their functionaries; Indian Express Newspapers — press freedom exists for the public's right to know; CAB — the viewers' interest is paramount; Association for Democratic Reforms (2002) — voters' right to know candidates' antecedents. The Right to Information Act, 2005 is the statutory vehicle.

Reasonable restriction — the five-step checklist



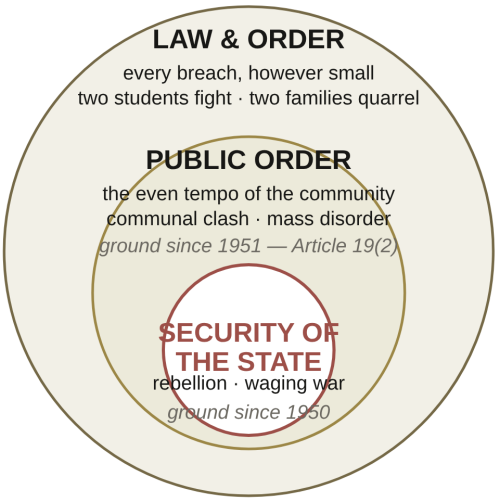
The five-step checklist for any restriction on speech

Points examiners look for: **"Law"** — the lecturer said only an Act of the legislature; the usual formulation is wider: a statute or a rule made under statutory power qualifies, bare executive instructions do not (the High Court rejected Doordarshan's norms on this basis in LIC). **Burden** — once the citizen shows a restriction, the State must justify it (LIC; CAB para 46). **Proportionality today** — legitimate aim, rational connection, necessity, balance (Modern Dental College; Anuradha Bhasin). **"In the interests of"** — wider than "for the maintenance of" (Ramji Lal Modi, 1957), but the 1960 Lohia case keeps it within proximity.

The three tiers of disorder

THREE CIRCLES OF DISORDER

Ram Manohar Lohia v. State of Bihar (1966), Hidayatullah J. — only the inner two circles justify restricting speech



HOW TO USE THE CIRCLES

- Law & order alone is NOT a ground for restricting speech under Art 19(2)
- The test is the effect on the community, not the nature of the act
- Nexus must be proximate, not remote — Lohia (1960): “a spark in a powder keg”

Three concentric circles — Hidayatullah J. in Ram Manohar Lohia (1966)

Romesh Thappar supplies the first half of the analysis — public order is wider than the security of the State, and in 1950 only the latter was a ground. The test is the act's effect on the community, not its nature (Arun Ghosh v. State of West Bengal, 1970). Proximate and reasonable nexus: a remote, hypothetical or far-fetched connection will not do (Lohia, 1960).

Obscenity — from Hicklin to community standards

Year	Case	Contribution
1868	R. v. Hicklin (England)	Tendency to deprave and corrupt those open to immoral influences; isolated passages; the most susceptible reader
1965	Ranjit D. Udeshi	Hicklin adopted with modifications; sex and nudity in art not obscene without more; conviction for selling Lady Chatterley's Lover upheld
1970	K.A. Abbas	Udeshi principles applied to film; standards not set by the most depraved
1985	Samaresh Bose v. Amal Mitra	Vulgarity is not obscenity; judge reads from the author's and reader's positions
1996	Bobby Art International (Bandit Queen)	Nudity judged in the work's context and message
2010	Khushboo	Opinion on sexual morality not obscene; contemporary community standards
2014	Aveek Sarkar	Hicklin rejected; community standard test adopted

The fifty-year arc of the obscenity test

Under the community standard test, ask three things: would an average person, applying contemporary standards, find the material tends to excite lust? Is it taken as a whole? What is its context and message?

Pre-censorship: print and film

	Print	Film
Leading case	Brij Bhushan (1950)	K.A. Abbas (1970)
Result	Pre-censorship order struck down	Prior certification upheld
Reason	No ground in Article 19(2) supported it	Film's stronger impact on a mass audience, including children
Limits	Can survive only with narrow scope, a time limit and a right of representation (Virendra, 1957)	Needs definite standards, room for art, a time limit and an independent appeal
Later authority	R. Rajagopal v. State of T.N. (1994): no prior restraint on publishing about public officials	S. Rangarajan: certification must be reasonable, judged by an ordinary person of common sense

Prior restraint across media

Incitement, proximity and the remaining grounds

Speech becomes punishable when it incites, not when it merely discusses or advocates. United States: Schenck (1919) — clear and present danger from anti-draft leaflets; Brandenburg v. Ohio (1969) — advocacy protected unless directed to inciting imminent lawless action and likely to produce it. India: Kedar Nath Singh (1962) saved section 124A by confining sedition to words with a tendency or intention to create disorder or incite violence — strong criticism of government is protected; Rangarajan (1989) — danger not "remote, conjectural or far-fetched," a spark in a powder keg; Shreya Singhal (2015) — discussion, advocacy and incitement distinguished; only incitement can be restricted. A caution: Arup Bhuyan v. State of Assam (2011) adopted Brandenburg for membership of banned organisations; a larger bench overruled that holding in 2023, warning against importing American doctrine without regard to 19(2)–(4). A fiery speech nobody acts on is rhetoric, not incitement.

Sovereignty and integrity: restricting advocacy of secession or cession of territory; Parliament used it to enact UAPA, 1967; section 152 of the Bharatiya Nyaya Sanhita, 2023 now penalises acts endangering sovereignty, unity and integrity. A student asked how violation is "quantified" — it is not measured: the State points to a law, shows the speech falls within it, and shows a proximate link to the harm. Balwant Singh v. State of Punjab (1995): raising separatist slogans a few times, with no response and no disorder, is not an offence. **Contempt:** Articles 129 and 215 and the Contempt of Courts Act, 1971; fair criticism of a judgment is permitted (E.M.S. Namboodiripad). **Defamation:** tort and crime (sections 499–500 IPC, now section 356 BNS); Subramanian Swamy v. Union of India (2016) upheld criminal defamation, treating reputation as part of Article 21; Khushboo shows the limit — only a person actually aggrieved may complain. **Decency or morality:** wider than obscenity, not confined to sexual morality (Ramesh Yeshwant Prabhoo, 1996). **Friendly relations:** added 1951, rarely litigated — targets propaganda damaging relations with another country, not criticism of its policies. **Security of the State:** rebellion, waging war — the innermost circle.

Part 4 — Comparative Constitutional Law

India writes its limits into the constitutional text; the United States leaves them to the courts; the international instruments follow the Indian pattern of right plus limitation clause.

Point	India	United States
Text	Right in 19(1)(a); eight grounds in 19(2)	Absolute wording; no restriction clause

Point	India	United States
Holder	Citizens	“The people”; the bar is on government
Source of limits	Legislation tested by courts for reasonableness	Judicial doctrine
Press	Not named; read into 19(1)(a)	Named expressly
Incitement	Proximity — spark in a powder keg (Rangarajan); incitement stage (Shreya Singhal)	Imminent lawless action (Brandenburg)
Prior restraint of films	Upheld (K.A. Abbas)	Allowed only with strict procedural safeguards
Obscenity	Community standard test (Aveek Sarkar), borrowed from Roth	Roth, refined in Miller v. California (1973)
Criminal defamation	Upheld (Subramanian Swamy)	Largely displaced by New York Times v. Sullivan (1964)

India and the United States compared

How Indian courts use American cases: persuasive on the guarantee's purpose, not its limits — K.A. Abbas and Rangarajan both say the First Amendment's absolute wording makes its case law an unsafe guide; Abbas quotes Douglas J. conceding that a “reasonable regulation” clause like India's leaves room for censorship; CAB borrowed the viewers' rights idea from Red Lion but rejected the scarcity argument on the facts. The framers learned from American experience: Dr. Ambedkar defended the limitation clauses in the Constituent Assembly by citing American decisions holding free speech not absolute. “Marketplace of ideas” traces to Holmes J.'s dissent in Abrams v. United States (1919). The U.S. case ladder: Schenck (1919); Whitney v. California (1927, Brandeis J. concurring — the remedy for bad speech is more speech); Brandenburg (1969); Near v. Minnesota (1931) and New York Times v. United States (1971) — prior restraint's heavy presumption of invalidity; Roth (1957); Joseph Burstyn v. Wilson (1952) — motion pictures protected; Sullivan (1964) — public officials must prove actual malice; Red Lion Broadcasting (1969) — viewers' and listeners' rights paramount.

Instrument	Provision	What it protects	Limits	Used in
Universal Declaration of Human Rights, 1948	Article 19	Opinion and expression; to seek, receive and impart information through any media	General clause in Article 29	LIC v. Manubhai Shah
ICCPR, 1966	Articles 19, 20	Opinion without interference; expression in any medium	Provided by law and necessary for rights or reputations, national security, public order, public health or morals; Article 20 bars war propaganda and incitement to hatred	India acceded 1979
European Convention, 1950	Article 10	To hold opinions and receive and impart information	Prescribed by law and necessary in a democratic society; broadcasting may be licensed	CAB, paras 37 and 163
French Declaration, 1789	Articles 11, 4	Free communication of thoughts and opinions	Responsibility for abuse defined by law	CAB, para 167

The international instruments

The First Amendment debate and Nehru's speech

Nehru's case: the courts had read Article 19 so widely that Parliament could not legislate for public order. The Bill was introduced 12 May 1951, referred to a Select Committee on 16 May, passed 2 June 1951 by 228 votes to 20. His argument, in paraphrase: the Constitution had been "kidnapped and purloined by lawyers"; judicial readings were blocking social and economic policy; the amendment was enabling only — it restricted no speech itself and restored Parliament's lawmaking power, still subject to judicial review; he criticised the press's tone — freedom carries responsibility; on sedition he called section 124A "highly objectionable and obnoxious" — yet the new public order ground later saved that section in Kedar Nath Singh. The Statement of Objects and Reasons cited courts holding a person not culpable "even if he advocates murder and other crimes of violence" — the Patna ruling. The opposition, led by Syama Prasad Mookerjee, argued a provisional Parliament chosen before the first general election should not cut back fundamental rights — though he accepted that adding "reasonable" was an improvement. For the verbatim speech: Parliamentary Debates of the Provisional Parliament, 16 May to 2 June 1951; book-length accounts: Granville Austin, Working a Democratic Constitution (1999); Tripurdaman Singh, Sixteen Stormy Days (2020).

Article 21 and the death penalty — why no right is absolute

Article 21's exception is in its text: no deprivation of life or liberty "except according to procedure established by law." If even life may be taken by law, speech cannot be absolute. Bachan Singh v. State of Punjab (1980) upheld the death penalty but confined it to the "rarest of rare"; Machhi Singh v. State of Punjab (1983) requires a balance sheet of aggravating and mitigating circumstances for each accused. **The "blue drum" case, corrected:** the class was told the lover received death and the wife twenty years — that does not match the record as of 5 October 2026. Saurabh Rajput was killed in Meerut in March 2025, his body found in a cement-filled blue drum; on 30 September 2026 the Meerut district court convicted his wife Muskan Rastogi and Sahil Shukla of murder; sentencing is listed for 14 October 2026, the prosecution seeking death for both. Points of law for the discussion: (1) conspiracy and abetment carry the same punishment as the offence — a student's claim that conspiracy does not attract death is incorrect (Kehar Singh, 1988); (2) sentencing is individual — same murder, different sentences for different roles and mitigating circumstances; (3) murder has only two punishments — death or life; a trial court cannot impose "twenty years"; only the High Court or Supreme Court may fix a term without remission as a death alternative (Swamy Shraddananda, 2008); (4) motherhood is a mitigating factor, not a bar — no rule exempts a mother. **The Shabnam case (Amroha):** April 2008 — Shabnam and Saleem killed seven members of her family; she was pregnant at arrest, delivered in jail in December 2008, the child fostered at about six; death sentences 2010, confirmed in Shabnam v. State of U.P. (2015), review dismissed January 2020, mercy petitions rejected — a student's claim that she "was hanged" is wrong: the latest reports (2021) record a sentence awaiting a death warrant and no execution. Shabnam v. Union of India (2015) separately holds a death warrant cannot issue until legal remedies are exhausted. Pregnant women: the High Court must commute a pregnant woman's death sentence to life (section 416 CrPC, now section 456 BNSS); before a 2009 amendment it could only postpone execution; Article 6(5) ICCPR likewise forbids execution of pregnant women — the rule protects a woman pregnant when the sentence falls due, which did not help Shabnam, whose child was born before trial ended.

Part 6 — The Twenty-Five Study Questions, Answered

#	Question (compressed)	Answer: the case and the proposition
1	Why did Romesh Thappar refuse to sever section 9(1-A)?	Language wide enough for both valid and invalid applications is void as a whole — the overbreadth idea; post-1951 the same ban would be tested for reasonableness and proximity on the public order ground

#	Question (compressed)	Answer: the case and the proposition
2	Does the First Amendment vindicate Fazl Ali J.'s dissent?	Both: it vindicates his view that serious disorder endangers the State — and confirms the majority's reading of the 1950 text (public order genuinely was not listed)
3	What does Brij Bhushan decide about pre-censorship as such?	That it is a restriction needing a 19(2) ground — not that all print pre-censorship is void; the Organiser order would today be tested under public order plus Virendra safeguards
4	Which V.G. Row factors did the Madras law fail?	Procedural fairness above all — no personal notice though membership was criminalised, and judicial inquiry shut out; a binding Advisory Board cannot cure that except in very exceptional circumstances
5	Abbas's stage-difference vs Blackstone's no-prior-restraint	Both hold for different media: prior restraint is permissible only with a legal basis, standards, time limits and appeal — Blackstone's absolute rule belongs to print's history, not Indian law
6	LIC hypotheticals: not “State”; no counter printed; private funding	(a) No Article 12 duty — the ruling collapses; (b) no right of reply arises absent the one-sided publication; (c) the public-funds rationale fails — the ruling was confined to its peculiar facts
7	Sawant J. vs Jeevan Reddy J. on private broadcasting	Sawant: airwaves public property, independent regulator; Jeevan Reddy: no citizen's right to a station — Parliament decides; a would-be broadcaster must look to legislation
8	Khushboo had she advocated an offence	Advocacy is protected until incitement (Shreya Singhal); urging an offence with proximity could be restricted — the reasoning would move from obscenity to incitement analysis
9	Should the message matter in obscenity?	Yes — Bobby Art and Aveek Sarkar read depictions with their message; the same photograph in a perfume advertisement, stripped of the anti-racist context, would likely fail
10	Padma awardee prints “Padma Shri” on a poster	Balaji Raghavan: awards are not titles but must not be used as prefix or suffix — he should forfeit the award
11	Reconciling Brij Bhushan with Abbas	The distinction rests on medium and safeguards together; a streamed film belongs with film (sight, sound, mass reach), while the transmission platform engages Sakal's direct-effect test
12	The dissemination chain	Thappar: circulation is speech; Sakal: price-page laws cut circulation; Odyssey: telecast is expression; LIC: the reply; CAB: the right to receive and the airwaves
13	Odyssey's reserved question after CAB	Answered in part: the organiser may telecast through an agency of its choice; a private station remains for Parliament (Jeevan Reddy J.)
14	Would Udeshi survive Aveek Sarkar?	Possibly not on the merits — community standards, the whole work and its context might exonerate the novel — though Udeshi's strict liability for sellers and modified-Hicklin method would be gone
15	V.G. Row's “disproportion” vs modern proportionality	The same idea in looser form: one factor among five, now a structured four-part review (aim, suitability, necessity, balance)
16	Two-month State-wide ban citing “likelihood of communal tension”	Test the five steps: statutory basis (yes, PSA); public order (listed); proximate link (likelihood must be real, not conjectural — Lohia); proportionality (two months, whole State — overbroad); procedure (notice, reasons) — likely fails steps 3–5
17	DM circular, no statutory backing, clearing college magazines	Fails step 1 — “law” means statute or statutory rule; bare executive instructions cannot restrict speech (Beg J. in Bennett Coleman; LIC)

#	Question (compressed)	Answer: the case and the proposition
18	Speaker A (thin crowd, break-up-the-country) vs Speaker B (armed crowd, burn the police station now)	A: Balwant Singh — slogans without response or disorder are not an offence; B: Rangarajan's spark in a powder keg and Shreya Singhal's incitement stage — punishable
19	University journal refuses a student's rejoinder (Dongargaon)	If publicly funded, the university is “State” and LIC applies; if private, LIC does not — its right-of-reply reasoning rests on State action and public funds
20	Federation sells exclusive rights; public broadcaster demands the feed	CAB helps both sides — viewers' rights paramount, no monopoly; but the feed-sharing rule itself comes from the Sports Broadcasting Signals Act, 2007
21	News portal publishes A calling B a thief — libel or slander?	A recording is permanent form — libel; but Indian criminal law treats spoken and written defamation alike, so the classification matters little here
22	Injunction against a Partition serial	Refuse: Ramesh (message of peace, strong-minded viewer), Rangarajan (State must protect speech from hostile audiences), Odyssey (no injunction on non-listed grounds)
23	Spark in a powder keg vs imminent lawless action	Comparable stringency; the difference is textual — “in the interests of public order” plus reasonableness lets Indian courts weigh proximity case by case against a listed ground
24	Why India upholds film pre-certification and criminal defamation when America would not	Because Article 19(2) lists grounds and permits “reasonable restrictions” — the First Amendment's absolute text forces judge-made exceptions (Abbas; Subramanian Swamy)
25	Did the First Amendment narrow or strengthen the right?	Both: it added grounds (narrowing) and the word “reasonable” (strengthening) — every restriction now faces judicial review (V.G. Row), as the 1950 cases could not ensure

The study questions with their answers

DAY 21
7 October 2026

Must-Read Case Briefs — The Study Companion

The reading list · Seven lecture-vs-judgment corrections · Eleven briefs from the judgment texts

Which Cases to Read

Case	Decided	What the lecture uses it for
Dr. Ram Manohar Lohia v. State of Bihar	7 Sep 1965	Law and order / public order / security — the lecturer says this distinction will be asked in the exam
Sakal Papers v. Union of India	25 Sep 1961	Indirect restriction on the press through pages, price and advertisements
Bennett Coleman & Co. v. Union of India	30 Oct 1972	The ten-page limit
Express Newspapers Pvt. Ltd. v. Union of India	7 Oct 1985	“Indian Express”: the building lease cancelled (see correction 3)
Hamdard Dawakhana v. Union of India	18 Dec 1959	Commercial advertisement held unprotected

Case	Decided	What the lecture uses it for
Tata Press Ltd. v. MTNL	3 Aug 1995	Commercial advertisement held protected
Ranjit D. Udeshi v. State of Maharashtra	19 Aug 1964	Obscenity — the lecturer credits it with the community standard test, which is wrong
Aveek Sarkar v. State of West Bengal	3 Feb 2014	Not named in the lecture, but the real source of the community standard test described
Bobby Art International v. Om Pal Singh Hoon	1 May 1996	Bandit Queen and the Phoolan Devi scenes
Anuradha Bhasin v. Union of India	10 Jan 2020	Proportionality as the modern meaning of “reasonable”
Hans Muller v. Superintendent, Presidency Jail	23 Feb 1955	The Netanyahu hypothetical: Article 19 is for citizens only — closing pages only
Regina v. Hicklin	1868	The old obscenity test — know it; quoted in full in Udeshi
Indian Express Newspapers (Bombay) v. Union of India	1984	Not the case the lecturer described — the other “Indian Express” case, on newsprint duty; skim
P.J. Thomas (CVC appointment, 2011); Weeks v. United States (1914); the Election Commissioner case (2023)	—	Digressions not opened for Article 19

The reading list (the lecturer first said “N.M. Thomas” and corrected himself to P.J. Thomas — N.M. Thomas being a reservation case)

CORRECTIONS

Where the lecture and the judgments differ — seven points to correct before writing them in an exam: (1) The community standard test is not from Ranjit Udeshi — Udeshi expressly refused to discard Hicklin and only qualified it; Aveek Sarkar (2014) is the authority. (2) The ten-page limit is Bennett Coleman, not Sakal — Sakal (1961) struck down the price-to-pages schedule; Bennett Coleman (1972) struck down the flat ten-page ceiling; the chain the lecturer described (fewer advertisements, higher price, lower circulation, closure) is Sakal's reasoning, repeated in Bennett Coleman. (3) The “Indian Express” lease was never cancelled — Express Newspapers (1985) quashed two show-cause notices (re-entry on the lease; demolition); the other Indian Express case concerns newsprint duty. (4) Tata Press did not overrule Hamdard Dawakhana — a three-judge bench cannot overrule five; it read Hamdard as confined to advertisements of prohibited drugs, relying on Indian Express (1985). (5) This Lohia case is a preventive detention case — the concentric circles come from Hidayatullah J. reading “public order” in rule 30(1)(b) of the Defence of India Rules, 1962, while Article 19 stood suspended; the distinction is now used to read “public order” in 19(2), and Anuradha Bhasin repeats the circles when judging section 144 orders. (6) “Law” need not itself be an Act of the legislature — the tested restrictions came through statutory orders and rules (the Price and Page Order 1960 in Sakal; rule 458 of the Telegraph Rules in Tata Press; the Suspension Rules 2017 in Anuradha Bhasin); what fails is bare executive policy with no statute behind it — Beg J.'s ground in Bennett Coleman. (7) Proportionality has more than one formulation — the class's four steps (aim, rational connection, necessity, balancing) are the earlier cases' statement; Columbia's analysis of Anuradha Bhasin reports the Court's own five-point summary (legitimate goal, necessity, alternatives considered, least restrictive measure, judicial review) — the student who added judicial review was right about this case. Two points the lecture got exactly right: “better administration” is not a ground (Sakal — no “interests of the general public” head); and the two-drunks example is Hidayatullah J.'s own illustration in Lohia.

The Briefs

Hans Muller v. Superintendent, Presidency Jail, Calcutta (1955)

AIR 1955 SC 367 · per Bose J. — closing pages only required

Facts · Hans Muller, a West German subject, arrested 18 September 1954 and detained under section 3(1)(b) of the Preventive Detention Act, 1950 with a view to expulsion; his passport endorsed for return only; a German fraud warrant and extradition request pending; the Centre's signed expulsion order held back once he moved the High Court.

Held · (1) Competence: Entries 9–10, Union List — preventive detention connected with foreign affairs; the Foreigners Act, 1946 supported. (2) Articles 21 and 22 protect "citizen and foreigner alike." (3) Detention to arrange expulsion is genuinely preventive — preventing evasion. (4) A State may act in anticipation of the Centre's order. (5) Excluding certain British subjects from "foreigner" is a reasonable classification. (6) Article 19's rights to move and reside have "no corresponding" foreigner rights — all a foreigner is guaranteed is life and liberty under Article 21. (7) Expulsion power is "absolute and unfettered." (8) Expulsion is not extradition — the expelled person leaves a free man; government may choose the Foreigners Act route even where extradition is requested. (9) Bad faith not shown.

Principle · Cite for: Article 19 is confined to citizens. Be precise — the Court spoke of the rights to move and reside, in an expulsion case; free speech by a foreigner was not in issue. The same visitor still has Articles 14 and 21.

Dr. Ram Manohar Lohia v. State of Bihar (1965)

AIR 1966 SC 740 · Sarkar, Hidayatullah, Raghubar Dayal, Mudholkar, Bachawat JJ. · Lohia argued in person · released 4:1 (Raghubar Dayal J. dissenting)

Facts · The 1962 Chinese-attack Emergency; the Defence of India Rules' rule 30(1)(b) permitting detention to prevent acts prejudicial to "public safety" and "maintenance of public order" — not "law and order." On 9 August 1965 the Patna District Magistrate ordered Lohia's detention to prevent acts prejudicial to "the public safety and the maintenance of law and order"; served 1.40 a.m.; Hazaribagh Central Jail by 3.30 p.m.; Lohia's Hindi letter from jail became the writ petition.

Held · (1) The petition was entertainable: the Article 359 order bars petitions only where liberty was taken "under" the Act — whether it was so taken must itself be examined; the President's order "did not make lawless actions lawful." (2) Sarkar J.: the order is the only warrant and must be strictly in the rule's terms; "public order" in an emergency law means disorder of a grave nature, "law and order" lesser local disorder (rowdiness at Holi); the State cannot use an affidavit to show the order meant what it does not say; one valid and one invalid ground (public safety valid; law and order not) — under Shibban Lal Saksena the whole order falls. (3) Hidayatullah J. (with Bachawat J.): disorder is a spectrum; two drunkards quarrelling cause disorder, not public disorder — if the two belong to rival communities and one stirs communal passion, public disorder is "apprehended"; the circles — "Law and order represents the largest circle within which is the next circle representing public order and the smallest circle represents security of State"; by writing "law and order" the Magistrate "was adding a clause to the Defence of India Rules." (4) Mudholkar J.: the words made the order ambiguous on its face. Dissent (Raghubar Dayal J.): actual satisfaction, not form, controls; the file note showed public order satisfaction.

Principle · The three concentric circles; for Article 19(2) only the inner two circles are grounds — a mere law and order problem is not.

Sakal Papers (P) Ltd. v. Union of India (1961)

AIR 1962 SC 305 · unanimous Constitution Bench · per Mudholkar J. · G.S. Pathak for petitioners; M.C. Setalvad, Attorney-General, for the Union

Facts · Sakal, the Marathi daily from Poona (circulation ~52,000 weekdays, 56,000 Sundays; six pages at 7 naye paise, Sunday ten at 12), and two readers' petitions, against the Newspaper (Price and Page) Act, 1956 and the Daily Newspapers (Price and Page) Order, 1960 — a schedule fixing maximum pages per price; supplements only on 26 January, 15 August, once a quarter, else by permission.

Held · Section 3(1) unconstitutional. (1) Press freedom is within 19(1)(a) — Brij Bhushan. (2) Circulation is part of the right — "not merely to the matter which he is entitled to circulate, but also to the volume of circulation." (3) The real purpose was to cut circulation — a minimum price for pages makes papers too costly for a class of readers. (4) Price affects circulation (the Press Commission's findings: Free Press Journal's price cut doubled circulation; two Tamil dailies' price rise lost 33,000 readers). (5) Cutting pages compels restricting news; cutting advertisements forces prices up — "no remote, but a direct consequence," a vicious cycle ending in closure. (6) Supplement control leaves issues to government's "sweet will and pleasure." (7) 19(2) is exhaustive — nothing allows restriction for the general public or a section. (8) 19(6) cannot be borrowed — each freedom has its own clause; the State cannot regulate the business side "by directly and immediately curtailing" speech. (9) The test is direct effect: a law capping a named paper's subscribers would be void; achieving it through a rate schedule makes no difference. (10) A good object (checking monopoly) does not save bad means — "a dangerous weapon which is capable of being used against democracy itself." The Article 14 point and the readers' standing were left undecided.

Principle · Indirect restrictions on the press: the State cannot do through price, pages or advertisements what it cannot do directly.

Bennett Coleman & Co. v. Union of India (1972)

(1972) 2 SCC 788 · Sikri C.J., Ray, Jaganmohan Reddy, Mathew, Beg JJ. · 4:1 (Mathew J. dissenting) · Palkhivala, Daphtary, Nambyar for petitioners; F.S. Nariman for the Union

Facts · Four groups — Bennett Coleman (Times of India), Hindustan Times, Express Newspapers, The Hindu — against the Newsprint Policy 1972-73: a 10-page quota ceiling (Remark V); circulation growth 10% for dailies under 1,00,000 but 3% for larger (VII(a)); a 20% page increase for under-10-page dailies usable only for pages (VII(c)); no page increases by cutting circulation, no quota shifting within common ownership units (VIII); no new newspaper or edition even within quota (X).

Held · Two preliminary objections rejected: a company is not a citizen — but under R.C. Cooper shareholders do not lose rights by incorporating; Article 358 (1971 Emergency) does not protect executive action lacking legislative authority. The majority (Ray J.): rationing scarce newsprint is allowed — but "shortage of newsprint can stop with allotment"; the test is direct effect, not pith and substance; the policy directly controlled page growth, circulation and advertisement space. The ten-page ceiling: the three Times editions averaged 13.13, 13.99 and 17.83 pages — cuts of 23.8%, 28.4%, 43.8% against a 4.5% newsprint fall; The Hindu faced 16 to 10. Unequals treated as equals — Article 14 violated. Estimated losses: Rs. 39 lakh (Bennett Coleman), Rs. 44 lakh (Hindustan Times), Rs. 38 lakh (The Hindu). Remarks V, VII(a), VII(c), VIII struck down under Articles 14 and 19(1)(a); X under 19(1)(a). Press liberty is "an Ark of the Covenant." Beg J. concurring: the conditions had no authority of law at all. Mathew J. dissenting: "an abridgment of speech, but not an abridgment of the freedom of speech"; Article 19(1)(a) is not "the guardian of unlimited talkativeness"; the community's right to hear supports maximum circulation; Article 39(b) validates the small-dailies' classification.

Principle · The effect test — judge a measure by its direct effect on the right, not its label or purpose; shareholders and editors can enforce 19(1)(a) through the company.

Express Newspapers Pvt. Ltd. v. Union of India (1985)

(1986) 1 SCC 133 · A.P. Sen, Venkataramiah, Misra JJ. · F.S. Nariman for petitioners

Facts · The press enclave on Bahadur Shah Zafar Marg; Express Newspapers' plots leased from 1954; building only east of a diagonal sewer under the 1957 agreement; 1977 request to divert and build with double basement; DDA and Ministry approvals (1978); Rs. 1.30 crore spent by February 1980. Then: 17 February 1980 — Jagmohan takes office as Lieutenant-Governor and that Sunday evening calls for the municipal files; 29 February — the Zonal Engineer's locks broken to remove the file; 1 March — press conference announcing an inquiry by three subordinates in three days and a demolition warning, broadcast on radio and television; 1 March — a show-cause notice for demolition; 10 March — a notice to show cause on lease re-entry; 12 March — the committee's report released at another press conference. The Indian Express had published on Jagmohan's role in the Turkman Gate demolitions during the Emergency.

Held · Both notices quashed. The Lieutenant-Governor confused power over Union property (Entry 32, Union List) with his Article 239 powers — nearness to the Centre gave him no authority over its property. A.P. Sen J.: the notices "are intended and meant to silence the voice of the Indian Express" — a direct and immediate threat to press freedom, violating 19(1)(a) read with 14; a writ lies though the matter looks contractual; the re-entry notice was real, not exploratory; summary eviction was unavailable; mala fides — power used for an alien purpose is bad faith; the specific allegations were met only with bare denials; nothing was contemplated before 17 February; promissory estoppel binds the successor government. Venkataramiah J.: arbitrary, without independent application of mind — Article 14. Misra J.: the land rights spring from contract and planning law, not 19(1)(a) — a matter for a civil suit.

Principle · Administrative harassment of a newspaper as an indirect attack on press freedom (Sen J.); the model of proving mala fides from a detailed chronology. Do not write that the lease was cancelled — two show-cause notices issued, both quashed.

Hamdard Dawakhana (Wakf) Lal Kuan v. Union of India (1959)

AIR 1960 SC 554 · per Kapur J. · K.M. Munshi and N.C. Chatterjee for petitioners; C.K. Daphtary, Solicitor-General, for the Union

Facts · The Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954: "advertisement" defined widely (labels, cartons, leaflets); "magic remedy" includes talisman, mantra, kavacha; section 3 barred advertisements suggesting drugs for miscarriage, contraception, sexual capacity or venereal disease "or any other disease... specified in rules"; section 8 allowed seizure. Hamdard, the Delhi Unani house, was stopped from advertising forty products; the Poona branch of Sadhana Ausadhalaya was raided without warrant.

Held · Method: find the law's true nature and character — history, mischief, remedy; presumption of constitutionality. History: the 1927 Council of State resolution, the Chopra Committee, the Drugs Act 1940, the Bhatia Committee 1953, English statutes. The evil: self-medication driven by extravagant advertising to a credulous public. Article 19(1)(a): "An advertisement is no doubt a form of speech but its true character is reflected by the object for the promotion of which it is employed" — a commercial advertisement does not propagate social, political or economic ideas; advertising prohibited drugs is not speech (relying on Valentine v. Chrestensen). 19(1)(f)/(g): reasonable in the general public's interest. But: section 3(d)'s delegation — naming further diseases by rule with no criteria — "uncanalised and uncontrolled power," void; the Rules' Schedule fell with it (severable). Section 8's seizure power went far beyond the Act's purpose and lacked safeguards — void; mandamus to return seized goods.

Principle · The starting point of the commercial speech story (1959: purely commercial advertising outside 19(1)(a)) — and a leading case on excessive delegation. Confined by later cases to its facts.

Tata Press Ltd. v. Mahanagar Telephone Nigam Ltd. (1995)

(1995) 5 SCC 139 · per Kuldip Singh J. · Dr. Abhishek Singhvi for Tata Press; K.K. Venugopal and Arun Jaitley for the Nigam

Facts · MTNL (80% government-held, licensee under the Telegraph Act 1885) gave directory publishing to contractors earning from Yellow Pages advertising; Tata Press published its own Yellow Pages buyers' guide (Bombay editions 1992-94); rule 458 of the Telegraph Rules, 1951 bars publishing "any list of telephone subscribers" without permission; the City Court dismissed MTNL's suit, the Single Judge and Division Bench of Bombay reversed and enjoined.

Held · Appeal allowed. Hamdard rested on Valentine v. Chrestensen — but American law moved: Sullivan (1964), Bigelow v. Virginia (1975), Virginia State Board of Pharmacy (1976 — a free flow of commercial information is indispensable), Bates v. State Bar of Arizona (lawyer advertising allowed; false and misleading advertising restrainable). The Indian text differs: Article 19(2) itself lists the restrictions — deceptive, unfair, misleading and untruthful commercial speech is hit by 19(2). Hamdard confined: it dealt with prohibited drugs; Indian Express (1985) had already called its wider observations too broad. Advertising pays most of the media's cost (60-80% of newspaper revenue) — Sakal and Bennett Coleman show curbing advertisements hits circulation. The receiver's right: the recipient may have a deeper interest than the advertiser (the life-saving drug example). Holding: "Commercial speech" is part of 19(1)(a). Application: a telephone directory is a public utility the authority may regulate; paid Yellow Pages advertising is not that service; a 19(1)(a) right cannot be denied by creating a government monopoly; Tata's guide is compiled by trade, not by subscription — not a "list of subscribers." Rule 458 remains mandatory for white-pages entries.

Principle · Commercial advertisements are protected speech; listeners and readers have their own right to receive. Limits: false, misleading or deceptive advertising may be restrained (the judgment does not say which 19(2) head covers it — a gap for critical answers). It did not overrule Hamdard.

Ranjit D. Udeshi v. State of Maharashtra (1964)

AIR 1965 SC 881 · Gajendragadkar C.J., Wanchoo, Hidayatullah, Shah, Rajagopala Ayyangar JJ. · per Hidayatullah J. · R.K. Garg for the appellant; C.K. Daphtary for the State

Facts · Four partners of Bombay's Happy Book Stall found with unexpurgated Lady Chatterley's Lover; one sold a copy to a decoy customer; all convicted under section 292 IPC (fines of Rs. 20); Mulk Raj Anand testified to the novel's literary merit.

Held · (1) Section 292 valid — a reasonable restriction in the interests of decency or morality; obscenity has "extremely poor value" in spreading ideas, though where ideas of public interest are conveyed (the medical textbook) the balance tilts toward speech. (2) Knowledge of obscenity is not an ingredient — no "knowingly" in the section; liability is strict, though absence of knowledge may mitigate sentence. (3) The test: Hicklin set out (tendency to deprave and corrupt susceptible minds), "uniformly applied in India"; mere treatment of sex and nudity in art is not obscenity "without something more" — Michelangelo's angels need not wear breeches; but "We do not think that it should be discarded." Three qualifications: not stray words — the whole work viewed overall; yet the obscene matter also considered "by itself and separately"; art must so preponderate as to throw obscenity into shadow. Obscenity "without a preponderating social purpose or profit" has no protection — judged "by our national standards." (4) The novel: Lawrence's sincerity accepted, but the sexual descriptions were its only attraction for the common reader; the law protects "not those who can protect themselves"; the impugned portions passed permissible limits; no preponderating social gain shown. Appeal dismissed. (Contrast: the English Central Criminal Court in R. v. Penguin Books had held the same novel not obscene.)

Principle · Cite for "Hicklin as modified," not for the community standard test; and for the seller's strict liability.

Aveek Sarkar v. State of West Bengal (2014) — the brief

Facts · Stern's Becker-Feltus photograph (taken by her father), reproduced by Sports World (cover story, 5 May 1993) and Anandabazar Patrika (6 May 1993); the Alipore lawyer's complaint under section 292 IPC and section 4 of the Indecent Representation of Women (Prohibition) Act, 1986; summons 10 May 1993; the High Court refusing to quash. (An earlier lecture called the fiancée South African; the judgment calls her a dark-skinned film actress, the complainant a German film actress.)

Held · Standards change (paras 12-19) — Udeshi, Kakodkar, Samaresh Bose, Khushboo each stressed contemporary values; the yardstick (para 19): "contemporary mores and national standards," not the susceptible group. Hicklin judged by isolated passages and the most susceptible readers; Roth (1957) moved to the average person; Canada followed in Towne Cinema and Butler. Para 24: "We are also of the view that Hicklin test is not the correct test" — the community standard test applies; nudity is not obscenity per se — only material exciting lustful thoughts; the message and context (paras 25-26, following Bobby Art; Ajay Goswami). The photograph: standing close, Becker's arm covering her breast, taken by her own father; the message — skin colour matters little, love prevails; no tendency to deprave. Proceedings quashed.

Principle · Three working rules: the average person, not the most susceptible; the work as a whole; context and message. The standard is national and contemporary. For criticism: a two-judge bench declared Hicklin incorrect although the five-judge bench in Udeshi had declined to discard it.

Bobby Art International v. Om Pal Singh Hoon (1996)

(1996) 4 SCC 1 · Ahmadi C.J., Bharucha, Kirpal JJ. · per Bharucha J.

Facts · Bandit Queen, from Mala Sen's book (on sale since 1991 without objection): Phoolan Devi married as a child, raped, humiliated by police, gang-raped, stripped and paraded naked, turning dacoit and to revenge. The Tribunal (Lentin J., retired Bombay High Court, and three women members) allowed the coarse language (ordinary speech in the Chambal), kept the police-beating scene (it explains her turning), cut the second of three rape sequences and trimmed the first and third, kept the naked parade whole — cutting it "would be a sacrilege," comparing Schindler's List's frontal nudity. The Delhi High Court quashed the certificate. The petitioner: a Gujjar claiming the film slurred his community (the rapist named Babu Gujjar) and Indian womanhood.

Held · 'A' certificate restored. The guidelines are broad standards, not a statute — clause 2's sub-clauses cannot outweigh clauses 1 and 3. Where the theme is of social relevance it must prevail; this film "is not a pretty story" — it accuses the society that tormented her. The naked parade: those who stripped her meant to demean her; showing it conveys exactly that — sympathy for the victim, disgust for the perpetrators; "Nakedness does not always arouse the baser instinct." The High Court's error: the revulsion the Tribunal spoke of was at the sadism of the strippers, not her nudity. Rape is shown for its terrifying effect, not glorified. The test: for a serious film, ask of each scene — does it advance the message? If so, leave it alone, with an 'A' certificate. A film illustrating a social evil must necessarily show the evil; a film extolling it is impermissible; the depiction must be just sufficient. Deference to the expert multi-member Tribunal (three of four members women); the writ court ought not to have entertained a petition resting on a community slur.

Principle · Nudity is not obscene by itself — context and purpose decide; the "advance the message" test that Aveek Sarkar later applied to a photograph.

Anuradha Bhasin v. Union of India (2020)

(2020) 3 SCC 637 · N.V. Ramana, R. Subhash Reddy, B.R. Gavai JJ. · (brief written from Columbia's case analysis plus four readable paragraphs — check quotations against the judgment)

Facts · 2 August 2019 — J&K; Home Department advises tourists and Amarnath pilgrims to leave; schools and offices closed. 4 August — mobile networks, internet and landlines shut; District Magistrates impose section 144 CrPC. 5 August — the constitutional order ending Article 370's special status. Anuradha Bhasin, editor of the Kashmir Times (Srinagar), unable to publish since 6 August; Ghulam Nabi Azad M.P.; an intervenor noting restrictions described as temporary had lasted over 100 days. The State: cross-border terrorism history (similar steps in 2016); the internet never restricted in Jammu and Ladakh; social media's one-to-many reach; selective blocking not technically possible; newspaper standards do not carry over to the internet.

Held · (1) Orders must be produced and published — Article 32 remedies and the right to information require it; no law affecting rights should be passed in secret. (2) The internet: the most used and accessible medium of information; trade and commerce through it are protected under 19(1)(g) subject to 19(6); expression through it is integral to 19(1)(a), restrictable only under 19(2) — but no fundamental right of access to the internet was declared (no party argued for one). (3) A restriction may in a proper case amount to complete prohibition, but the government must explain why lesser measures would not do. (4) Proportionality: whether the least restrictive choice was made (para 53), drawing on Modern Dental College; the Court's own five points — legitimate goal, necessity, alternatives considered, least restrictive measure, judicial review; the restriction's degree, scope, territory and duration must match necessity (para 71). (5) Shutdowns: governed by the 2017 Suspension Rules under the Telegraph Act — only the Union or State Home Secretary (or a Joint Secretary in unavoidable circumstances, confirmed within 24 hours); reasons recorded; Review Committee; section 5(2) requires "public emergency" or "public safety" of a serious nature; orders must be published for challenge; complete suspension is drastic — only if necessary and unavoidable after assessing alternatives (para 99); indefinite suspension impermissible. (6) Section 144: only where danger exists or is apprehended, in the nature of an emergency; cannot suppress legitimate expression; orders must state material facts — mechanical or cryptic orders unlawful; repetitive orders are abuse; the concentric circles repeated (para 120). (7) Press freedom valuable under 19(1)(a), but no evidence publication was actually stopped — no sword of Damocles may "hang over the press indefinitely" (para 151). Order: the Government to review all suspension and section 144 orders, publish them, and withdraw those unnecessary or without time limits.

Principle · Proportionality as the present meaning of "reasonable"; the internet as protected medium (without overstating access as a right); restriction orders must be published and reasoned. Critics note: principles laid down, no immediate relief given.

DAY 0
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Ranjit D. Udeshi v. State of Maharashtra	1964	Hicklin retained with three qualifications; seller's strict liability	20, 21
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Romesh Thappar v. State of Madras	1950	Circulation is speech; grounds exhaustive; overbreadth; caused the First Amendment	3, 4, 20
Saghir Ahmad v. State of U.P.	1955	Cooley's doctrine — a void post-Constitutional law must be re-enacted	4
Sajjan Singh v. State of Rajasthan	1965	Seeds of doubt — Hidayatullah and Mudholkar JJ.	2, 5
Sakal Papers v. Union of India	1961	Price-page laws void — indirect restriction on circulation	20, 21
Samaresh Bose v. Amal Mitra	1985	Vulgarity is not obscenity	20
Satwant Singh v. Union of India	1967	No passport refusal without law — the Passports Act, 1967 resulted	10
Shabnam v. State of U.P. / v. Union of India	2015	Death sentence confirmed; death warrant only after remedies exhausted	20
Shah Bano	1985	Maintenance beyond iddat — relief granted without attacking personal law	1
Shankari Prasad v. Union of India	1951	Amendment is constituent power, not “law” — harmonious construction	1, 2
Shayara Bano	2017	Instant triple talaq declared unconstitutional — in a roundabout manner	1
Shreya Singhal v. Union of India	2015	Discussion–advocacy–incitement; only incitement is restrictable	20
State of Gujarat v. Ambica Mills	1974	A void post-Constitutional law is void only quoad citizens	4
Subramanian Swamy v. Union of India	2016	Criminal defamation upheld — reputation is part of Article 21	20
Dr. Subramanian Swamy v. Dr. Manmohan Singh	—	Refusing prosecution sanction violates the Rule of Law	13
Sukanya Samriddhi v. Union of India	2023-24	Delete the caste column in prison registers	15
Suraj Mall Mohta v. A.V. Visvanatha Sastri	1955	Section 5(1) unconstitutional — the stage for Basheshar Nath	4
Tata Press v. MTNL	1995	Commercial speech protected; the right to receive it too	21

Case	Year	One-line holding / significance	Day
Thakur Pratap Singh (State of Rajasthan v.)	—	Police tax exempting Muslims violates Article 15(1)	15
Waman Rao v. Union of India	1981	Ninth Schedule cut-off at 24 April 1973	4, 5
Zoroastrian Cooperative Housing Society v. District Registrar	2005	Housing societies may restrict membership — the pluralism concern	16

Every case in the course, indexed

Doctrines at a Glance

Doctrine	One-line statement	Anchor
Basic structure	Parliament may amend any provision but cannot destroy the Constitution's identity	Kesavananda (1973)
Harmonious construction	Conflicting provisions are read so both survive in their spheres	Shankari Prasad (1951)
Prospective overruling	A new rule operates from the judgment date; past transactions stand	Golaknath (1967)
Eclipse	A pre-Constitutional inconsistent law is dormant for citizens, alive for others, and revives when the FR changes	Bhikaji Narain (1955)
Severability	Void only “to the extent” — unless the parts are inseparable or misuse-prone	RMDC (1957)
Waiver (no waiver)	Fundamental rights are public rights; they cannot be surrendered	Basheshar Nath (1959)
Two-limb classification	Intelligible differentia + rational nexus with the object	Anwar Ali Sarkar (1952)
Non-arbitrariness	Arbitrariness is the antithesis of equality — no comparator needed	E.P. Royappa (1973)
Golden triangle	Articles 14, 19 and 21 are read together	Maneka Gandhi (1978)
Post-decisional hearing	Urgent action first; notice and hearing immediately after	Maneka Gandhi (1978)
Reasonableness	Substance and procedure; no abstract standard — weigh right, purpose, urgency, disproportion, conditions	V.G. Row (1952)
Proportionality	Legitimate aim; rational connection; necessity; balance — plus judicial review	Anuradha Bhasin (2020)
Three circles	Law and order ⊃ public order ⊃ security of the State — only the inner two ground speech restrictions	Lohia (1966)
Community standard test	Obscenity by the average person, contemporary standards, whole work, context and message	Aveek Sarkar (2014)
Creamy layer	The advanced within a backward class are weeded out	Indra Sawhney (1992)
50% ceiling	Reservation ordinarily cannot exceed half — a rule of caution	Balaji (1963) → Indra Sawhney
Rule of Law vs Rule by Law	The law itself must be just, fair and reasonable	Dicey; North Korea v. India

The doctrinal toolkit of the whole course

The Professor's Standing Directives

EXAM DIRECTIVES

(1) If asked about the Rule of Law, write a little about India — writing that it came from Western countries costs three marks automatically. (2) Never write “quasi-federal” — the Constitution is federal; federation is basic structure. (3) Chant it five times: Articles 20 and 21 can never be suspended — Article 359 now reads “except 20 and 21.” (4) Reading Subramanian Swamy v. Manmohan Singh is compulsory — “anyone who does not read it will fail the mid-term” (he has never actually framed a question on it). (5) Do not study from ChatGPT — it fetches the wrong speech and invents arguments; depend on original sources. (6) In answers, use the structure: meaning → dictionary definition → jurist's view. (7) Use simple language in presentations — “repeated,” not “reiterated.” (8) Cite each case only for the point it proves, and read the facts with precision — skip one qualifier (“3-Star”) and the differentia becomes invisible. (9) The law-and-order / public-order / security distinction will be asked in the exam. (10) Read the advocates' arguments — Palkhivala, Jethmalani, Parasaran, Venugopal — and the judges' reasoning: that is how one becomes an expert in law.